[redacted]

The Agreement is entered into as of July 20, 2018 (the "Effective Date"), between

XYZ [redacted] a ABC corporation (the "Supplier"), AND

ABC [redacted], a ABC corporation (the '·Customer").

The Parties (as defined herein) agree that the terms and conditions governing the agreement of the Parties for the Services (as defined herein) are comprised of those set forth in the Agreement (as defined herein).

Signed for and on behalf of the Supplier:

Supplier: **XYZ** [redacted]

Signature: ______________________________

Name:

Title:

Date:

Signed for and on behalf of the Customer:

Customer: [redacted]

Signature:

Name:

Title: Executive Vice President & Chief Financial Officer

Date: July 20, 2018

MASTER SERVICES AGREEMENT

The Agreement is entered into as of July 20, 2018 (the "Effective Date"), between

XYZ North America, Inc., a ABC corporation (the "Supplier"), AND

ABC North Companies, Incorporated, a ABC corporation (the "Customer").

The Parties (as defined herein) agree that the terms and conditions governing the agreement of the Parties for the Services (as defined herein) are comprised of those set forth in the Agreement (as defined herein).

Signed for and on behalf of the Supplier:

Supplier: '.

Signature:

Name: !o -end rn G-o"ia \

Title: E:.XeC..lIT\ ,le VI c_e ?r ,dern

Date: 0U \'i a_o, ao1a'

Signed for and on behalf of the Customer:

Customer: **ABC North Companies, Incorporated**

Signature:

Name: [redacted]

Title: Executive Vice President & Chief Financial Officer

Date: July 20, 2018

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LIST OF SCHEDULES

1. PURPOSES/STRUCTURE/TERM OF AGREEMENT

1.1 Purpose of Agreement

1.1.1 The Supplier has the experience and the business processes, resources, technology and software systems necessary to perform and provide the Services to the Customer Group for the Customer Business as set forth in the Agreement. The Agreement documents the terms and conditions under which (i) the Customer Group will obtain the Services from the Supplier and (ii) the Supplier will administer, manage, support, perform and deliver the Services to the Customer Group.

1.1.2 The Parties have identified specific purposes for the Agreement, which include the following:

(a) Establishing a durable business relationship in which the risks are reasonably allocated between the Parties;

(b) Defining and implementing the set of contracting, governance, performance, performance accountability and risk allocation structures and processes for the engagement by the Customer Group of the Supplier for Services;

(c) Securing timely and proper performance of the Services including performance in accordance with the Service Levels, Supplier Laws and Customer Laws;

(d) Providing for the security, privacy and confidentiality of the Customer Data, information and Services;

(e) Evolving, scaling and enhancing the Services and Service Levels to meet the dynamic requirements and needs of the Customer Business;

(f) Enhancing the current functionality of certain business processes, systems, and service levels of the Customer Group and the Customer Business to the scope of services and operations covered by the Agreement;

(g) Enhancing Customer Group business flexibility through a contractual arrangement accommodating the integration of services by multiple, cooperating vendors;

(h) Providing for current and additional resource consumption and for reduction in resource consumption and increasing flexibility regarding resources;

(i) Creating, where appropriate and agreed, variable, unit based pricing that is aligned with the Customer's requirements and the Supplier's services that are amenable and available for such pricing methods in order to provide the Services and provide the Customer Group with predictable costs;

(j) Creating incentives for both Parties to seek continuous cost reductions for the Customer Group, including as described to Customer during Supplier's proposal;

(k) Providing an opportunity to transition the Services (in accordance with the terms of this Agreement and specifically including the "Additional IP Terms" Schedule) back to the Customer Group or to another service provider from the Supplier with minimal disruption to the Customer Group and at a fair and reasonable expense; and

(l) Providing governance and dispute resolution processes that will enhance and improve the management and delivery of the Services and expedite the resolution of disputes.

1.1.3 The Supplier recognizes that the Customer Group expects to be treated as a valued customer. The Supplier agrees that customer satisfaction goes beyond the Supplier's performance against established Service Levels and requires that the Supplier exhibit a customer service attitude focused on assisting the Customer Group in a commercially reasonable manner.

1.1.4 The provisions of this Section 1.1 are intended to be a statement of the purposes of the Agreement and are not intended to alter the plain meaning of the terms and conditions of the Agreement or to require either Party to undertake performance obligations beyond those set forth in the Agreement. To the extent that the terms and conditions of the Agreement are unclear or ambiguous or call for interpretation of good faith, material and/or commercially reasonable behavior in performance pursuant to the Agreement, such terms and conditions are to be interpreted and construed consistent with the purposes set forth in this Section 1.1.

1.2 Structure of Agreement

1.2.1 The "Agreement" consists of:

(i) The provisions set forth in this Master Agreement;

(ii) The Schedules to this Master Agreement;

(iii) Each Statement of Work entered into by the Parties pursuant to and under this Master Agreement;

(iv) The Exhibits and other documents or materials forming part of such Statements of Work; and

(v) Any Change Order(s) executed by the Parties.

1.2.2 The Customer's in-country or regional Affiliates may contract with the Supplier (or the Supplier's in-country or regional Affiliates) by entering into Statements of Work with the Supplier (or such Supplier Affiliates) specifying the services being acquired under the Statement of Work and any "Deviations" from the Master Agreement and Schedules. The Customer shall be responsible for compliance by the members of the Customer Group with the Agreement (including each Statement of Work).

1.2.3 In the event of a conflict between the terms of the various documents that comprise the Agreement, the conflict shall be resolved in the following order of precedence: (i) the terms of this Master Agreement, except that the terms set forth in any country-specific agreement (hereinafter, a "Country Participation Agreement") shall control with respect to and for Statements of Work signed in those countries to which those terms are applicable or with respect to portions of the Services provided in those countries to which those terms are applicable; (ii) the terms of the Schedules; (iii) the terms of the applicable Statements of Work, unless an individual Statement of Work expressly and specifically notes the deviations from the terms of this Master Agreement and its Schedules in the "Deviations from the Master Agreement" section of such Statement of Work, in which case the terms set forth in such "Deviations from the Master Agreement" section of the Statement of Work shall control for such Statement of Work; and (iv) the terms of the Exhibits to a Statement of Work. Notwithstanding the foregoing, the terms of each Change Order shall govern over any other conflicting provisions in the Agreement with respect to the subject matter of such Change Order.

1.2.4 The Customer Group and Authorized Users may use and/or receive the Services in one or more countries subject to the terms and conditions of the Agreement and any applicable Country Participation Agreement. Supplier shall provide such Services (and/or cause its Affiliates to provide such Services) from the Supplier Service Locations under the terms and conditions of the Agreement.

1.2.5 Each Statement of Work shall be in the form of the "Form of Statements of Work" Schedule (unless otherwise agreed) and shall designate the category of Services purchased under that Statement of Work: BPO Services, Consulting Services, and/or ADM and Software Integration Services.

1.3 Term of Agreement

The initial term of the Agreement (the "Term") will begin as of the Effective Date and will terminate upon the later to occur of (i) seventy-two (72) full calendar months after the Effective Date or (ii) (A) with respect solely to Services provided under Statements of Work specifying a later date of termination, the termination date provided in such Statement of Work or (B) upon completion of related Termination/Expiration Assistance (if later), unless (iii) earlier terminated in accordance with the provisions of the Agreement or extended pursuant to Section 1.4 or by mutual written agreement.

1.4 Extension of Services

The Customer may, at its option, extend the provision of the Services by the Supplier under each Statement of Work for up to two (2) successive twelve (12) month periods (each, an "Extension Period"), upon not less than ninety (90) days' prior written notice before the scheduled termination or expiration of the provision of the Services. The terms governing the Extension Period shall be the terms, conditions and pricing as set forth in the Agreement (*provided* that certain pricing may be subject to a cost-of-living, volume and other adjustments as set forth in the "Pricing and Financials" portion(s) of the applicable Statement of Work). Following the expiration of the second Extension Period, the Parties may extend any SOW Term by mutual written agreement.

However, in the event the Customer is in default with respect to the payment of undisputed amounts in excess of the amounts set forth in Section 12.2 at the start of the Extension Period, the Supplier will extend the provision of such Services, including the Termination/Expiration Assistance as described in Section 12.3, only if the Customer pays all undisputed overdue fees in excess of the amounts set forth in Section 12.2 and prepays on a monthly basis the applicable Termination Assistance Fees.

2. DEFINITIONS

All capitalized terms shall have the meanings set forth in the "Definitions" Schedule to the Agreement or the "Definitions" portion of the applicable Statement of Work or Exhibits to the Statements of Work. Capitalized terms used in the Agreement but not set forth in the "Definitions" Schedule or in the "Definitions" portion of the applicable Statement of Work, are defined where they are used in the Agreement and shall have the meanings there indicated. Those terms, acronyms and phrases not defined in the Agreement but in common usage in the business process outsourcing industries ("BPO") and information technology ("IT") or other pertinent business context shall have their generally understood meanings in the BPO industry, the IT industry or other applicable business context.

3. THE SERVICES

3.1 Obligation to Perform, Provide and Manage the Services and Resources

3.1.1 Starting on the Commencement Date(s) of each Statement of Work and continuing during the SOW Term of each Statement of Work, the Supplier, directly or through its Affiliates and permitted subcontractors, shall perform the Services for the Customer Group, and provide the Services for use by the Customer Group and the other Authorized Users at the places where the members of the Customer Group and other Authorized Users are located. The Supplier shall perform the Services at the Supplier Services Locations using the Software, the Systems, the Key Supplier Personnel and subcontractors satisfying the requirements of Section 8.5 (Use of Subcontractors). The Supplier shall be obligated to provide, administer, manage, operate, support, maintain and pay for all resources (including, without limitation, personnel, hardware, software, facilities, services and other items, however described) necessary or reasonably appropriate for the Supplier to provide, perform and deliver the Services as described in the Agreement, except as otherwise expressly provided in the Agreement. The Customer may direct the Supplier to perform additional quantities of the Services during the Term and in such case, the Supplier shall provide such additional quantities of the Services in accordance with the terms of the applicable Statement of Work. The charges for such additional quantities of the Services shall be calculated according to the pricing set forth in the "Pricing and Financials" portion(s) of the applicable Statement of Work.

3.1.2 Supplier shall provide to Customer the use of space at Supplier Service Locations for such of the Customer Group employees or agents as Customer may from time to time reasonably designate with at least three (3) days prior written notice, in each case including work space, conference rooms and use of a visitor reception, together with office furnishings, janitorial services, utilities, telephone equipment and services, computer equipment, internet and network access, and office-related equipment, supplies, and duplicating services, including such space and facilities specified in each Statement of Work. Such space shall be provided at no cost to Customer and shall be within the Supplier Service Location, but separated from Supplier employees and other representatives. For the avoidance of doubt, the use of such Supplier Service Locations by the Customer Group under this Section 3.1.2 is for the purpose of facilitating the Services and working with Supplier and is separate and distinct from the Customer's step-in rights under Section 3.11.

3.2 Performance/Service Levels/Service Level Credits

3.2.1 Starting on each Service Level Commencement Date, the Supplier shall perform and provide the Services in a manner that shall meet or exceed each of the applicable "Service Levels" and comply with the "Critical Deliverables" and other requirements set forth in the "Service Levels" Schedule and the "Service Levels" portion(s) of the applicable Statement of Work, subject to the provisions of the Agreement. The Services shall be performed during the SOW Term of each Statement of Work, during the times and on the days provided in the applicable Statement of Work. From and after each Commencement Date, the Supplier shall perform the Services that are not subject to expressly defined Service Levels in a skillful, diligent and workmanlike manner in accordance with this Agreement.

3.2.2 If the Supplier fails to provide the Services in accordance with the Service Levels or timely provide any Critical Deliverables, and the failure is not excused by the terms of the Agreement, the Customer shall have the right in each such instance (i) to have the Supplier apply the resulting Service Level Credits and/or Deliverable Credits against the Fees owed to the Supplier in accordance with the provisions of the "Service Levels" Schedule and the "Service Levels" portion(s) of the applicable Statement of Work, and (ii) to pursue a claim(s) against the Supplier, in respect of any material failure to achieve the relevant Service Levels for the damages incurred by the Customer and/or any other members of the Customer Group based on Supplier's failure to perform the Services in accordance with the terms of the Agreement for the amount of such damages in excess of any Service Level Credits and/or Deliverable Credits actually applied against the Fees. These remedies shall be in addition to any other right or remedy of the Customer at law, equity or under the Agreement. The Service Level Credits and Deliverable Credits are not "liquidated damages."

3.3 Disaster Recovery Services

3.3.1 Supplier shall establish prior to each Service Go-Live Date specified in the applicable Statement of Work, and maintain during each SOW Term, a Business Continuity Management Program and the resulting Business Continuity Plan shall cover all the Services to be performed under such Statement of Work and address the applicable requirements described in the "Customer Policies" Schedule. For certainty, any event contemplated by the Business Continuity Plan and/or the Business Continuity Management Program shall not be deemed to be a Force Majeure Event. Prior to the Service Go-Live Date for each Statement of Work entered into pursuant to this Master Agreement, and annually thereafter, Supplier shall provide Customer with the opportunity to review and evaluate the Business Continuity Management Program, including the Business Continuity Plan, and shall remediate any findings. Such review and evaluation may include participation in Customer's (a) vendor testing and assessment process including completion of online and/or on-site assessment(s), as appropriate, and (b) recovery testing as described in a Statement of Work.

3.3.2 In the event of a Disaster or any other disruption event that prevents or impairs Supplier from performing the Services, Supplier shall notify Customer and immediately implement its Business Continuity Plan to restore and continue providing the Services to meet the requirements contained in the "Customer Policies" Schedule. Upon cessation of the Disaster or disruption event, Supplier shall as soon as reasonably practicable, provide Customer with an incident report detailing the reason for the Disaster or disruption and all actions taken by Supplier to resolve the Disaster or disruption.

3.3.3 The Supplier shall provide Disaster Recovery Services in accordance with the "Disaster Recovery" portion(s) of the applicable Statement of Work as part of the Services. If (i) the Supplier breaches its obligations with respect to Disaster Recovery Services and (ii) as a result the Supplier does not recover all of the Critical Applications, Critical Business Services or other components of the Services specifically contemplated by the Business Continuity Plan in accordance with each applicable Recovery Time Objective set forth in the applicable Statement of Work, the Customer will be entitled, at its election, to terminate the Agreement (or any portion thereof), or all or any portion of the Services affected by the breach and any portion of the Services that are dependent upon or co-dependent with the affected Services or that do not make reasonable commercial sense for the Customer to continue to engage the Supplier to perform or provide as a result of any such termination, pursuant to Section 12.1.1 upon written notice to the Supplier, without a cure period, given within one hundred eighty (180) days after the occurrence of the breach event on which such termination is based.

3.3.4 In the absence of express obligations to provide Disaster Recovery Services, upon the occurrence of a Disaster, Supplier will use Commercially Reasonable Efforts to restore its normal operations. If the Supplier materially breaches its obligations with respect to Disaster Recovery Services by breaching its obligations to recover Critical Business Services identified by a Statement of Work or mutually agreed disaster recovery plan substantially in accordance with the requirements of the Statement of Work or plan (as applicable) then Customer may terminate the Statement of Work in accordance with Section 12.1.1.

3.3.5 The Parties shall review the "Disaster Recovery" portion(s) of each Statement of Work on a schedule agreed by the Parties to assess if it is appropriately addressing the Critical Business Services and other relevant matters. All changes in and/or modifications of the "Disaster Recovery" portion(s) of each Statement of Work shall be made solely in accordance with the Change Control Process.

3.4 Records/Audits

3.4.1 The Supplier shall, and shall cause its material subcontractors to, maintain records and an audit trail of all financial transactions and security related events arising in connection with the Agreement and documenting Supplier's, its Affiliates' and material subcontractors' processes, procedures, and controls. For purposes of this Section 3.4, "material subcontractors" are permitted subcontractors so designated by the Parties at the time of approval because their performance of Services involves implementation of internal controls for any member of the Customer Group or may affect Customer's financial statements. Subject to Section 3.4.14, the Supplier shall provide to the Customer, and its auditors (including internal audit staff and external auditors who are not Supplier Competitors) and regulators, customers or clients, and such other representatives as the Customer may from time to time designate in writing, access at all reasonable times with prior notice of not less than five (5) days (unless otherwise required by law or regulation) (i) to the part of any facility at which the Supplier, any Supplier Affiliate or material subcontractor is performing or providing the Services, (ii) to the personnel, systems, policies and procedures of Supplier, its Affiliates and material subcontractors designated specifically for the Services, and (iii) to the data and records of the Supplier, its Affiliates and material subcontractors (excluding personnel records and cost data unless such data is necessary to validate cost-based pricing or expense reimbursements in accordance with the Agreement) relating to the Services for the purpose of performing audits, examinations, reviews, tests and verifications of the Supplier, its Affiliates or material subcontractors for any reasonable business purpose including to examine, review, test and verify:

(a) the accuracy of Fees, any other charges by the Supplier and the invoices for all such amounts;

(b) (1) the security and integrity of the Customer Data and the systems that process, store, support and transmit that data and the security and integrity of such systems, subject to compliance with the Supplier's reasonable security requirements and (2) the Supplier's, its Affiliates' or material subcontractors' adherence to user access processes and procedures with respect to the Customer Group's systems and applications as prescribed in the Procedures Manual, the Customer Policies and elsewhere in the Agreement, including without limitation by (i) limiting user access to authorized representatives on a need-to-know basis, (ii) utilizing a formal process for user access requests and determinations and maintaining associated records, and (iii) conducting regular reviews of user access no less than semi-annually throughout the Term, with identified exceptions promptly resolved and records of such reviews and remedial actions maintained in accordance with Section 3.4.8 below; and

(c) the Supplier's, its Affiliates' and material subcontractors' compliance with the Agreement and the performance of the Services including: (1) the internal controls of the Supplier, the internal controls of Customer that are the responsibility of Supplier, and those controls designed specifically for the Services and/or the Supplier Services Locations, (2) Customer Governmental Orders/Judgments and the Customer Policies (subject to Section 4.8.2), (3) disaster recovery and back-up procedures for the Services, (4) to enable the Customer Group to meet regulatory requirements, and (5) Systems (including Supplier Software) provided and/or supported by the Supplier. However, neither the Customer nor its auditors or examiners will be permitted access to the records of any other customer of the Supplier, except to the extent where such Customer Data has been intermingled with the records of any other customer of the Supplier, wherein such circumstance, Supplier shall take reasonable efforts to isolate such Customer Data to the extent possible from the records of any other customer of the Supplier.

Such access and other activities by the Customer and its auditors and regulators pursuant to this Section 3.4 shall be as requested by the Customer from time to time (subject to Section 3.4.14), shall require reasonable prior written notice to the Supplier (but in no event more than five (5) days' prior written notice) conducted at reasonable business hours (or upon such lesser notice and at such times, as may be required by law, rule or regulation applicable to any member of the Customer Group), and subject to compliance with the Supplier's reasonable operating and security requirements and Article 11 (Confidentiality and Data) of this Agreement, except as otherwise required by law. Notwithstanding anything in the Agreement to the contrary, nothing in the Agreement shall be construed in a manner as to impede any required supervision by the Customer's regulatory or compliance bodies or any data protection authorities.

3.4.2 The Supplier shall cooperate and provide reasonable assistance to the Customer and its designees (including external auditors, internal auditors, customers or clients, or other employees or subcontractors/consultants identified by the Customer) with the performance of audits conducted in accordance with auditing standards generally accepted in the geographic locations in which Customer conducts Customer Business, reviews, testing, inquiries, examinations by regulatory authorities and other activities authorized in this Section 3.4.

3.4.3 The Customer shall ensure that the auditors comply with Supplier' security (including Information Security), safety and other site-specific regulations and procedures of general applicability while at Supplier Services Locations and the auditors shall be escorted at all times by a member of the Supplier Personnel.

3.4.4 If any Section 3.4 activity reveals that the Supplier's invoices for the audited period are not correct other than amounts in dispute subject to Section 9.5 (Disputed Payments and Credits), the Supplier shall promptly reimburse the Customer for the undisputed amount of any overpayment, or the Customer shall promptly pay the Supplier for the amount of any undercharges, subject to the terms of the Agreement.

3.4.5 If any Section 3.4 activities unreasonably interfere with the Supplier's business operations or ability to timely and properly perform the Services in accordance with the Agreement, the Supplier shall (i) inform the Customer in writing of such interference, (ii) meet with the Customer to determine the application, if any, of Section 13.4 (Savings Clause/Dependencies), and (iii) cooperate with the Customer and provide reasonable assistance to implement such modifications and properly and timely complete the Section 3.4 activities. Audit activities shall be conducted in a manner to reasonably minimize interference with the Supplier's business operations, including performance of the Services, while promptly completing such Customer activities.

3.4.6 If requested by the Customer, the Parties shall meet following each Section 3.4 activity at a time reasonably designated by the Customer (but in no event more than thirty (30) days after notice to the Supplier) to review the results of the activity. The Supplier shall promptly remediate all failures to comply with the Supplier's obligations under the Agreement revealed by the Section 3.4 activities. If any audit or examination reveals any charging and/or credit discrepancy of more than five percent (5%) of the invoiced amount for any period audited and/or any audit or examination identifies any non-trivial breach(es) of the Supplier's obligation to timely and/or properly perform the Services, the Supplier shall pay interest at a rate of one percent (1%) per month from the date of payment upon amounts overpaid and refunded to Customer.

3.4.7 The Customer may submit to the Supplier findings and recommendations regarding compliance by the Supplier with Supplier's obligations under the Agreement. The Supplier shall promptly respond to the Customer regarding the Supplier's evaluation and activity plan for such findings and recommendations. If requested by the Supplier, the Parties shall meet following each Section 3.4 activity by Customer at a time reasonably agreed (but in no event more than thirty (30) days after request by the Supplier) to review the results of the activity.

3.4.8 The Supplier shall retain all records, documents, data and information relating to the Agreement for such period as required pursuant to the document retention policies of the Customer Group set forth in the "Customer Policies" Schedule, but in no event less than the earlier of: (i) seven (7) years after creation; or (ii) one (1) year after the expiration or termination of the Agreement. All such records, documents, data and information shall be maintained in such form (for example, in paper or electronic form) as set out in the Agreement. Any records, documents, data and information relating to the Agreement that the Supplier cannot reasonably interpret an associated retention policy per the Customer Policies must be reviewed with the Customer on a monthly basis to determine appropriate categorization within the Customer Policies. The format of items retained electronically must be approved by Customer to provide Customer assurance that electronically retained records can be accessed should they need to be transferred to a different service provider. Supplier must inform Customer of any changes to the format of retained records prior to format change.

3.4.9 The Supplier shall, at its cost and expense, cause its independent auditors to conduct audits of the Services and the Supplier Services Locations not less often than annually, starting in the first calendar year that the Supplier has provided Services. For certainty, Supplier's audit reports shall include audit reports for all material subcontractors. The audits shall be conducted in accordance with (i) ISO 27001 (Information Security Management) and (ii) AICPA Statement on Standards for Attestation Engagements No. 18 (Reporting on Controls at a Service Organization) ("SSAE 18") and AICPA Service Organization Control 1 ("SOC 1") and Service Organization Control 2 ("SOC 2") pursuant thereto, as amended or superseded or replaced from time to time, and a SOC 1 Type 2 Report and SOC 2 Type 2 Report based on such audit(s), or other modified or replacement report, shall be delivered to the Customer. Customer Group's internal controls for financial reporting and security, availability, processing, integrity, confidentiality and privacy reporting and shall be conducted for a twelve (12) calendar month period and such report shall be delivered to the Customer within three (3) days from the date of such report but no later than November 15th of each calendar year. The Supplier shall also provide to the Customer a bridge or takedown letter by a date noticed by Customer to Supplier (the "First Bridge Letter Date") to permit Customer to comply with its reporting requirements imposed by law or regulations, the Customer's lenders and security holders and/or private compliance requirements (such as PCI) of each year covering the period between the date of the report and December 31st of that calendar year, available on approximately the 5th business day of the following year. Each bridge letter shall state that during the applicable period, that to the Supplier's knowledge (i) there have not been any significant changes in the Supplier's internal controls from those represented in the previous SOC reports that could materially and adversely affect the conclusions reached in such audit, and (ii) there has not been any fraud that involves Supplier and its subcontractor personnel who have a significant role in the Supplier internal controls described in the report.

In addition to the SOC 1 Type 2 and SOC 2 Type 2 Reports issued to Customer Group above, Supplier will be responsible for the design, implementation and maintenance of the internal control structure within assigned business processes at each of its Supplier Service Locations. Supplier process owners are expected to: contribute direction to identify, prioritize and review risks and controls; remove obstacles for compliance; remedy control deficiencies in a timely manner; and maintain a program, as agreed to with the Customer Group, of self-assessment and testing to monitor the controls within its processes that could have an effect on the Customer Group's overall internal control environment.

Supplier will certify to Customer Group within fifteen (15) days after the end of the Customer Group's financial reporting period for each quarter that Customer Group controls that are the responsibility of the Supplier continue to operate effectively using the monitoring guidance as defined in the Committee of Sponsoring Organizations of the Treadway Commission (COSO) Framework. In addition, Supplier will make available to the Customer Group Internal Audit team or designee results of the self-assessment documentation for review after submission of each quarter's certification.

3.4.10 The Supplier shall promptly correct and remediate, at its expense, any circumstances resulting in any exception or qualification to any report and/or certification set forth in Section 3.4.9 related to the performance of the Services at any of the Supplier's Service Location and, to the extent such exceptions, as determined by the Customer, its auditors, the Supplier, or its auditors, identify a Significant Deficiency or Material Weakness (as such terms are defined by the AICPA and their equivalent term(s) under any modified or replacement protocols for the SOC 1 and SOC 2 reports), provide to Customer a plan to correct and remediate each such Significant Deficiency and Material Weakness ("Remediation Plan") no later than sixty (60) days from the effective date of the reports described in Section 3.4.9, and upon Customer's request, provide an updated report to the Customer prior to the end of each such year. Further, the Supplier shall provide to the Customer prior to the end of each such year for the "stub period" between the date of such report and/or certification and the end of such fiscal year (whether or not exceptions or qualifications were noted in the SOC 1 and/or SOC 2 reports and/or certifications for such fiscal year) a letter identifying changes, if any, in the control processes since the date of the last SOC 1 and/or SOC 2 report(s) delivered to the Customer, the status of the remediation of any Significant Deficiencies and Material Weaknesses identified in the earlier report, and any exceptions or qualifications identified during the "stub period." Material Weaknesses and Significant Deficiencies identified will require re-testing of remediated controls no later than December 15th of each calendar year. Supplier will also provide regular updates to Customer in accordance with the Governance Schedule specifying any significant changes in controls or procedures, deficiencies, exceptions or fraud identified relating to the control objectives, processes and systems maintained by the Supplier.

3.4.11 If all such Material Weaknesses or Significant Deficiencies that in the aggregate may be deemed to be a Material Weakness by Customer in its reasonable judgement are not corrected and remediated by December 15th of the calendar year post the effective date of the reports described in Section 3.4.9, the Customer may terminate the Agreement for material breach by the Supplier pursuant to Section 12.1.1 upon written notice to the Supplier without observing any cure period set forth in Section 12.1.1.

3.4.12 If all such Significant Deficiencies (not caused directly or indirectly by the Customer Group) are not corrected and remediated by February 15th of the calendar year post the effective date of the reports described in Section 3.4.9, the Customer may terminate the Agreement for material breach by the Supplier pursuant to Section 12.1.1 upon written notice to the Supplier without observing any cure period set forth in Section 12.1.1.

3.4.13 The Supplier shall promptly provide to the Customer, as requested from time to time but not more than once per year, information relating to the Supplier's and its subcontractors' internal controls which are reasonably related to the delivery or receipt of the Services.

3.4.14 The Supplier shall comply with the requirements described in Section 3.4 at no additional charge to the Customer for (i) one (1) financial audit per Statement of Work per Customer fiscal year (and as many follow-up audits as reasonably appropriate to confirm the correction and/or remediation of any qualifications and/or discrepancies and/or non-compliance with the Agreement by the Supplier identified in any audit or report); (ii) unlimited audits, examinations, tests and reviews requested by governmental or private regulatory authorities applicable to the Customers Group or as required by law or Customer's contractual requirements; (iii) one (1) performance and operational examination and/or review per Statement of Work per Customer fiscal year (and as many follow-up audits as reasonably appropriate to confirm the correction and/or remediation of any qualifications and/or discrepancies and/or non-compliance with the Agreement by the Supplier identified in any examination or report), *provided* that standard meetings, reports, analyses or the like called for under the Agreement shall not be considered performance or operational examinations or reviews for purposes of this Section 3.4.14; and (iv) investigations and analyses of potential Information Security Breaches as deemed reasonably necessary by the Customer.

3.4.15 The Supplier shall, with respect to any Supplier controls (including Customer controls operated by the Supplier) and Supplier Services Locations that are within the scope of the then-current PCI Standard (currently located at https://www.pcisecuritystandards.org/pci_security/ as it applies to Cardholder Data, including Supplier Services Locations at which Cardholder Data will be stored or Processed or to or from which Cardholder Data will be transmitted (all of the foregoing Locations and controls, "Supplier PCI Locations and Controls"), submit to the Customer a fully completed and current Attestation of Compliance (as defined under the PCI Standard), indicating full compliance with the PCI Standard, evidence of passing scan(s), and Attestation of Compliance, together with any other documentation reasonably requested by the Customer and with all such documentation having been prepared by an entity or entities other than Supplier or a Supplier Affiliate that is/are qualified as required under the PCI Standard. At least annually thereafter, for the Supplier PCI Locations and Controls, the Supplier shall (i) have a Qualified Security Assessor ("QSA", as defined under the PCI Standard) other than Supplier or a Supplier Affiliate complete a Report on Compliance (as defined under the PCI Standard) for Level 1 PCI compliance as a managed service provider, (ii) have a PCI SSC Approved

Scanning Vendor ("ASV") other than Supplier or a Supplier Affiliate conduct vulnerability scans (as defined, and required for Level 1 managed service providers, under the PCI Standard) and obtain evidence of passing scan(s) from the ASV, and (iii) complete, together with the QSA, the Attestation of Compliance for On-site Assessments – Service Providers in its entirety. The Supplier shall work with the Customer and establish an annual schedule for obtaining and providing the information described above. Should any Attestation of Compliance indicate a non-compliant status for any PCI requirement, the Supplier shall be deemed in default under this Agreement and will remediate the non-compliant items and provide an updated Report of Compliance, evidence of passing scan(s), and Attestation of Compliance indicating fully compliant status, together with any other documentation reasonably requested by the Customer, as promptly as possible, but not later than thirty (30) days after the date of the initial Attestation of Compliance that included the non-compliant items. To the extent the non-compliance is not remedied within 30 days, Supplier shall be deemed in default under this Agreement, and such default shall remain in effect until the default is remedied or waived. At the Customer's request, the Supplier will provide status updates (which the Customer may or may not require to be in writing) on the progress of remediation of any non-compliant items. Supplier shall allow Customer or its designee to periodically examine (upon reasonable notice) in accordance with this Section 3.4 (Records/Audits) Supplier's systems and practices to confirm their compliance with the PCI Standard. Supplier is required to comply with the PCI Standard and all applicable international, federal and state laws, rules and regulations in receiving, processing, transporting, possessing, maintaining, storing or accessing the Cardholder Data.

3.5 Correction of Errors

Supplier shall promptly correct at its expense, any errors or inaccuracies in the Customer Data, reports, payments and other output produced by Supplier as result of providing the Services, to the extent such errors or inaccuracies were caused by the failure of Supplier, its Affiliates or its or their respective subcontractors to perform the Services in accordance with the terms of the Agreement and the Customer notifies the Supplier of such errors or inaccuracies within thirty (30) days of production. However, the Customer may be charged for the reasonable costs incurred by the Supplier for promptly correcting any such errors or inaccuracies to the extent such errors or inaccuracies were caused by errors in the data, information or materials supplied, or caused to be supplied, or from instructions given, or caused to be given, that are inconsistent with the terms of the Agreement. The Supplier shall not, without the prior written approval of the Customer, contact any individual data subject directly regarding his or her Personally Identifiable Information.

3.6 Project Services

The Services may include Services for Billable Projects and Non-Billable Projects as described in one or more Statements of Work agreed by the Parties under a Statement of Work.

3.7 Third Party Contracts - Compliance, Substitutions and Additions

3.7.1 To the extent that the Customer provides the Supplier (for its use performing Services) with access to or use of leased equipment, licensed software, services and/or other resources subject to Third Party Contracts for which a member of the Customer Group retains legal responsibility, the Supplier shall, and shall cause its subcontractors, to comply with the restrictions applicable to use of such leased equipment, licensed software, services and/or other resources (which are not payment obligations retained by the Customer) under the Third Party Contracts to the extent the restrictions thereunder are disclosed in writing to the Supplier. The Third Party Contracts shall be listed in the "Third Party Contracts" portion of the applicable Statement of Work. The Supplier shall cease use of such items upon expiration or termination of the Agreement or the applicable Statement of Work or as required by the Third Party Contract or the Customer consistent with the terms of the Agreement. To the extent provided to the Supplier by the Customer in writing prior to execution of the Agreement or Statement of Work (as applicable), the Supplier shall be deemed to have reviewed and accepted such restrictions under such Third Party Contracts.

3.7.2 The Customer may substitute or add Third Party Contracts to, or delete Third Party Contracts from, the "Third Party Contracts" portion(s) of the applicable Statement of Work in accordance with the Change Control Process.

3.7.3 To the extent Third Party Contracts described in Section 3.7.1 are not provided to the Supplier prior to the applicable SOW Effective Date, the Customer shall use commercially reasonable efforts to provide such Third Party Contracts to the Supplier as soon as practicable. Within ten (10) business days after the Third Party Contracts described in Sections 3.7.1 and 3.7.2 are provided to the Supplier, the Supplier will identify any terms and conditions that the Supplier believes are impracticable for it to comply with or that are not commercially reasonable. No terms or conditions shall be identified by the Supplier as impracticable to comply with or not commercially reasonable if such terms or conditions are substantially similar in content to the terms and conditions in Third Party Contracts previously accepted by the Supplier with respect to Customer or other Third Party Contracts for other Supplier customers under similar facts and circumstances. If the Supplier does not identify any such problematic terms and conditions within ten (10) business days after receipt of such Third Party Contracts, the provisions of Section 3.7.1 shall apply with respect to the Supplier's compliance with the obligations under such Third Party Contracts. If the Customer is unable to modify to the Supplier's reasonable satisfaction any problematic terms and conditions, the Parties shall use commercially reasonable efforts to determine and adopt such alternative approaches as are necessary and sufficient to provide the Services without requiring the Supplier to use such Third Party Contracts. If such alternative approaches require Supplier to incur costs in addition to and in excess of those it would otherwise have incurred in using such Third Party Contracts, the Parties shall equitably adjust the terms and charges to reflect any additional costs being incurred by the Parties and any changes to the Services.

3.7.4 The Supplier may seek to modify, at its sole expense, the scope of use and nondisclosure provisions of a Third Party Contract as applied to the Supplier as part of the letter or agreement granting the Required Consent for the Supplier under such Third Party Contract, and the Customer shall reasonably cooperate with the Supplier, at the Supplier's expense, in seeking to modify such provisions, provided that: (i) the Supplier notifies the Customer prior to seeking to make any such modification of the purpose for and content of each such modification; (ii) the Supplier shall not seek or obtain any modification that would adversely affect the Customer's rights and obligations under the Third Party Contract, or impose any additional cost on the Customer, without the Customer's prior written consent; and (iii) the Supplier shall promptly deliver to the Customer an executed copy of each letter or agreement embodying each such modification.

3.8 New Services

3.8.1 The Customer may request the Supplier to perform one or more New Services that are within the Supplier's services and product offerings to its customer base. The Customer's request for a New Service may include a request for the Supplier to correspondingly reduce or eliminate one or more existing elements of the Services then being provided that are being replaced by the New Services. In such event, the Supplier shall determine the resources and expenses related to the element or elements of the Services being reduced or eliminated and those required for the New Services being added.

3.8.2 The Supplier shall promptly provide a written proposal for such New Services to the Customer setting forth (i) an itemization of the Fees for the New Services, (ii) the net increase or decrease in the Fees and/or other charging methodologies under the Agreement, including as applicable, increases and decreases in existing baselines, if applicable, and additional baselines (if any) that will be attributable to such New Services, and (iii) a detailed description of the New Services together with an itemization of the ramifications and impacts of such New Services on the Services affected by the New Services request. All changes in the Fees and other charging methodologies shall equitably account for any efficiencies, economies or reduced or increased resource requirements, if any, resulting from any changes in the Services resulting from the New Services. If the Customer elects to have the Supplier perform the New Services, the Agreement shall be amended in accordance with Section 17.2 (Entire Agreement; Updates; Amendments and Modifications) to reflect the agreement of the Parties to incorporate the New Services into the Services and the attendant term).

3.8.3 If the Parties cannot agree whether a function, responsibility or task falls within the definition of a New Service and the function, responsibility or task is reasonably related to the Services and within the Supplier's service and product offerings to its customer base, the Supplier shall nevertheless perform the disputed function, responsibility or task if requested by the Customer. Until the dispute is resolved, the Customer shall pay fifty percent (50%) of any Fees for the disputed function, responsibility or task under this Section 3.8.3 to Supplier (which Fees shall be determined based on the Fee structure provided by Supplier pursuant to

Section 3.8.2) and fifty percent (50%) of any Fees shall be held by the Customer pending a resolution of the dispute in accordance with Article 16 (Dispute Resolution). The portion of the Fees Customer is required to pay to the Supplier under this Section 3.8.3 shall not be withheld as a disputed amount and the portion of the Fees that Customer is not required to pay to the Supplier and is withheld by the Customer under this Section 3.8.3 shall not be subject to any cap or limitation and shall not be used by Supplier as a basis for terminating the Agreement pursuant to Section 12.2 (Termination by Supplier).

3.9 Affiliates, Acquisitions and Divestitures

If the Customer Group acquires or divests any additional or existing Affiliates or other operations or assets (including opening new locations or creating new Affiliates) during the applicable SOW Term of a Statement of Work and desires that the Supplier provide the Services for such Affiliates or other divested operations or assets, the Supplier shall provide such Affiliates or other operations or assets with the Services in accordance with the Agreement, as additional or reduced quantities of Services as set forth in Section 3.1 (Obligation to Provide and Manage the Services and Resources) subject to additional or reduced Fees in accordance with the "Pricing and Financials" Schedule and/or the "Pricing and Financials" portion(s) of the applicable Statement of Work, or if Supplier's performance of such responsibilities would have a tax impact, subject to adjustment to the Fees to address such impact. With respect to divested Affiliates or other operations or assets, such provision of the Services by the Supplier shall be limited to twenty-four (24) months (or, if shorter, for the remainder of the applicable SOW Term plus the period of any Termination/Expiration Assistance). Planning, implementation, and other transitional services and corresponding adjustments to Fees, related to acquisitions (including opening new locations or creating new Affiliates) and divestitures shall be made in accordance with the Change Control Process. Supplier must retain all records, documents, data and information relating to the Agreement and pertaining to divested operations or assets as required pursuant to the document retention policies of the Customer Group set forth in the "Customer Policies" Schedule.

3.10 ISO Compliance

In its performance of and as part of the Services, the Supplier shall observe and utilize processes and practices that conform to ISO 9001 (Quality Management Standards), ISO 27001 (Information Security Standards) and ISO 27002 (Information Security Controls).

3.11 Step-In Rights

3.11.1 In the event that the Supplier fails to deliver all or part of the Services, such failure has a current and demonstrative material impact on a portion of the Customer's operations, and the Supplier does not remediate and cure such failure within two (2) days of receipt of notice from the Customer, then subject to Supplier's procedures and policies the Customer may assign the Customer staff or any Third Party to step-in for the Supplier and perform the functions at the Supplier Service Locations (or other locations), and other activities and tasks that comprise the Services which Supplier is failing to deliver until such time that the Supplier can demonstrate the ability to resume the performance of such functions, activities and tasks. The Supplier shall reasonably cooperate with the Customer's exercise of its step-in rights.

3.11.2 The Costs and damages associated with the Customer's exercise of its step-in rights under this Section 3.11 shall be borne by the Customer during the period commencing on the end of the two (2) day cure period referenced in Section 3.11 above and ending fifteen (15) calendar days thereafter. Customer shall also continue to pay Supplier for the provision of the Services which Supplier is failing to deliver during such fifteen (15) day period. If Supplier still has not cured the Service failures and otherwise remediated the circumstances giving rise to the exercise of the step-in rights by Customer by the end of such fifteen (15) day period, then (i) Customer shall be relieved of any further obligation to pay for the Services which Supplier is failing to deliver until such time that Supplier can demonstrate the ability to resume the performance of such Services and (ii) Supplier shall become responsible for all reasonable Costs incurred by the Customer in connection with the exercise of its step-in rights as of the end of the fifteen (15) day period and for the remainder of the step-in period. Supplier's maximum liability for the reasonable Costs incurred by the Customer in connection with the exercise of its step-in rights pursuant to this Section 3.11 shall not exceed three (3) months' Fees. For purposes of this Section 3.11, the calculation of three (3) months' Fees shall be based on the average monthly charges by the Supplier to the Customer under the applicable Statement of Work for the three (3) calendar months immediately preceding the date of the notice described in Section 3.11.1 above, or, if three (3) months have not yet been invoiced, the average aggregate monthly charges that have been invoiced multiplied by three (3).

3.11.3 The Customer shall, at all times, mitigate its Costs and damages incurred in connection with its exercise of these step-in rights as provided in Section 13.6 (Mitigation) and comply with the confidentiality obligations of this Agreement (Article 11) with respect to information relating to Supplier's other clients in exercising such rights. The Customer's exercise of its step-in rights under this Section 3.11 shall not constitute a waiver by the Customer of any of its other rights under the Agreement (including the Customer's rights set forth in Article 12 (Termination)). Parties acknowledge that the Supplier shall not be liable to adhere to Service Levels during the step-in period for the affected portion of Services.

3.12 Functionality, Performance, Capabilities and Requirements

Supplier shall perform, provide and deliver the Services (including the Systems and the Deliverables), and each of the components and modules of the Services, such that the Services at all times possess, satisfy and have the business processes, capabilities, features, functionality, configuration, scalability, performance and integration capabilities set forth in the "Services" portion(s) of the applicable Statement of Work.

3.13 Integration, Compatibility and Interoperability

Supplier shall perform, provide and deliver the Services (including using the Systems and preparing the Deliverables), and each of the components and modules of the Services in a manner that shall be integrated, compatible and interoperable and provide the Customer Group with the full capabilities, features, functionality, performance and scalability of the Services and satisfy the Service Levels as and to the extent all of the foregoing have been agreed to and are set forth in the Agreement including the applicable Schedules, Statements of Work and Specifications; provided, however, that the Customer Group properly and timely complies with the Procedures Manual and the other provisions of the Agreement regarding (A) the Customer's responsibilities in connection with these aspects of the Services and (B) the operation and use of the Services and the components and modules of the Services relating to these aspects of the Services.

3.14 Customer Standards

Supplier shall comply with technical architecture and project standards, including network connectivity requirements, set forth in the applicable Statement of Work, as the same may be modified by Customer from time to time during the Term. Supplier shall adopt and implement any revised technical architecture, standards, and specific requirements reasonably required by Customer in accordance with the Change Control Process. The Supplier's Systems shall interface and be compatible with the Designated Services Environment and other Customer's Systems and the Supplier's Systems shall not adversely affect the Designated Services Environment and other Customer's Systems (including with respect to functionality, speed, interconnectivity, reliability, availability, or response time).

3.15 Maintenance

Supplier shall maintain Equipment and Software to the extent that Supplier has maintenance responsibility for such assets so that they (or replacement thereof) operate in accordance with their specifications, including (i) maintaining Equipment in good operating condition, subject to normal wear and tear, (ii) undertaking repairs and preventative maintenance on Equipment in accordance with the applicable manufacturer's recommendations, and (iii) performing Software maintenance in accordance with the applicable Software vendor's documentation and recommendations.

4. WARRANTIES/REPRESENTATIONS/COVENANTS

4.1 Work Standards

The Supplier covenants that: (i) it and each of its employees, subcontractors and subcontractor employees involved in providing and performing the Services will have the necessary knowledge, skills, experience, qualifications and resources to provide and perform the Services in accordance with the Agreement; (ii) the Supplier Services Locations, the Systems, the Key Supplier Personnel and the other personnel and resources that will be used by the Supplier to perform, provide and deliver the Services shall at all times during the SOW Term of each Statement of Work be sufficient to enable the Supplier to perform, provide and deliver the Services; and (iii) the Services (including the attendant practices, methods, processes and procedures utilized by the Supplier in the performance, delivery and support of the Services) shall be performed for the Customer Group in a skillful, diligent and workmanlike manner.

4.2 Authorization and Enforceability

Each Party hereby represents and warrants that: (i) it has all requisite corporate power and authority to enter into, and fully perform pursuant to, the Agreement; (ii) the execution, delivery and performance of the Agreement and the consummation of the transactions contemplated hereby have been duly and properly authorized by all requisite corporate action on its part; and (iii) the Agreement has been duly executed and delivered by such Party.

4.3 Non-Infringement

4.3.1 The Customer makes no representation or warranty with respect to any claims for such infringement or misappropriation by virtue of its compliance with obligations herein to provide the Supplier access to, or the use or benefit of any Third Party Contracts prior to receiving the necessary Required Consents notwithstanding this provision or any other provision in the Agreement.

4.3.2 Each Party represents and warrants to the other that it has the right to grant each of the licenses it grants herein.

4.3.3 Supplier represents, warrants and covenants that with respect to the Authorized User APIs and/or any other Software and/or Deliverables that are created, developed and/or prepared specifically for and/or to provide the Services to the Customer, no Open Source Software will be utilized or incorporated into such Authorized User APIs, Software and/or Deliverables unless approved in writing by the Parties under a Statement of Work, and excepting from this provisions any Code provided by the Customer.

4.3.4 If any of the Services, Deliverables, other resources, however described or denominated, or any component, element or aspect thereof, used or provided by the Supplier under the Agreement infringes or misappropriates any Intellectual Property Right of any third party, is subject to a Claim of infringement and/or misappropriation, or in the reasonable belief of Supplier may infringe or misappropriate such third party's Intellectual Property Rights (collectively, the "Infringing Material"), the Supplier shall promptly notify Customer in writing, and Customer's sole remedies for Supplier's breach of this Section 4.3.4 shall be as set forth in Section 14.1.1 and for the Supplier to, at Supplier's cost and expense, either (i) procure the right for Supplier and/or the Customer Group, as applicable, to continue Using the Infringing Materials in accordance with the terms of the Agreement, (ii) modify the Infringing Material to make it non-infringing and not misappropriate the rights of any third party, provided that such modification does not degrade the performance or quality of such Infringing Material, or (iii) replace the Infringing Material with a non-infringing functional equivalent, provided that such replacement does not by more than a trivial amount degrade the performance or quality of the Services or increase the Customer Group's costs to use and/or receive the Services.

4.4 Malware; Viruses; Disabling Code

4.4.1 The Supplier represents, warrants and covenants (i) that the Supplier shall not code or insert, and shall not permit its employees or subcontractors to code or insert, any Viruses into any element of the Services (including the Deliverables and the Systems), the Customer Data, and/or Customer Group information systems (to the extent Supplier has access to Customer Group information systems), and (ii) it will use and maintain, and cause its subcontractors to use and maintain, on the Supplier Systems anti-virus software that is commonly used by other service providers providing a commercially reasonable level of protection and security for services that are the same as or similar to the Services, throughout all Supplier information systems used to provide or used in connection with the Services. In the event a Virus is (a) coded or inserted by the Supplier, its employees or subcontractor, or otherwise permitted to be introduced by any of them into any of the Services (including the Deliverables and/or the Systems), or (b) permitted or caused to be introduced by any of them in breach of the requirement in clause (ii) above into the Customer Data or any Customer Group information systems to which they have access, the Supplier shall at no additional charge, promptly use Commercially Reasonable Efforts to eliminate the effects of the Virus and promptly mitigate, restore and reconstruct such losses.

4.4.2 The Customer covenants (i) that the Customer shall not code or insert, and shall not permit its employees or contractors to code or insert, any Viruses into any element of the Customer Data and/or Customer Group information systems (to the extent Supplier has access to Customer Group information systems), and (ii) it will use and maintain anti-virus software that is commonly used providing a commercially reasonable level of protection and security throughout all Customer information systems used in connection with the Services or to connect to or interact with Supplier Systems.

4.4.3 The Supplier covenants that, without the prior written consent of the Customer, the Supplier shall not, and shall cause its subcontractors not to, insert any Disabling Code into any Deliverable or any element of the Systems provided to the Customer Group or invoke or enable any Disabling Code that may be part of the Deliverables or any element of the Systems provided to or used by the Customer Group at any time, including upon expiration or termination of the Agreement or any part of the Services for any reason. If Disabling Code is inserted in a Deliverable or any element of the Systems provided to or used by the Customer Group and invoked or enabled, the Supplier shall, at no additional charge, eliminate the effects of the Disabling Code and promptly mitigate, restore and reconstruct such losses.

4.5 Efficiency and Cost Effectiveness

The Supplier covenants that it shall use commercially reasonable efforts: (i) to efficiently provide, administer, manage, operate, support, maintain and use the resources employed by the Supplier to provide and perform the Services that are chargeable to, or affect the Fees paid by, the Customer under the Agreement; (ii) to diligently and regularly improve the performance and delivery of the Services by the Supplier and the elements of the policies, processes, procedures, methods, Systems and other resources that are used by the Supplier to perform, provide and deliver the Services, including, without limitation, re-engineering, tuning, optimizing, balancing and/or reconfiguring the processes, procedures and systems used to perform, provide, deliver and track the Services; and (iii) to perform the Services in a cost-effective manner consistent with the required levels of quality and performance under the Agreement.

4.6 Software Ownership or Use

The Supplier represents, warrants and covenants that it is either the owner of, or authorized to Use, the Supplier Software and other materials, processes, procedures, methods and policies provided and used by the Supplier, directly or indirectly, to perform, provide and deliver the Services in accordance with the Agreement.

4.7 Disclaimer

4.7.1 The Supplier does not warrant the accuracy of any advice, report, data or other product delivered to the Customer to the extent any inaccuracies are caused by data provided by or on behalf of the Customer Group. The Supplier will promptly notify the Customer of any such inaccuracies of which the Supplier becomes aware and the cause therefore if known by the Supplier. The Supplier will assist the Customer Group to remedy such problems.

4.7.2 Subject to the obligations of the Supplier to provide the Service without material degradation or interruption and satisfy the Service Levels and the other performance requirements, as set forth in the Agreement, the Supplier does not warrant the uninterrupted or error-free operations of the Systems.

4.7.3 EXCEPT AS EXPRESSLY PROVIDED IN THE AGREEMENT, THERE ARE NO OTHER EXPRESS WARRANTIES OR COVENANTS, AND THERE ARE NO IMPLIED WARRANTIES OR COVENANTS, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OR COVENANTS OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT, AND EACH PARTY HEREBY EXPLICITLY DISCLAIMS ALL SUCH OTHER WARRANTIES.

4.8 Compliance with Laws, Regulations and Policies

4.8.1 In the performance and delivery of the Services, the Supplier, at its cost and expense, shall, and shall cause each of its subcontractors to: (i) obtain all necessary regulatory approvals and permits for and applicable to its business for the performance and provision of the Services; (ii) comply with all Supplier Laws; and (iii) comply with all Customer Policies referenced in the "Customer Policies" Schedule as of the Effective Date. The Supplier shall perform the Services in compliance with the Customer's specific written instructions with respect to

Customer Governmental Orders/Judgments, the Country Participation Agreement (as applicable) and the Customer Policies provided to the Supplier; provided, however, the Supplier shall be deemed to be in compliance with its obligations in items (i) through (iii) above so long as any non-compliance by Supplier does not constitute grounds for a claim of more than a trivial breach or violation of the standards set forth in items (i) through (iii) that individually or collectively will not result in damage or injury to members of the Customer Group or in disruption in, or degradation of the quality, of the Services provided by Supplier.

4.8.2 If the Customer provides the Supplier written instructions to comply with any additional, amended or modified Customer Governmental Orders/Judgments, the Country Participation Agreement (as applicable) and/or a written copy of any additional, amended or modified Customer Policies, the Supplier shall, and shall cause each of its subcontractors to, perform the Services in compliance with such additional, amended and/or modified Customer Governmental Orders/Judgments, the Country Participation Agreement (as applicable) and/or Customer Policies as and to the extent applicable to the Supplier's performance and delivery of the Services and to the extent implemented in accordance with Section 6.4 (Approval of Changes; Change Control Process); provided, that Supplier shall have a reasonable period of time (not to exceed any time period or implementation period imposed by law, rule or regulation) to implement any changes to the Services required by a change in the Customer Policies, the Country Participation Agreement (as applicable) or Customer Government Orders/Judgments. In accordance with Section 6.4 (Approval of Changes; Change Control Process), the Supplier's compliance with such additional, modified or amended requirements to the Customer Policies, the Country Participation Agreement (as applicable) or the Customer Governmental Orders/Judgments may constitute a part of the Services or a change to the Services covered by the payment of Fees, or other mechanisms, to determine any additional Fees, as set forth in the "Pricing and Financials" Schedule and/or portion of the applicable Statement of Work; provided, that the Supplier shall apportion costs of such Changes across its similarly situated customers with services similar to the Customer Business.

4.8.3 The Supplier shall promptly notify the Customer of any changes in the Supplier Laws (and in no event later than thirty (30) days after Supplier becomes aware of such changes) that could reasonably be expected to have an adverse effect on any member of the Customer Group's receipt and/or use of the Services, costs to receive and/or use the Services, and/or compliance with the Agreement. The Supplier shall, at its expense, promptly make, and cause its subcontractors to make, any changes to the Services and take other actions that are necessary in order to maintain compliance with the Supplier Laws. All such actions by the Supplier and its subcontractors shall not constitute New Services or release Supplier from any of its obligations under the Agreement. In the event of a change in Supplier Laws that affects the taxes associated with the Services, Supplier will notify Customer as soon as practicable of such change before the change becomes effective and, if requested by Customer and as approved by Customer, will work with Customer to move the Supplier Service Location to another location to mitigate the effects of such change in Supplier Laws, at no additional cost to Customer.

4.8.4 If Supplier determines that the performance of the Services requires an interpretation of any aspect of the Customer Policies, the Country Participation Agreement, the Customer Governmental Orders/Judgments, a Third Party Contract with Customer or a member of the Customer Group or a Customer Law impacting the Services (an "Interpretative Issue"), Supplier shall present to the Customer Account Executive and Customer's General Counsel (or their designees) for such purpose, in writing the factual scenario in issue for resolution. The Customer Account Executive officer or his/her designee, shall as soon as practical instruct Supplier in writing with respect to each such Interpretative Issue so presented to him/her, and Supplier is authorized to act and rely on, and shall promptly implement such Customer instruction(s) in the performance and delivery of the Services. All Customer interpretative responses regarding Interpretative Issues shall be deemed Customer Policies, the Country Participation Agreement, or Customer Governmental Orders/Judgments, as applicable, and Supplier shall be entitled to rely on such interpretation for all matters under the Agreement. Prior to the issuance of any requested interpretation, Supplier shall be permitted to act in accordance with its good faith interpretation of the applicable Customer Policy, the Country Participation Agreement, or Customer Governmental Orders/Judgments regarding the matter on which the interpretation is requested for all purposes of the Agreement.

4.8.5 The Customer, at its cost and expense, shall: (i) obtain all necessary regulatory approvals and permits for and applicable to its business for the receipt of the Services; (ii) comply with all Customer Laws, and (iii) inform Supplier of any Customer Laws that Supplier will be required to comply with in the provision of Services under the Agreement to the extent any Customer Laws: (1) are unique to Customer or any other members of the Customer Group and (2) would not apply to the Supplier in the absence of the contractual arrangement between Supplier and Customer that is the subject of the Agreement.

4.9 Covenant of Cooperation and Good Faith

The Parties shall timely, diligently, in good faith and with commercially reasonable efforts cooperate with each other within the context of the purposes of the Agreement, to facilitate the performance of their respective duties and obligations set forth in the Agreement and to reach agreement with respect to matters left for further review, consideration and/or negotiation and agreement by the Parties as specifically set forth in the Agreement. Neither Party may unreasonably withhold or delay any consent or approval (unless the Agreement expressly states some other standard, such as "sole discretion").

4.10 Absence of Material Litigation

As of the Effective Date, the Suppler may be involved in claims, litigations, proceedings, arbitrations, investigations or controversies arising in the ordinary course of its business, but Supplier represents and warrants that none of the foregoing could have a material adverse effect on the Supplier's ability to enter into the Agreement or perform and provide the Services in accordance with the Agreement.

4.11 Personnel Qualifications

4.11.1 The Supplier covenants that it shall not, and shall cause its subcontractors not to, assign any person to perform the Services (i) who does not possess the educational, training and other qualifications (including physical and mental capacity) to perform the essential functions of all assigned duties, with or without reasonable accommodation, (ii) who is known or should be known to Supplier (after due inquiry and appropriate management supervision) to pose a significant risk to the health, safety, welfare or security of any person at the Customer Group premises or the security and integrity of the Customer Data, or (iii) who cannot establish eligibility for employment according to applicable laws where the work is performed for the purpose of performing the applicable portion of the Services, or is not authorized to work in the country where the work is performed for the purpose of performing the applicable portion of the Services.

4.11.2 The Supplier shall, and shall cause its subcontractors to, comply with its background and investigation policies prior to allowing any of its employees to work on or around Customer Group property or facilities or any access to Customer Data during the Term, to the fullest extent permitted by applicable law or government regulation and local norms and practice in the relevant jurisdiction. Subject to the foregoing, Supplier's background and investigation policies shall be no less rigorous than the Customer's or its Affiliates' Policies listed on the "Customer Policies" Schedule and provided to the Supplier.

4.12 Export & Immigration

4.12.1 Each Party will comply with U.S. export control and sanctions laws and regulations with respect to the export or re-export of U.S. origin goods, software and technical data, or the direct product(s) thereof, and each Party agrees to abide by all such laws and regulations in respect of all information supplied by or on behalf of the other Party.

4.12.2 The Supplier agrees, at its cost and expense, to (i) obtain all necessary passports, visas and other immigration documents for its and its subcontractors' employees and agents to enter and/or exit, and perform the Services in, the United States and/or any other jurisdiction required pursuant to the Agreement, (ii) perform all related actions necessary for its employees and agents to enter, and perform the Services in, the United States and any other jurisdiction required pursuant to the Agreement, and (iii) otherwise comply with all applicable laws and regulations relating to immigration in such jurisdiction(s). Unless mutually agreed in writing to the contrary, the Supplier shall be responsible for the costs of compliance with applicable immigration laws and regulations with respect to the Supplier's performance or provision of any Services in any country in which the Supplier performs the Services.

4.13 Supplier Abandonment

4.13.1 The Supplier shall not commit an "Abandonment." "Abandonment" means the threatened or actual intentional refusal by the Supplier to provide or perform any non-trivial element(s) of the Services, or any Services that could have a significant operational impact on the business operations of any member of the Customer Group, in breach of the Supplier's obligations under the Agreement (including without limitation Supplier's obligations in Section 16.4 (Continued Performance). The following shall not be deemed to be an Abandonment: (i) lawful cessation of the Services or termination of this Agreement (or part thereof) by the Supplier consistent with the terms of the Agreement; or (ii) Supplier's inability to perform, because of acts or omissions of members of the Customer Group or their agents.

However, an Abandonment shall not permit the Customer to exercise its rights pursuant to Section 4.13.2 until: (i) such Abandonment by the Supplier is expressly confirmed by the Supplier Account Executive or a more senior Supplier executive; and (ii) such confirmation is evidenced (A) in a writing originated by the Supplier Account Executive or more senior Supplier executive expressly confirming the Abandonment, or (B) by the failure of the Supplier Account Executive or more senior Supplier executive to provide to the Customer a good faith definitive denial in writing certifying that the Supplier has not committed an Abandonment, within one (1) day after the Customer delivers a written notice to the Supplier alleging an Abandonment by the Supplier pursuant to Section 17.11 (Notices). This Section 4.13 (Supplier Abandonment) shall not prohibit or impair the Customer's rights to pursue and obtain any other remedy for the Abandonment, including injunctive relief for specific performance or otherwise, without the benefit of the rights granted to the Customer in Section 4.13.2.

4.13.2 If the Supplier commits an Abandonment, the Supplier agrees that the Customer will be irreparably harmed, that money damages alone will be insufficient to make the Customer Group whole, and that without any additional evidence or findings of irreparable injury or harm, the Customer shall be entitled to apply to a court of competent jurisdiction for and be granted an injunction compelling specific performance by the Supplier of its obligations under the Agreement without the necessity of posting any bond or other security. Provided the Customer follows the appropriate procedural requirements, the Supplier agrees not to oppose any such application for injunctive relief by the Customer except on the following grounds: (i) to require that the Customer establish that the Supplier has committed an "Abandonment," and (ii) to assert any defenses the Supplier may have in response to the Customer's allegation of the elements of Abandonment, including asserting that the Customer has not complied with Customer's obligations under the Agreement resulting in facts and circumstances permitting the Supplier under the terms of the Agreement to refuse to perform any of the Services. Notwithstanding the foregoing, nothing in this Section 4.13 (Supplier Abandonment) will impair Supplier's right to exercise in good faith its right to terminate the Agreement in accordance with Section 12.2 (Termination by Supplier).

4.14 Absence of Liens

Supplier shall keep the real, intangible, intellectual, and personal property of the members of the Customer Group free and clear of all liens or lien claims, including any resulting from a failure by Supplier to comply with its obligations with respect to Supplier personnel. Should any lien or lien claim be asserted for any reason, Customer may at its sole discretion (i) pay the amount of such lien or lien claim, and/or (ii) require Supplier to obtain a properly executed release of lien satisfactory to Customer.

5. TRANSITION/TRANSFORMATION/INTEGRATION

5.1 The Transition/Transformation/Integration Plan

5.1.1 For certain outsourced Services, as designated in the applicable Statement of Work, the Supplier and the Customer will develop and agree upon a "Transition/Transformation/Integration Plan" according to the processes and methodologies described in the "Transition/Transformation/Integration Services" Schedule and the "Transition/Transformation/Integration" portion(s) of the applicable Statement of Work. The Supplier shall perform the tasks as specified in such Plans.

5.1.2 The Customer shall have the right to monitor, test and otherwise participate in the development, configuration, implementation, acceptance and deployment of the Services and training of the Authorized Users of the Services. The Supplier shall promptly notify the Customer if such monitoring, testing or participation has caused (or in the Supplier's reasonable opinion may cause) unreasonable delay or disruption in any of these activities and cooperate with the Customer to prevent or mitigate any such delay or disruption.

5.1.3 The Customer shall have the right to temporarily suspend the implementation of the "Transition/Transformation/Integration Plan" for a Statement of Work if the Customer reasonably believes that (a) Supplier is responsible for failing to fulfill the requirements set out in the Plan referenced in Section 5.1.1, (b) Supplier's activities under such Plan is not on schedule as set forth in such Plan, or (c) that the activities under the Plan are otherwise causing a material disruption in the Customer's business environment and/or degrading the Services. In each such case, (i) the Customer shall give Supplier written notice describing such concerns in reasonable detail, (ii) the Customer shall provide Supplier with a reasonable opportunity to address such concerns and (iii) Supplier shall use Commercially Reasonable Efforts to resolve such concerns as promptly as practicable, but in any event no later than seven (7) days after receipt of the Customer's notice. If Customer decides to delay implementation of the Plan, then (x) any milestone dates directly attributable to such delay may also be correspondingly delayed, (y) Supplier will not be liable for Service Level or Critical Deliverable failures directly relating to such delay or any resulting Service Level Credits or Deliverable Credits, and (z) Supplier may recover any incremental costs reasonably incurred by Supplier proximately caused by such delay. Supplier and Customer shall each make commercially reasonable efforts to mitigate any incremental costs due to such delay. For clarity, any suspension by Customer for the reason set forth in clause (c) above shall not be considered Supplier's failure if Supplier has in all material respects performed in accordance with the Plan and the Agreement.

5.1.4 The Customer will cooperate with the Supplier in implementing the Transition/Transformation/Integration Plan for each Statement of Work by providing the personnel (or portions of the time of the personnel) as set forth in the Transition/Transformation/Integration Plan and performing the tasks described for the Customer as and on the timelines set forth in the Transition/Transformation/Integration Plan.

6. GOVERNANCE

6.1 Relationship Management and Contract Governance Model

6.1.1 The Supplier acknowledges that it is a key business requirement of the Customer that the Supplier provide the Services in a consistent, integrated manner across all elements of the Services and attendant geographies. To meet that requirement, the Parties shall adhere to the relationship management and contract governance model and processes as described in the "Governance" Schedule and the applicable governance provisions set forth in the applicable Statement of Work.

6.1.2 The Supplier organization responsible for the Supplier's relationship with the Customer and delivery of the Services shall be led by the Supplier Account Executive (as defined in Section 7.1 (Supplier Account Executive)), whose counterpart will be the "Customer Account Executive". The Supplier Account Executive will serve as the primary point of contact with the Customer Account Executive.

6.1.3 The Supplier Account Executive and the Customer Account Executive shall be supported by additional Supplier and Customer personnel, whose roles and responsibilities are set forth in the "Governance" Schedule and the applicable governance provisions set forth in the applicable Statement of Work.

6.1.4 The Supplier shall designate one or more Supplier Service Delivery Manager(s) for each Statement of Work who will be assigned full-time or part-time as specified in the Statement of Work and who will have responsibility, working under the direction of the Supplier Account Executive, for the successful completion and delivery of the Services under such Statement of Work. The Customer shall also designate a Customer Contract Manager, who shall be the counterpart for the Supplier Contract Manager(s), in the applicable Statement of Work.

6.1.5 As part of the governance process set forth in the "Governance" Schedule and the applicable governance provisions set forth in the applicable Statement of Work, the Customer may request the Supplier to develop and deliver to the Customer annual and quarterly financial objectives, budgets and performance goals related to the Services and upon mutual agreement, the Supplier shall timely prepare and deliver such financial objectives, budgets and performance goals to Customer.

These objectives, budgets and goals will be subject to review and approval by the Customer before incorporation into the Supplier's working plans.

6.1.6 At least once every Contract Year, or on request after fifteen (15) days' notice from Customer, Supplier shall meet with representatives of Customer to (i) provide such training and Documentation as Customer may require for Customer to understand and operate the Systems, (ii) explain how the Services are provided, and (iii) explain how the Systems work and should be operated.

6.1.7 With respect to each Statement of Work, Supplier shall conduct a customer satisfaction survey. All surveys shall be conducted twice (2x) per year in accordance with Supplier's standard survey cycle. Customer may request additional surveys at its cost and expense. The survey shall at a minimum, cover a representative sampling of the Authorized Users and senior management of Customer in each case as specified by Customer. The timing, content, scope, and method of the survey shall be consistent with the customer satisfaction survey set forth in the "Governance" Schedule. Supplier agrees that (i) increased measured satisfaction within Customer shall be a key performance incentive for the compensation of the Key Supplier Personnel and (ii) Customer's satisfaction shall be measured as a Service Level under each Statement of Work as set forth in such Statement of Work.

6.2 Meetings

The Parties shall determine an appropriate set of meetings to be held between their representatives, which shall include at least a monthly meeting with the Supplier Account Executive and the Customer Account Executive. The Supplier shall prepare and circulate an agenda sufficiently in advance of each such meeting to give participants an opportunity to make any adjustments as may be required by the Customer and to prepare for the meeting. The Customer will chair all such meetings. The Supplier, in consultation with the Customer, shall prepare and circulate minutes promptly after each meeting. The Supplier, in consultation with the Customer, will make such changes to the agenda and the minutes as the Customer may request.

6.3 Procedures Manual and Central Knowledge Database

6.3.1 The "Procedures Manual" for each Statement of Work shall comply with the "Procedures Manual" Schedule and shall be suitable for use by the Customer to understand the Services and the Supplier's organization, resources, methods, procedures and processes for performing, providing, delivering, administrating, tracking, reporting on and managing the Services and both Parties' obligations under the Agreement.

6.3.2 The Procedures Manual(s) shall be prepared, reviewed, finalized and agreed by the Parties in accordance with the Transition/Transformation/Integration Plan for the applicable Statement of Work. The final Procedures Manual(s) for each Statement of Work shall be subject to the written approval of the Customer.

6.3.3 The Supplier shall update the Procedures Manual(s) for each Statement of Work promptly or as close to a near real-time basis as commercially reasonable to reflect changes in the operations or procedures described therein or any of the components thereof and, in the absence of any such changes, not less frequently than on a calendar quarterly basis during the applicable SOW Term. The Supplier shall perform the Services under each Statement of Work in accordance with the most recent Customer-approved version of the Procedures Manual(s) for that Statement of Work. Subject to the requirements of Section 6.4 (Approval of Changes; Change Control Process) the Procedures Manual(s) shall be considered an operational document that the Supplier Account Executive and the Customer Account Executive may revise by mutual written agreement without the need to amend the Agreement.

6.3.4 The Supplier shall implement, maintain, operate and update a Central Knowledge Database that shall be accessible to the Customer and any other Authorized Users designated by the Customer. The Supplier shall ensure that the Central Knowledge Database at all times contains the then-current version of the Procedures Manual(s) and all other Documentation and Specifications. The Supplier shall deliver, and otherwise make available to the Customer, the Procedures Manual(s), and all other Documentation, Specifications and Service Information in an electronic manner and format that is useable and modifiable by the Customer.

6.4 Approval of Changes; Change Control Process

6.4.1 The Parties will follow the "Change Control Process" defined and described in the "Governance" Schedule to manage Changes to the Services including the information technology environments used to provide the Services. "Change" means the addition, modification or removal of any aspect of the Services and/or the information technology environments used to provide the Services and/or the technology architecture of the Services, including any modification to the way in which Personally Identifiable information is Processed. All Changes to the Services, including all of those referenced in this Agreement, shall be reviewed pursuant to the Change Control Process (except as otherwise provided below in Sections 6.4.2 and 6.4.5).

The purposes of the Change Control Process are (i) to determine whether a Change to the Services and/or the information technology environment used to provide the Services is acceptable to both Parties and/or is included as part of the Services, (ii) to prioritize all requests for Changes, (iii) to minimize the risk of exceeding time and/or cost estimates associated with the Change by identifying, documenting, quantifying, controlling, managing and communicating Change requests, their disposition and, as applicable, implementation, and (iv) to identify the different roles, responsibilities and actions that shall be assumed and taken by the Parties to define and implement the Changes.

The Change Control Process covers activities from receipt of a request for a Change to assessment, scheduling, implementation and post-implementation review. The Change Control Process will produce approval or other action with respect to any proposed Change. Notwithstanding any other provision in the Agreement, the Supplier shall promptly agree to make and shall actually make each of the Changes to the Services (including change and/or modifications to its performance and/or delivery of the Services) requested by the Customer described in Section 4.8 (Compliance with Laws, Regulations and Policies) within a reasonable period of time (not to exceed any time period or implementation period agreed upon by the Parties, imposed by law, rule or regulation, provided that the Supplier has been given reasonably sufficient time to implement any such Change). The Supplier shall not carry out and has no obligation to perform any such Change that is not approved by the Customer pursuant to a Change Request or an Amendment.

6.4.2 If a Change would result in a change to the terms and conditions of the Agreement, then such Change must be made as an Amendment pursuant to Section 17.2 (Entire Agreement; Updates; Amendments and Modifications). Changes to (i) the scope of Services, (ii) the Supplier's Fees, charges or financial responsibilities under the Agreement, or (iii) the manner in which Services are performed shall be made as a Change Order. Without limiting the foregoing, the Supplier shall obtain the prior written agreement of the Customer for any Change in the manner in which the Supplier performs and/or delivers the Services that: (i) could have an adverse effect on the Services, including a deterioration in the functionality, scalability, quality or interruption of the Services or the Customer Group's ability to access the Services, or could cause the Services to fail to satisfy any Service Level or has not successfully satisfied the test/acceptance criteria for integration into the Services; (ii) could reasonably have an adverse effect on the manner in which the Services are performed; (iii) requires any member of the Customer Group to change the way it conducts its operations; (iv) increases Fees, financial responsibilities or the costs incurred by the Customer Group to receive and use the Services or otherwise; (v) involves technology refresh changes as described in the Agreement; (vi) involves any change in the Supplier Services Locations or in the Services elements performed at or from any of the Supplier Services Locations; (vii) could reasonably result in any decrease in the security or integrity of the operations or the Company Information of the Customer Group or in any modification to the way in which Personally Identifiable Information is Processed; (viii) could result in any change in the internal controls of the Supplier or its subcontractors applicable to the Services described in Section 3.4 (Records/Audits); (ix) involves any change in the use or operation of software provided by the Customer for use by the Supplier; or (x) involves New Services. Subject to the foregoing, Supplier may make operational changes or changes to the Supplier Systems.

6.4.3 The Customer will have the right to set priorities in scheduling work within the parameters established by the resources required to be provided by the Supplier pursuant to the Agreement and in a manner that will not cause the Supplier to fail to satisfy any Service Level or other performance standard or obligation under the Agreement.

6.4.4 If an approved Change would result in a Change that is not covered by Section 6.4.2 above, the Supplier Account Executive and Customer Account Executive (or their designees) may execute on behalf of the Parties a Change Request to effect such Change without the need to amend the Agreement.

6.4.5 Notwithstanding the foregoing, the Supplier may make an emergency change to the Services without the Customer's prior approval if required to ensure the uninterrupted delivery of the Services or any portion thereof or to minimize damage to the Systems and/or Customer Data. In each such event, the Supplier shall promptly (but in no event longer than twenty-four (24) hours after the decision to make such change), notify the Customer, orally and in writing, of such change, the time and date on which such change was implemented and the reasons(s) for such changes. If such change would have required Customer's prior approval under the Agreement, except for this emergency exception, then the Customer shall have the option to direct the Supplier to remove such change and the Supplier shall promptly remove such change and restore the Services as performed and/or delivered prior to such change.

6.5 Reports

The Supplier shall prepare and deliver to the Customer the reports and compilations set forth in the "Governance" Schedule and in the applicable Statement of Work.

7. SUPPLIER PERSONNEL

7.1 Supplier Account Executive

The Supplier shall appoint a person to serve as the Supplier's single point of accountability for the Services (the "Supplier Account Executive"). The Supplier Account Executive shall devote a sufficient portion of his or her work time and effort to his or her responsibilities for the provision of the Services to satisfy the Supplier's performance obligations for which he or she has management and oversight responsibilities. The Supplier Account Executive shall have the additional responsibilities described in the "Governance" Schedule. Supplier agrees that a meaningful portion of the Supplier Account Executive's performance evaluation shall include among other things, the Customer's satisfaction with the Services.

7.2 Review and Replacement of Personnel

7.2.1 Subject to the terms of the Agreement, the Supplier shall assign an adequate number of qualified Supplier personnel to perform the Services. The Statement of Work shall include minimum staffing levels and onshore/offshore staffing ratios that the Supplier shall be obligated to maintain during the SOW Term. Supplier shall report to Customer on at least a quarterly basis with respect to its compliance with these minimum staffing levels and onshore/offshore staffing ratios.

7.2.2 If the Customer determines that the level or quality of the performance of the Services is unsatisfactory and it is not in the Customer's best interests for any

Supplier or subcontractor employee to be appointed to perform or to continue performing any of the Services, the Customer may give the Supplier written notice to that effect and the Supplier will take prompt action, at no expense to the Customer, to remedy the situation to the satisfaction of the Customer. Promptly after its receipt of such a notice, the Supplier shall investigate the matters set forth in the notice and discuss with the Customer the results of the investigation. If following discussions with the Customer, the Customer decides that the individual be removed from the Customer's account not for an unlawful purpose, the Supplier will promptly do so and replace such individual with an individual of suitable ability and qualifications, with the Customer's approval.

7.2.3 Supplier shall regularly review the performance of the Supplier personnel providing Services to the Customer Group, taking into account any feedback or comments from the Customer Group. Supplier shall take all necessary actions regarding such personnel in order for Supplier to continue to perform in accordance with its obligations under the Agreement. Upon Customer's request, Supplier shall provide Customer with a remediation plan (which shall be subject to Customer's approval) in order to remedy any performance problems with the Supplier personnel. Following the adoption of any such remediation plan, Supplier shall promptly inform Customer of any employee-related steps taken by Supplier to improve or restore the quality of Services.

7.3 Key Supplier Personnel and Positions

7.3.1 The Parties may designate in a Statement of Work "Key Supplier Personnel" and "Key Supplier Positions."

7.3.2 The Supplier shall cause the Supplier Personnel who are "Key Supplier Personnel" or who occupy each of the "Key Supplier Positions" to devote a sufficient portion of their working time and effort to his or her responsibilities for the provision of the Services to satisfy the Supplier's performance obligations for which he or she has responsibility.

7.3.3 Notwithstanding the requirements of <u>Section 7.3.1</u>, the Customer may from time to time request an increase in the number of, and designate additional, "Key Supplier Personnel and Positions" upon written notice to the Supplier in connection with an increase in the Customer's consumption of the Services or the introduction of New Services. In such event, Supplier will use commercially reasonable efforts to satisfy such request.

7.3.4 Before the initial and each subsequent assignment of an individual to a "Key Supplier Position", the Supplier shall notify the Customer of the proposed assignment, introduce the individual to appropriate representatives of the Customer and provide the Customer with a resume and other appropriate information reasonably requested by the Customer. If the Customer objects to the proposed assignment, the Parties shall attempt to resolve the Customer's concerns on an agreed basis. If the Parties have not been able to resolve the Customer's concerns within five (5) business days, the Supplier shall not assign the individual to that position and shall propose to the Customer the assignment of another individual pursuant to the process described in this Section 7.3.4.

7.3.5 The Supplier will give the Customer, where reasonably possible, at least sixty (60) days advance notice of a change of the person appointed to a "Key Supplier Position". Where reasonably possible, the Supplier will arrange for the proposed replacement for an individual appointed to a "Key Supplier Position" to work side-by-side with the individual being replaced during the notice period to achieve an effective transfer of knowledge prior to the incumbent leaving his or her position. The Supplier shall not reassign or replace any person assigned to a "Key Supplier Position" more frequently than once in any rolling twelve (12) month period during the applicable SOW Term unless (i) the Customer consents to such reassignment or replacement, or (ii) the Supplier employee (A) voluntarily resigns from the Supplier, (B) is terminated by the Supplier, (C) is unable to work due to his or her death or disability, or (D) in good faith requests a transfer for personal reasons. Individuals designated as "Key Supplier Personnel" or filling "Key Supplier Positions" may not be transferred or re-assigned until a suitable replacement has been approved by the Customer, and no such re-assignment or transfer shall occur at a time or in a manner that would have an adverse impact on delivery of the Services. The Supplier shall establish and maintain an up-to-date succession plan for the individuals serving in "Key Supplier Positions" and share such succession plan with the Customer annually beginning with the Effective Date and annually thereafter on the first day of the new Contract Year.

7.3.6 The Supplier shall not assign any of its (i) Key Supplier Personnel or (ii) personnel assigned to Key Supplier Positions, to the account of any Customer Group Competitor while such personnel is performing any part of the Services and for a period of six (6) full calendar months after such personnel have ceased being identified as a Key Supplier Personnel or assigned to Key Supplier Positions.

7.3.7 The Customer and the Supplier agree that it is in their best interests to keep the turnover rate of the Supplier personnel to a reasonably low level. Accordingly, if the Supplier fails to meet the Service Levels persistently or continuously or there occurs any persistent or continuous degradation in the Supplier's performance of any non-trivial portion of the Services, and if the Customer reasonably believes such failure is attributable in whole or in part to the Supplier's reassignment, movement, or other changes in the personnel assigned by the Supplier to the performance and delivery of the Services and/or to the Supplier subcontractors assigned to the Customer service team, the Customer may notify the Supplier of such belief and the basis for such belief. Upon receipt of such notice from the Customer, the Supplier: (a) shall promptly provide to the Customer a written report setting forth the Supplier's position regarding the matters raised by the Customer in its notice; (b) shall meet with the Customer to discuss the matters raised by the Customer in its notice and the Supplier's positions with regard to such matters; and (c) shall take commercially reasonable efforts to modify or eliminate any the Supplier practices and/or processes identified as adversely impacting the performance and delivery of the Services. Nothing in this Section 7.3.7 shall be construed to be in lieu of or to otherwise affect the Supplier's obligation to meet the Service Levels and other performance requirements of the Agreement, or the consequences of the Supplier's failure to do so as set forth in the Agreement.

7.3.8 Supplier shall provide to Customer a turnover report for all Supplier personnel involved in performing the Services (shared resources and dedicated resources), on at least a monthly basis beginning six (6) months after the Effective Date.

8. RELATIONSHIP PROTOCOLS

8.1 Updating of Schedules to the Agreement

As needed, the Schedules (including their Addendums) to this Master Agreement and the Exhibits (including their Supplements) to the applicable Statement of Work shall be reviewed and updated by the Parties, prior to or concurrent with the implementation of each Change as described in Section 6.4 (Approval of Changes; Change Control Process), to accurately reflect the implementation of Changes agreed by the Parties and Changes permitted or required by the Agreement. If no such update has occurred during any Contract Year, the Supplier shall review and update them and present them to the Customer for its approval and agreement, by the last day of the first month after the end of such Contract Year in accordance with Section 6.4 (Approval of Changes; Change Control Process).

8.2 Required Consents

8.2.1 The Supplier shall have the management, administrative, financial and contractual responsibility for timely obtaining, or causing to be timely obtained, all Required Consents to secure any rights of use of or access to any assets owned, leased or licensed to the Supplier or any of its subcontractors used by the Supplier and/or its subcontractors to perform, provide and deliver the Services to the Customer Group and other Authorized Users as contemplated by the Agreement.

8.2.2 The Customer shall have management, administrative, financial and contractual responsibility for timely obtaining or causing to be timely obtained all Required Consents under the Third Party Contracts, including for the Supplier and its Affiliates and permitted Subcontractors and their personnel to use or access any assets owned, leased or licensed to the Customer Group under such Third Party Contracts to perform, provide and deliver the Services to the Customer Group as contemplated by the Agreement.

8.2.3 The Parties will fully cooperate in obtaining such Required Consents.

8.2.4 If a Required Consent is not timely and/or properly obtained or cannot be obtained on commercially reasonable terms, the Party responsible for the Required Consent shall identify and, subject to the other Party's prior approval, implement alternative approaches as necessary to provide the Services without such Required Consents. The Party responsible for obtaining the Required Consent will be responsible for the financial costs of such alternative approaches required by the failure to timely obtain such Required Consent.

8.3 Conflicts of Interests

The Supplier personnel providing Services to the Customer Group under the Agreement may perform similar services for others, subject to Sections 17.2.1 (No Solicitation), 7.3.2 and 7.3.6 (Key Supplier Personnel and Positions) and Article 11 (Confidentiality and Data). Moreover, the Supplier shall not use any of the Customer Data, Customer Provided Hardware, the Customer Software or the Third Party Contracts to perform services for others (including the Supplier), without the prior written consent of the Customer.

8.4 Non-Exclusive Agreement; Alternate Providers

8.4.1 The engagement of the Supplier by the Customer under the Agreement is non-exclusive. The Customer Group shall not be required to purchase any New Services from the Supplier. Notwithstanding any other provision of the Agreement, the Customer shall have the right to perform, on a temporary or permanent basis, internally or through a third party supplier ("Third Party Supplier"), services, tasks and/or activities that are the equivalent of any service, function, responsibility, activity or task, in whole or in part, related to the Services, or which would constitute a New Service under the Agreement. The Supplier shall in good faith cooperate with and provide reasonable support to the Customer and any Third Party Supplier, as requested by the Customer from time to time, to coordinate the Supplier's provision of such services, tasks and/or activities and the performance by the Customer and/or the Third Party Supplier of any such service, function, responsibility, activity or task. Subject to the requirements of Article 11 (Confidentially and Data) and the "Additional IP Terms" Schedule, such cooperation and support shall include, without limitation: (i) providing relevant information regarding the Services, and other information reasonably necessary to provide or perform such services, tasks or activities in a manner compatible with the Services; and (ii) providing reasonable access (both physical and electronic) to and use of architecture configurations of the Customer used to provide the Services. The Supplier shall provide the access and use, described in (i) and (ii) above, at agreed upon times and in a manner that does not result in unreasonable interference with the provision of the Services by the Supplier or the provision of other services by the Supplier to a third party. Incidental cooperation and support described above shall be provided by the Supplier as part of the Services and at no additional cost or expense to the Customer; provided, however, if Customer requires that the Supplier use personnel or other resources in addition to those then ordinarily used to provide the Services in the normal course of performing and providing the Services, then the Supplier shall promptly so notify the Customer of such facts and such additional personnel or resource allocation shall be a Change to the Services pursuant to Section 6.4 (Approval of Changes; Change Control Process).

8.4.2 The Supplier's obligations hereunder shall be subject to the Third Party Suppliers' execution of appropriate confidentiality agreements satisfying the requirements of Article 11 (Confidentiality and Data) and the "Additional IP Terms" Schedule.

8.4.3 If the Supplier reasonably determines in good faith that a Third Party Supplier's activities impair the Supplier's ability to meet the Service Levels or otherwise provide the Services in accordance with the Agreement, the Supplier will provide prompt written notice to the Customer of such determination. Subject to such determination, the Supplier shall be excused for its inability to meet the Service Levels or otherwise provide any of the Services to the extent, and only for the period, any such Third Party Supplier's activities directly impair the Supplier's ability to meet any Service Level or otherwise provide any of the Services in accordance with the Agreement.

8.4.4 The Supplier shall cooperate with the Third Party Suppliers, and the Customer shall use commercially reasonable efforts to cause the Third Party Suppliers to cooperate with the Supplier, to establish the root cause of any failure (i) by the Supplier to perform its obligations under the Agreement and (ii) by any Third Party Supplier to perform its obligations relating to the Customer (each such failure, a "Service Problem"). To the extent the root cause of a Service Problem falls within the responsibility of the Supplier or any of the Third Party Suppliers to correct, each shall provide to the others, as requested, reasonable assistance and support regarding the resolution of the Service Problem. Subject to the provisions of Section 8.4.3, in no event shall such assistance and support affect the overall allocation of responsibility between Supplier and the Third Party Suppliers regarding (a) the Supplier's performance of its obligations under the Agreement and (b) any Third Party Supplier's obligations relating to the Customer.

8.4.5 The Customer's responsibility pursuant to this Section 8.4 with respect to any Third Party Supplier shall be limited to using commercially reasonable efforts (including through appropriate contract provisions) to cause such Third Party Supplier to perform as specified in this Section 8.4. The Supplier shall advise the Customer of any failure by any Third Party Supplier to so cooperate, and to the extent adversely affected, the Supplier's performance shall be excused and the Agreement shall be appropriately adjusted as agreed to by the Parties.

8.5 Use of Subcontractors

8.5.1 The Parties will develop and prepare prior to the applicable SOW Effective Date a list of subcontractors that the Parties agree may be engaged by the Supplier to perform and deliver the portions of the Services indicated on such list (the "Listed Subcontractors"). The Supplier shall notify the Customer in writing, and obtain the Customer's prior written approval, of any proposal by the Supplier to delegate or subcontract a function, responsibility or task to a subcontractor that is not a Listed Subcontractor, or to reallocate any function, responsibility or task otherwise designated for a particular Listed Subcontractor: (i) that could reasonably have an adverse effect on the quality, timing, cost, consistency or performance of the Services, on the operations of any member of the Customer Group, on the security or integrity of the Customer Company Information or Facilities, or on the Customer Business as conducted by any member of the Customer Group; (ii) where the subcontractor will interface directly with any member of the Customer Group; or (iii) where the subcontractor will have access to any Customer Data.

The Supplier shall not delegate or subcontract any material function, responsibility, activity or task to any non-Listed Subcontractor or change any Listed Subcontractor without the prior written approval of the Customer.

Upon the Customer's request, the Supplier shall promptly provide to the Customer information regarding the proposed new or replacement subcontractors in order to permit the Customer to determine whether to grant its consent to such delegation or change or subcontract. Such information shall include the scope of the Services to be delegated, and the experience, financial status to the extent the Supplier has or can obtain such information, resources, and reason for selection of the proposed subcontractors. The Customer's decision whether to accept or reject any subcontractor candidate shall be solely in Customer's discretion. The Supplier shall not disclose any Company Information of the Customer Group to any subcontractor unless and until such subcontractor has agreed in writing to protect the confidentiality of such Company Information in a manner at least equivalent to that required of the Supplier by Article 11 (Confidentiality and Data).

Notwithstanding anything to the contrary in this Section 8.5.1, the Supplier may perform Services directly or, in accordance with the terms set forth herein, including Section 8.5.3 through its Affiliates, and performance of Services by the Supplier's Affiliates shall not be considered subcontracting for purposes of the Agreement. The Supplier may delegate functions, responsibilities, activities or tasks to the Supplier's or its Affiliates' shared services providers. Notwithstanding the foregoing, Supplier shall be responsible for the acts and omissions of its Affiliates (including Supplier's and Supplier's Affiliates' shared services providers) for all purposes under the Agreement to the same extent as if such acts or omissions were those of Supplier.

8.5.2 The Customer shall have the right to request that the Supplier replace a subcontractor if the Customer determines that it is no longer desirable for such subcontractor to continue to perform any part of the Services, and the Parties agree to work together in good faith to develop an appropriate transition plan for transitioning to another subcontractor and the timelines associated therewith.

8.5.3 The Supplier shall remain primarily liable for and obligated to the Customer (i) for the timely and proper performance of and compliance with all of its obligations under the Agreement, whether or not such obligations are delegated to its Affiliates and/or third party subcontractors, and (ii) for compliance with the requirements of the Agreement by any person or entity (and their employees, agents, and subcontractors) to which Supplier delegates or subcontracts any such obligations. The Parties' agreement to any Listed Subcontractor, or the Customer's consent to any new or replacement subcontractor, shall not in any way abrogate the Supplier's liability and obligation for subcontractors provided in this Section 8.5.3.

8.5.4 If any Affiliate or subcontractor of the Supplier performing any significant or important aspect of the Services becomes insolvent or is unable to pay its debts or enters into or files (or has filed or commenced against it) a petition, arrangement, application, action or other proceeding seeking relief or protection under the bankruptcy laws of the United States or any similar laws of the United States or any state of the United States or any other jurisdiction or transfers all or substantially all of its assets to another person or entity (an "Insolvent Subcontractor"), the Supplier shall (i) notify the Customer as soon after the Supplier receives notice of such event as is reasonably practicable and (ii) promptly take such steps required by the Customer to recover and protect Company Information in the possession of such Affiliate or subcontractor. Supplier shall reallocate the Services (or portions thereof) performed by such Affiliate or subcontractor to maintain continuous uninterrupted provision of the Services.

8.6 Approvals and Notification

For those areas of the Services where the Customer (a) has reserved a right-of-approval, consent or agreement, (b) is required to provide notification, and/or (c) is required to perform a responsibility set forth in the Agreement, and such approval, consent, notification or performance is delayed or withheld beyond the period provided in the Agreement, without authorization or right, and such delay or withholding is not caused by the Supplier and affects the Supplier's ability to provide the Services under the Agreement, the Supplier will be excused from any failure to provide such affected Services or to meet the Service Levels for any affected portion of the Services to the extent, but only to the extent, such failure is directly caused by such delay or withholding.

The period for such approval or notification shall be thirty (30) days unless another time period is otherwise agreed by the Parties or set forth in the Agreement. Supplier shall provide Customer with a list of pending approvals on a weekly basis.

9. CHARGES; INVOICES; PAYMENT; TAXES

9.1 Fees/Credits

9.1.1 The Customer shall pay to the Supplier the Fees as set forth in or determined in accordance with the "Pricing and Financials" portion(s) of the applicable Statement of Work together with the other amounts described in this Section 9.1. There are no Fees or other charges payable with respect to the Services or adjustments to the Fees or other charges, except those set forth in the Agreement. The Supplier shall promptly pay to the Customer or apply to the Fees all credits and other amounts payable by the Supplier to the Customer in accordance with the Agreement. Unless otherwise expressly specified in the Agreement, all references to payments or credits in the Agreement refer to payments or credits in

United States dollars and all payments and credits between the Parties pursuant to the Agreement shall be transacted in United States dollars.

9.1.2 Supplier shall be solely responsible for all due diligence necessary for Supplier's proper performance of the Services in accordance with the Agreement. Failure by the Supplier to carry out any such due diligence shall not be a basis upon which to increase the Fees or impose other charges, alter the applicable Service Levels or delivery dates, or refuse to provide, or to modify, any of the Services.

9.2 Invoicing and Payment

9.2.1 The Supplier shall invoice the Customer, and the Customer shall pay the Supplier, for the Services performed in accordance with this Agreement and the "Pricing and Financials" portion(s) of the "Pricing and Financials" Schedule and the applicable Statement of Work. Supplier shall submit invoices on a monthly basis in arrears no later than ten (10) days following the end of such month, or as set forth in the applicable Statement of Work. Customer shall pay all undisputed amounts within thirty (30) days after the date of receipt of Supplier's invoice. Supplier shall be entitled to charge interest at one percent (1%) per month on the undisputed overdue amounts commencing forty-five (45) days after the date of receipt of Supplier's invoice, unless other payment terms are agreed in the applicable Statement of Work.

9.2.2 Except as expressly set forth in the Agreement, costs and expenses relating to the Services (including all costs and expenses related to the acquisition, maintenance and enhancement of the Supplier's Software and Equipment) are included in the Fees as set forth in the "Pricing and Financials" portion(s) of the applicable Statement of Work and shall not be charged to or reimbursed by the Customer unless otherwise set forth in such portion(s) of the "Pricing and Financials" Schedule and the Statement of Work (*e.g.*, in financial responsibility matrices).

9.2.3 Any unused credits against future payments owed to either Party by the other under the Agreement existing upon the expiration or termination of the Agreement shall be paid to the applicable Party within thirty (30) days of the earlier of the expiration or termination of Agreement.

9.2.4 The Supplier shall render one or more invoices for the Fees incurred in each month in an electronic format or other format as approved or designated by the Customer from time to time. All such invoices shall be sent to Customer's Account Manager and Vice President of Accounting & Corporate Controller, unless otherwise specified under the applicable Statement of Work. Each invoice shall set forth the Fees and show such details as reasonably specified by the Customer so as not to materially impact Supplier's cost in producing such invoice, including:

(a) The calculations utilized to establish the Fees;

(b) Identification of all Pass-Through Expenses for the month to which the invoice corresponds;

(c) Identification of the amounts of any taxes the Supplier is collecting from the Customer;

(d) Such other details and billing information as is necessary to satisfy the Customer's internal accounting and charge back requirements, including as necessary to allow the Customer to accurately allocate the Fees by legal entity, business unit, department and project; and

(e) All as may be reflected in mutually agreed forms of invoice for particular Statements of Work.

9.2.5 The Supplier shall use Commercially Reasonable Efforts to (i) identify and obtain invoices for any Pass-Through Expenses that a third party vendor does not provide to the Supplier in a timely manner, and (ii) ensure that all Pass-Through Expenses incurred in the month corresponding to each invoice are included in such invoice. The Supplier shall report each month to the Customer on the status of late third party vendor invoices and the Supplier's efforts to obtain them.

9.2.6 With the exception of taxes which are Customer's responsibility under Section 9.3, the Supplier shall not invoice the Customer, and the Customer shall not be obligated to pay, any Fees that are not properly invoiced within ninety (90) days after the end of the month to which such Fees correspond or the relevant delivery, acceptance, Milestone or other billable event (as appropriate).

9.2.7 The Supplier shall be financially responsible for any late charge, interest or similar amount contractually due with respect to any Pass-Through Expense that is not properly submitted to the Customer within ninety (90) days after the end of the month in which the Supplier receives a proper and accurate invoice for such Pass-Through Expense.

9.3 Taxes

9.3.1 The Fees described in Section 9.1 (Fees/Credits) to be paid by the Customer are inclusive of all taxes and fees imposed by any governmental entity, other than taxes described in Section 9.3.2, including but not limited to all income, sales, use, gross-receipts or value-added, excise, personal property, real property, intangibles or other similar taxes based upon or measured by: (i) the Supplier's cost in acquiring or providing Equipment, materials, supplies or services furnished to or used by the Supplier in providing and performing the Services (but excluding any such items resold to Customer); (ii) the value or cost or use of all the Supplier Equipment, the Supplier Software and other the Supplier resources however described; and (iii) the Supplier's revenues, income and/or profit. Each Party shall bear sole responsibility for all taxes, assessments and other real or personal property-related levies on its owned or leased real or personal property, for income, franchise or similar taxes on its business, for employment taxes on its employees, and for intangible taxes on property it oXYZ, leases or licenses.

9.3.2 In addition to the Fees, Supplier may charge, and Customer shall pay, any applicable value-added, sales or use, excise, goods and services, consumption, service or like taxes and duties that are imposed on the sale of the Services provided under the Agreement, which are imposed on either Party. Customer will reimburse Supplier for any deficiency relating to taxes that are Customer's responsibility under this Section 9.3.2. If Customer provides Supplier with a valid duly executed resale or other tax exemption certificate, Supplier shall accept such certificate in good faith and will not charge Customer for any taxes covered by the certificate.

9.3.3 The Parties shall cooperate reasonably with each other in good faith to more accurately determine and reflect each Party's tax liability and to minimize such liability to the extent legally permissible. Each Party shall provide and make available to the other any resale certificates, residency certificates and other exemption certificates or information reasonably requested by either Party. The Parties will also work together to segregate the Fees, reimbursements, expenses and other amounts payable hereunder, into separate line items on each invoice, as appropriate, for Services and the components of the Services (i.e., components that are taxable and nontaxable, including those for which a sales, use or similar tax has already been paid by the Supplier and for which the Supplier functions merely as a paying agent for the Customer in receiving goods, supplies or services). Each Party will promptly notify the other, and cooperate with the other on, the response to a request for information or documentation for any claim for taxes asserted by a governmental authority for which such other Party is responsible hereunder.

9.3.4 Any tax imposed upon Supplier which is ultimately borne by Customer as a result of this Section 9.3.4 for which the Supplier ultimately recovers by way of a refund claim, VAT reclaim, legislative change or otherwise, shall be promptly refunded to Customer. Supplier shall use commercially reasonable efforts to seek refunds of all taxes paid to which this Section 9.3 may apply. Supplier agrees to cooperate reasonably with Customer and take action to seek a refund of taxes if Customer identifies taxes imposed upon Supplier, the cost of which has been born by Customer, for which a refund may be legally pursued.

9.3.5 Any Supplier Software and/or Deliverable that is Software (including any enhancements, upgrades or updates) and related documentation that the Supplier is obligated to deliver to the Customer under the Agreement shall be delivered by the Supplier to the Customer Group, at the election of the Customer, either (i) with the Supplier's advice and assistance, through electronic transmission or downloaded from the internet or other telecommunications network connection, or (ii) by installation by the Supplier on the relevant equipment with retention by the Supplier of all tangible media on which such software and documentation reside. The Supplier shall not transfer any tangible medium containing such software (including any enhancements, upgrades or updates) and documentation to the Customer Group at any time, for any reason under the terms of the Agreement, and the Supplier shall, at all times, retain possession and control of any such tangible medium used or consumed by the Supplier. To the extent that neither of the previous methods is commercially reasonable or technically practicable, before delivering the Supplier Software and/or Deliverable that is Software, the Parties will meet and agree on a solution that will meet the goals of this Section 9.3.5.

9.4 Tariffs, Duties and Import/Export Fees

Regardless of which Party provides the relevant products, software, data or technical information shall be responsible for all tariffs, duties and import/export fees with respect to the performance and/or delivery of the Services or any part thereof, outside of the country(s) where the Services are delivered to and used by the Customer Group. The Supplier shall also be responsible for such tariffs, duties and import/export fees and costs with respect to changes in the Services initiated by the Supplier that result in the performance of the Services or any part thereof outside the country(ies) where the Services are delivered to and used by the Customer Group.

9.5 Disputed Payments and Credits

9.5.1 In the event that either Party disputes the accuracy or applicability of a charge or credit, any set-off or any other financial arrangement described in the Agreement, the disputing Party shall notify the other Party of such dispute as soon as practicable after the discrepancy or dispute has been discovered. The Parties will investigate and resolve the dispute using the dispute resolution process set forth in Article 16 (Dispute Resolution). Any undisputed amounts contained in or applicable to an invoice or otherwise payable or creditable will be paid and any undisputed credit amounts will be promptly credited by the applicable Party. Unpaid or uncredited monies that are in dispute may be withheld and shall not be considered a basis for monetary default under or breach of the Agreement if withheld and/or paid in accordance with and as permitted under the Agreement. The Customer shall not dispute an invoice after ninety (90) days of the date of receipt of such invoice, provided, however, that nothing in this Section 9.5.1 shall in any way limit Customer's rights with respect to audits (and any discrepancies/recoveries relating thereto) contemplated under this Agreement.

9.5.2 Except as provided in Section 3.8.3 (New Services), neither Party shall withhold as disputed charges or credits more than fifty percent (50%) of the amount of any invoice; provided, however, this per invoice limitation shall not otherwise limit the aggregate amount of disputed charges or credits that may be withheld by either Party subject to Section 9.5.3 below or limit withholding from more than one (1) invoice.

9.5.3 The Customer shall be entitled to withhold as disputed charges up to six (6) months of Supplier charges under the applicable Statement of Work in the aggregate pursuant to this Section 9.5. The calculation of six (6) months of charges under Section 9.5.3 shall be based on the average aggregate monthly charges by the Supplier to the Customer under the applicable Statement of Work for the twelve (12) months preceding the date of each written notice by the Customer to the Supplier of the Customer's dispute and withholding of charges, or if twelve (12) months have not been invoiced, the average aggregate monthly actual charges that have been invoiced and the estimated charges to the Customer for the Services under the Statement of Work set forth in the "Pricing and Financials" Schedule and the "Pricing and Financial" portion(s) of the Statements of Work for the portion of the first twelve (12) months after Commencement Date that have not been invoiced. For the avoidance of doubt, each increase and decrease in the calculation of the months of charges authorized to be withheld under this Section 9.5.3, shall be effective on a prospective basis only. No such calculation shall date back or require an adjustment of previously disputed and withheld Supplier invoiced charges by the Customer. Amounts above the foregoing months of charges cap on disputed and withheld charges set forth in this Section 9.5.3 shall be paid by the Customer under protest, with all rights reserved.

Upon resolution of the dispute, the Parties shall pay the withheld amounts as agreed or otherwise determined within thirty (30) days of such agreement or other determination.

The portion of the Fees Customer is required to pay to the Supplier under this Section 9.5.3 shall not be withheld as a disputed amount. The portion of the Fees that Customer is not required to pay to the Supplier and is withheld by the Customer under this Section 9.5.3 shall not be considered a basis for monetary default under or breach of the Agreement if withheld and/or paid in accordance with and as permitted under the Agreement.

9.6 Gainsharing

Supplier shall propose, on a periodic basis, for Customer's review and approval, opportunities and recommendations relating to this Agreement that would enable Customer to reduce its Fees without adversely affected Service Levels or the Services ("Gainsharing Proposals"). The Gainsharing Proposals shall enable Customer to take advantage of (i) developments in the marketplace, (ii) improvements made available to other Supplier customers, and (iii) other developments that would enable Customer to achieve the foregoing objectives. In preparing the Gainsharing Proposals, Supplier shall actively review the Customer environment and marketplace trends and developments to identify opportunities for improvement. As part of such Gainsharing Proposals, Customer or Supplier may recommend that the proposals that the Parties jointly finance, upon to an amount to be agreed, the research and development of proposals that may result in specific Gainsharing Proposals. If any Gainsharing Proposals are implemented, the Parties shall agree on an equitable allocation of the costs of their implementation and benefits realized through such implementation.

9.7 Benchmarking

9.7.1 Beginning no sooner than two (2) years following each SOW Effective Date, and no more than once per year during the term of each Statement of Work, at the Customer's expense, the Customer may elect to have benchmarked, and engage a Benchmarker to benchmark, the Fees for the Services and Service Levels provided for one or more portions of the Services within such Statement of Work. The purpose and results of the benchmark process described in this Section 9.7 are to determine if the Fees for the selected Services and attendant Service Levels are competitive within a reference class of reasonably comparable customers ("Benchmark Process").

9.7.2 The Benchmark Process may be initiated by the Customer by giving at least thirty (30) days' prior written notice to the Supplier. The Customer shall in its notice designate the Benchmarker from among those listed in the "Listed Benchmarkers" Schedule. If any Benchmarker on the "Listed Benchmarkers" Schedule shall cease to provide such services, the Parties shall agree on the replacement to be added to the "Listed Benchmarkers" Schedule. If the Parties are unable to agree on a replacement, the Customer shall appoint a neutral third party who is not a Supplier Competitor to determine the identity of the replacement. The neutral third party shall have the obligation to select a replacement that has the capabilities to perform the Benchmark Process in accordance with the requirements of this Section 9.7. Notwithstanding the foregoing, Customer shall consider using or excluding any Benchmarker suggested for inclusion or exclusion by the Supplier, if the Supplier supports such suggestion with facts regarding the quality of such Benchmarker's processes, databases, work, work products and other performance attributes deemed relevant by the Supplier.

9.7.3 The Customer, the Supplier and the Benchmarker shall conduct the Benchmark Process according to the following methodology:

(a) The Benchmarker shall select a representative sampling of other outsourced arrangements that share substantially similar attributes with respect to size, scope and nature of overall services or components of the services, maturity and complexity of processes, degree of standardization, maturity of the technology environment, geographic scope of overall services or components of the services, quality standards and service levels, technology, contract terms (to the extent available to the Benchmarker) and payment and service level credit structure for the applicable Services under the Agreement ("Comparators"). There shall be eight (8) Comparators or such lesser number (but not less than five (5)) if the Comparator information available to the Benchmarker is comprised of a lesser number of Comparators. The Comparators shall include arrangements of at least four (4) different first tier, multi-national service providers (i.e., Supplier Competitors). The Benchmarker shall use an average of the Comparators after normalization. The Benchmarker shall eliminate the highest and lowest Comparators prior to calculating the average (the "Average of the Comparators"), e.g., if five (5) Comparators are used, the Benchmarker shall use the average of the middle three (3) Comparators. The Benchmarker shall make adjustments to the Comparators as necessary to permit a normalized comparison.

(b) For each Comparator used to calculate the Benchmark Results, the Benchmarker shall disclose to the Customer and the Supplier the demographic data (e.g., the total number of service Resource Units and/or other basis on which the fees are based, a general description of the quality of services and service environment and other similar data) reasonably required for the Parties to understand the basis upon which the Benchmarker determined that the Comparators chosen by the Benchmarker comply with the requirements set forth above. Due to the confidential nature of Comparator data and nondisclosure agreements to which such data may be subject, the Benchmarker shall not be required to disclose the name of the Comparators.

(c) The data used by the Benchmarker in the Benchmark Process will be reasonably current, i.e., based on services provided to the Customer and the Comparators no more than twelve (12) months prior to the start of the Benchmark Process.

(d) The Benchmarker shall compare each Comparator's contracted charges with the Supplier's contracted Fees with respect to the Services. The Benchmarker shall compare the applicable Fees and Service Levels with the Comparator's committed service levels for each element of the Services where such comparison is meaningful and objective.

(e) The Benchmarker shall use normalization techniques that the Benchmarker deems appropriate to use to make such adjustments. The Benchmarker shall fully explain its normalization techniques to the Supplier and the Customer. The normalization must determine and account for differences in the scope or circumstances of service delivery that impede a true "like for like" comparison. Consequently, the Benchmarker shall "normalize" the data used to perform the comparison in order to account for differences between the volume of services, scope of services, service levels, performance above and beyond the contracted obligations, complexity, degree of standardization, relevant terms and conditions, financing provided by the Supplier, deferred transition or other charges, asset purchases associated with the execution of the applicable Statement of Work, discounts upon purchases of other products or services, geographic locations and other relevant factors as determined by the Benchmarker and those same factors applicable to the entities comprising the Comparators.

(f) The Customer and the Supplier agree (i) that the Benchmarker shall conduct the Benchmark Process in accordance with the Benchmarker's own policies, methodologies, and practices as shared with the Parties and as may be modified only by agreement of the Parties within the thirty (30) day period following the Benchmarker's presentation of its policies, methodologies and practices, (ii) to consult with each other regularly and cooperate reasonably with the Benchmarker in the Benchmark Process activities, and (iii) that the Customer and the Supplier shall jointly serve as the Benchmarker's point of contact. Both Parties shall participate in any substantive discussions with the Benchmarker, receive copies of all written communications and have an opportunity to comment upon draft findings before issuance of the Benchmark Results.

(g) The Customer shall be permitted to disclose the applicable terms of the Agreement, including Service Levels and pricing information, to the Benchmarker. The Supplier shall not be obligated to disclose to the Benchmarker or any of the Supplier's cost information or any of the data of or concerning the Supplier's other customers.

(h) All information provided to and obtained from the Benchmarker shall be provided to both the Supplier and the Customer unless otherwise agreed by the Parties. Such information shall be deemed to be confidential information under the Agreement and shall be subject to the confidentiality agreement executed with the Benchmarker that contains disclosure and use restrictions as restrictive as those in Article 11 (Confidentiality and Data) of the Agreement.

9.7.4 The Benchmarker shall provide the Benchmarking data, analysis and findings, including any supporting documentation, to the Supplier and the Customer as appropriate throughout the Benchmark Process. The Benchmarker shall prepare the complete "Benchmark Results" (i.e., a normalized analysis of the Comparators' charges and the service levels to the Fees) promptly, but no later than ninety (90) days after the commencement of the Benchmark Process. If the Benchmarker is for any reason unable to complete the Benchmarking Process within the time period set forth in this Section 9.7.4, the Parties shall reasonably extend such period to allow the Benchmarker to complete the Benchmarking Process.

9.7.5 During the thirty (30) day period following delivery to the Customer and the Supplier of the Benchmark Results, the Customer and the Supplier shall in good faith: (i) discuss any appropriate adjustments to the Service Levels or Fees under the Agreement, and (ii) identify and resolve any disagreements or variances from the Benchmark Results. The Benchmarker shall respond to reasonable inquiries from the Supplier or the Customer with information reasonably necessary to confirm that the Benchmark Results were prepared in accordance with the requirements of this Section 9.7. Any deviation from these requirements shall be corrected by the Benchmarker before the Benchmark Results are considered final. The Parties and the Benchmarker will complete these activities, including any confirmation of the Benchmark Results, within thirty (30) days of the Benchmarker's initial delivery of the Benchmark Results to the Customer and the Supplier.

(a) The Parties shall meet and discuss the Benchmarking Results. If the Parties cannot in good faith using commercially reasonable efforts agree upon a reduction to the Fees based upon the Benchmarking Results, the Customer shall have the right to terminate the benchmarked Services, for the Customer's convenience and Customer shall only be obligated to pay seventy-five percent (75%) of the applicable Termination Charge and/or Wind Down Expense and any Fees payable for Services actually provided by Supplier prior to the effective date of termination.

(b) Any adjustment to the Fees agreed to by the Parties shall be made on a prospective basis effective on the first day of the first full calendar month occurring thirty (30) days after the Benchmark Results are delivered to the Customer and the Supplier by the Benchmarker.

9.7.6 Any Benchmarker shall agree in writing to be bound by the applicable confidentiality and security provisions specified in the Agreement. Each Party shall co-operate fully with the Benchmarker and shall provide reasonable access to the Benchmarker during such effort to permit Benchmarker to perform the Benchmarking.

9.7.7 Each Party shall provide, and the Supplier shall cause its subcontractors to provide, all necessary cooperation, information, documents and assistance reasonably required to perform the Benchmarking.

10. INTELLECTUAL PROPERTY RIGHTS

The Supplier and its subcontractors and the Customer Group and their contractors may develop, create, prepare, modify, personalize, currently possess, acquire or license certain Materials and other Intellectual Property such as computer programming code (including source and object code) and documentation, in connection with the Supplier's performance of the Services. The respective rights in such Materials and other Intellectual Property as between the Parties shall be as set forth in the "Additional IP Terms" Schedule, which shall be deemed to be incorporated in and a part of this Article 10 (Intellectual Property Rights) for all purposes under the Agreement.

11. CONFIDENTIALITY AND DATA

11.1 Company Information

Each Party may possess and may continue to possess information that has commercial value in such other Party's business and which is not in the public domain. Such information may have been discovered or Developed by such other Party or provided to it by a third party, and such other Party may hold property rights in such information by assignment, license or otherwise. For the purposes of this Article 11, neither the Supplier nor its Affiliates nor its or their subcontractors shall be considered contractors or subcontractors of the Customer or the Customer Group.

11.2 Obligations

11.2.1 The Parties will each refrain from unauthorized use, storage and disclosure, will hold as confidential and will use the same level of care to maintain the confidentiality and prevent misappropriation or dissemination of the other Party's Company Information as it employs to maintain the confidentiality and prevent misappropriation or dissemination of its own information of a similar nature, but in no event less than a reasonable standard of care in view of the scope of the Services, the obligations of the Parties under the Agreement (including the obligations of the Parties pursuant to Section 4.8 (Compliance with Laws, Regulations and Policies) and the policies listed in the "Customer Policies"

Schedule), the businesses of the Parties, the geographical coverages of the Services and the nature of the Company Information of each Party in the possession of the other Party. In no event shall a "reasonable standard of care" require less care or more stringent administrative, operational, organizational, technical and physical safeguards than the full and timely satisfaction by each Party of its express obligations pursuant to the applicable Statement of Work, Customer Policies or other, mutually agreed written policies or standards for particular services, functions, activities or classes of data, including Data Safeguards. However, the Parties may disclose to and permit use of the other Party's Company Information excluding Personally Identifiable Information, except with respect to disclosures made to contractors and subcontractors as described in subsection (B)(i) below that have a need to receive Personally Identifiable Information to support and/or provide the Services) to: (A) in the case of the Customer, (i) other members of the Customer Group and (ii) external regulators and examiners, tax auditors, or others with lawful enforcement and oversight powers over the members of the Customer Group; and (B) in the case of both Parties and the other members of the Customer Group, their respective legal counsel, auditors, investment and financial advisors, contractors and subcontractors where: (i) such disclosure and use is reasonably necessary, and is only made with respect to such portion of the Company Information that is reasonably necessary, to permit the Supplier and members of the Customer Group to perform their obligations or exercise their rights hereunder, for their respective contractors and subcontractors to support the Services to or on behalf of the members of the Customer Group, or for the Customer Group to use the Services to perform or have performed services substantially similar to or the same as the Services upon expiration or termination of the Agreement or any part(s) of the Services, or for their legal counsel, auditors, investment and financial advisors, and contractors to provide advice, counsel and services to the Customer Group in connection with the Agreement or the Customer Group's business affairs; (ii) such auditors, investment and financial advisors, contractors and subcontractors (but not their attorneys) are bound in writing by obligations of confidentiality, non-disclosure and the other restrictive covenants at least as restrictive and extensive in scope as those set forth in this Article 11 and Section 4.8 (Compliance with Laws, Regulations and Policies); and (iii) the Supplier and the Customer each assumes full responsibility for compliance with the confidentiality obligations under the Agreement by the persons and entities to which each makes disclosures of the other Party's Company Information no less than if the acts were those of the Supplier and the Customer, respectively. Notwithstanding the confidentiality obligations set forth in this Section 11.2.1, the Supplier's obligations with respect to the physical and electronic security of the Systems in which Customer Data is processed and stored are set forth in this Article 11 (Confidentiality and Data), Section 4.8 (Compliance with Laws, Regulations and Policies) and the policies listed in the "Customer Policies" Schedule.

11.2.2 The Supplier shall be responsible for compliance by its legal counsel, auditors and subcontractors with this Article 11 and the Customer shall be responsible for compliance by the other members of the Customer Group and its and their legal counsel, auditors, contractors and subcontractors with this Article 11.

11.2.3 Without limiting the generality of the foregoing, neither Party will publicly disclose the other Party's Company Information, including, without limitation, the substantive or material commercial terms of the Agreement or the substantive positions of the Parties in the negotiation of the Agreement, except to the extent permitted by this Article 11 and/or to enforce the terms of the Agreement, without the prior written consent of the other Party. Neither the Supplier nor the Customer will acquire any right in or assert any lien against the other Party's Company Information, and/or refuse to promptly return, provide a copy in the format requested of, or destroy such Company Information upon the request of the disclosing Party, except as permitted in the Agreement.

11.2.4 Notwithstanding any other provision of the Agreement, neither Party nor the persons and entities to which a Party makes authorized disclosures of the other Party's Company Information shall be restricted in disclosing and using in connection with its business operations any business process, data processing or network management ideas, concepts, know-how, techniques or experience, including processes, methods, techniques and concepts developed, conceived or acquired by either Party, its Affiliates or their respective contractors and subcontractors in the course of the performance of the Agreement and the performance and use of the Services, to the extent authorized in this Agreement or which are retained in the unaided memories of employees who have had access to the other Party's Company Information (without reference to any physical or electronic embodiment of such information and without deliberate memorization for the purposes of reuse under this Section 11.2.4), unless such disclosure and/or use (i) shall infringe any of the other Party's (or in Customer's case, also the other Customer Group members') (or in Supplier's case, also its Affiliates' and its Subcontractors') Intellectual Property Rights, (ii) shall constitute a violation by the Supplier, a member of the Customer Group, and/or their respective contractors or subcontractors or their respective employees, of any applicable law, (iii) shall involve the unauthorized use, disclosure or reproduction of any Personally Identifiable Information, or (iv) shall involve any element of any advice and/or recommendations provided to any member of the Customer Group by the Supplier and/or any of its Affiliates and for which a member of the Customer Group paid a fee or other consideration to Supplier and/or its Affiliates.

11.3 Exclusions

Notwithstanding the foregoing and excluding Personally Identifiable Information, this Article 11 and the provisions of any other contract, agreement or similar document, however described, between the Parties and/or other members of the Customer Group regarding either Party's Company Information, shall not apply to any information which the Supplier or the Customer can demonstrate was or is: (a) in the public domain at the time of disclosure through no fault of the receiving Party; (b) published or otherwise becomes part of the public domain after disclosure through no fault of the receiving Party; (c) in the possession of the receiving Party at the time of disclosure other than as a result of a breach of duty owed to the disclosing Party; (d) disclosed to it by a third party who had a lawful right disclose such information without a breach of duty owed to the disclosing Party; (e) independently developed by the receiving Party without reference to or use of the disclosing Party's Company Information; or (f) a publicly accessible graphical user interface or other screen display that appears on monitors and provides user/operator interfaces to the Services (but not any underlying code). Further, either Party may disclose the other Party's Company Information to the extent required by law or order of a court (including, without limitation, the Bankruptcy Court) or governmental agency or the rules of the New York Stock Exchange, the NASDAQ Stock Market or similar national stock exchange. However, except as provided in Section 11.2, in the event of disclosure pursuant to an order of Court or governmental agency, and subject to compliance with law or such order of Court or governmental agency, the recipient of such Company Information shall give the disclosing Party prompt notice to permit the disclosing Party an opportunity, if available, to obtain a protective order or otherwise protect the confidentiality of such information, all at the disclosing Party's cost and expense. After such notice, and upon the disclosing Party's request, the other Party shall use Commercially Reasonable Efforts to obtain confidential treatment under freedom-of-information or similar laws for any Confidential Information otherwise required to be disclosed. The receipt of Company Information under the Agreement will not limit or restrict assignment or reassignment of employees of the Supplier and the Customer Group within or between the respective Parties and their Affiliates.

11.4 Data Ownership

11.4.1 All Customer Company Information (including, without limitation, the Customer Data, records and reports related to the Customer Group and the Customer Business) whether in existence at the Effective Date, any SOW Effective Date, any Commencement Date and/or compiled thereafter in the course of performing the Services, shall be treated by the Supplier and its subcontractors as the exclusive property of the Customer or other member of the Customer Group and the furnishing of such Customer Company Information, or access to such items by, the Supplier and/or its subcontractors, shall not grant any express or implied interest in such Customer Company Information to the Supplier and/or its subcontractors, and the Supplier's and its subcontractors' use of such Customer Company Information shall be limited to (i) such use as is necessary to perform and provide the Services, and such other receipt and use as permitted under the Agreement and/or (ii) by the licenses expressly granted hereunder to the Supplier. Upon request by the Customer at any time and from time to time and without regard to a Party's default under the Agreement, the Supplier and/or its subcontractors shall promptly deliver the Customer Company Information to the Customer (including, without limitation, all Customer Data, other data, records and related reports regarding the Customer Group and the Customer Business) in electronic format and in such hard copy as exists on the date of the request by the Customer. All of the Supplier Company Information whether in existence at the Effective Date, any Commencement Date and/or compiled thereafter in the course of performing or receiving the Services, shall be treated by the Customer Group and its contractors as the exclusive property of the Supplier and the furnishing of such Supplier Company Information, or access to such items by the Customer Group, shall not grant any express or implied interest in the Customer Group relating to such Supplier Company Information, and the Customer Group's receipt and use of such Supplier Company Information shall be limited (i) to such receipt and use as permitted under the Agreement, including as necessary to receive and use the Services and/or (ii) by the licenses expressly granted hereunder to the Customer Group.

11.4.2 Customer may, in its sole discretion and at any time during the Term of the Agreement, suspend, revoke, or terminate Supplier's right to access Confidential Information upon written notice to Supplier. Upon receipt of such notice, Supplier shall (i) immediately stop accessing and/or accepting Confidential Information and (ii) promptly return or destroy according to the "Information Destruction and Return Requirements" described within the "Information Security Policy" set forth in the "Customer Policies" Schedule, at Customer's election, all Confidential Information and Customer Data in the possession of Supplier or Supplier's subcontractors, subject to and in accordance with the terms and provisions of this Agreement. In the event Customer exercises its rights pursuant to this Section 11.4, Supplier may be entitled to relief in accordance with Section 13.4 (Savings Clause/Dependencies). Notwithstanding anything to the contrary in the foregoing, each Party shall have the right to retain a copy of Confidential Information to the extent required for legal, regulatory, or other governmental compliance purposes provided that such retention is in accordance with the confidentiality requirements of this Agreement.

11.4.3 Customer reserves the right to monitor Supplier-maintained platforms that reside on the Customer network. Upon Customer's request, the Supplier shall provide an information feed from the Supplier-maintained platform to the Customer monitoring process.

11.5 Loss of or Unauthorized Access to Company Information; Intrusions

11.5.1 Upon determining that an unauthorized Processing or loss in violation of the Agreement of a disclosing Party's Company Information has occurred, the receiving Party will immediately notify the disclosing Party in writing. The Supplier will also notify the Customer immediately in writing upon learning of an event that could reasonably be expected to result in the unauthorized Processing or loss in violation of the Agreement of Customer Data, or to have a material adverse effect on the Services. The potential or actual compromise of Personally Identifiable Information is also subject to Section 11.6 below.

11.5.2 The Supplier will provide the Customer and its representatives with access to the Supplier's policies, processes and procedures, and descriptions of its systems relating to intrusion detection and prevention, with respect to the systems used by the Supplier to provide the Services for the purpose of assessing those systems, processes, policies and procedures in connection with unauthorized Processing or loss in violation of the Agreement of Customer Data. In connection with investigation of unauthorized Processing or loss, Supplier will comply with Customer's reasonable requests for information in addition to the foregoing summary.

11.6 Data Privacy

11.6.1 The Customer shall have the exclusive right to determine the means by which and the purposes for which the Customer Data is Processed, and nothing in the Agreement will restrict or limit in any way the Customer's rights or obligations as owner and/or controller of its data and information (including the Customer Data). The Supplier shall have access to and use of the Customer Data for the sole purpose of performing and providing the Services in accordance with the Agreement. The Supplier shall hold the Customer Data in strict confidence, and Process the Customer Data only on behalf of the Customer Group and only in accordance with the Customer's written instructions, the Agreement, the Data Protection Requirements and the Data Safeguards. The Supplier will notify the Customer in the event that the Supplier believes that the Customer's instructions concerning Customer Data would cause the Supplier to violate any Data Protection Requirements or Data Safeguards. The Customer and Supplier shall deem such notice the presentation of an Interpretative Issue pursuant to Section 4.8.4 and shall each take the actions described therein with respect to such potential or actual violation. Except for transfers agreed or approved by the Customer or described or contemplated in the Agreement or otherwise made pursuant to a Customer request or directive, the Supplier will not transfer Personally Identifiable Information to any location (including any Locations) unless agreed to in writing by the Customer.

11.6.2 The Supplier shall prepare the Data Safeguards and shall present the Data Safeguards to the Customer for its approval. The Customer Policies shall be deemed to be included in and a part of the Data Safeguards until such time that the Supplier completes and the Customer accepts the Data Safeguards. The Supplier shall at all times comply with and treat the Customer Data in accordance with the Data Protection Requirements and the Data Safeguards. Without limiting the generality of the foregoing, in no event may the Supplier: (i) use Personally Identifiable Information to market its services or those of a Supplier Affiliate or any third party; or (ii) sell or rent Personally Identifiable Information to any Supplier Affiliates or any third party.

11.6.3 The Supplier shall revise the Data Safeguards from time to time, to reflect and conform to (i) any changes to the Customer Policies made by the Customer in accordance with the Agreement and/or (ii) any modified or new, amended or re-interpreted Data Protection Requirements, but to the extent that such changes modifications, additions or interpretations constitute New Services, the Supplier will, at the Customer's request, perform such additional activities as New Services; provided, however, that the Customer shall not be obligated for any additional Fees with respect to any additional responsibilities imposed on the Supplier as a processor of data in the ordinary course of its business. The Supplier shall complete the revisions to the Data Safeguards and the implementation of the revised Data Safeguards as soon as commercially practicable after receipt of Customer's notice of such changes, modifications, additions or interpretations, but in any event within thirty (30) days of such notice. If the Supplier believes that the revisions to the Data Safeguards will take more than thirty (30) days to complete and implement, the Supplier will (a) provide the Customer with a written explanation why the revisions will take longer to complete and implement, (b) provide a completion and implementation plan that includes key milestones and deliverables, and (c) complete and implement the revised Data Safeguards within the time period required by any law, rule or regulation implementing the revised Data Protection Requirement. At the Customer's request, the Supplier will provide status updates (which the Customer may or may not require to be in writing) on the progress of the completion and implementation of the revised Data Safeguards.

11.6.4 The Supplier shall by an email to the Customer Account Executive and as otherwise provided in the Procedures Manual, promptly (but in any event within twelve (12) hours) upon learning of any of the following, inform the Customer in writing:

(i) of any request for access to any Personally Identifiable Information received by the Supplier from an individual who is (or claims to be) the subject of the data;

(ii) of any request for access to any Personally Identifiable Information received by the Supplier from any public official (including any data protection agency, law enforcement agency or government authority) except to the extent that such notice is prohibited by applicable law or order of a court or governmental agency; and/or

(iii) of any other requests with respect to Personally Identifiable Information received from the employees of the Customer Group or other third parties, other than the Customer Account Executive or any other Customer personnel who is not otherwise authorized to request such information.

The Supplier is not authorized to respond to these requests, unless explicitly authorized by the Customer except to the extent required by law or order of a court or governmental agency, in which case, the Supplier's response shall be subject to the provisions of the Agreement, including the provisions of <u>Section 11.3</u> permitting the Customer to seek a protective order and this <u>Section 11.6</u>.

11.6.5 When the Supplier ceases to perform Services for the Customer or upon request by the Customer, the Supplier shall return to the Customer all Personally Identifiable Information and any copies or at the Customer's option, the Supplier shall destroy all Personally Identifiable Information. However, if laws applicable to the Supplier do not permit such return or destruction, in whole or part, the Supplier shall retain such Personally Identifiable Information as required by such laws, shall maintain the continued confidentiality and security of such Personally Identifiable Information in accordance with the requirements of the Agreement, and shall not actively Process the Personally Identifiable Information for any purpose other than as required by the laws after termination of the Agreement.

11.6.6 If the Supplier disposes of any paper or electronic record containing Personally Identifiable Information, the Supplier must securely dispose of such records by taking all reasonable measures to prevent unauthorized access to or use of the Personally Identifiable Information in connection with its disposal, including making it unreadable, unreconstructable and indecipherable through any means and otherwise in accordance with the "Information Security Requirements Policy" set out in the "Customer Policies" Schedule. Upon the Customer's request, the Managing Director and Client Account Executive of the Supplier or a higher ranking executive will confirm in writing to the Customer that all forms of the required Personally Identifiable Information have been disposed of in compliance with this Section 11.6.6.

11.6.7 The Supplier shall operate, monitor, and periodically review a written information security management system (ISMS) that (i) is sufficient to comply with the Data Protection Requirements, and (ii) is designed and operating effectively so as to enable compliance with the Data Safeguards. The Supplier shall, at all Supplier Services Locations, implement, maintain, assess, monitor, and enforce compliance with, the Data Safeguards. Without limiting the foregoing, the ISMS will include (a) designated employee(s) to coordinate and be accountable for the ISMS, (b) regular and systematic assessments of information security risks and controls, (c) an information security awareness, education and training program, (d) an established vendor management process that includes information security-related due diligence, contracting prior to granting access to the Customer Company Information, and monitoring subcontractors' compliance with their contractual requirements, and (e) procedures that enable a quick, effective and orderly response to information security incidents. The Supplier will evaluate and adjust the ISMS in light of the ongoing assessments required by parts (b) and (c) above, any material changes to the Supplier's operations or business arrangements, or any other circumstances that the Supplier knows or has reason to know may have a material impact on the effectiveness of its ISMS or the Data Safeguards, provided that any material changes to the ISMS: (i) will not alter or modify the Supplier's ability to meet its obligations under the Agreement or alter the nature of any of the Services in a manner that is detrimental to the Customer Group; (ii) will not in any way weaken, compromise, or alter (a) the confidentiality and security of the Customer Company Information (including Customer Data), or (b) the Supplier's ISMS, Data Safeguards, and other security practices, protocols, and procedures; and (iii) will be in accordance with the Data Protection Requirements, and (iv) will be implemented at no additional cost to Customer.

11.6.8 In addition to the Supplier's obligations pursuant to Section 11.6.4, if the Supplier becomes aware (or reasonably suspects) that any Personally Identifiable Information, or any information or other material that can be used to access Personally Identifiable Information, has been compromised in any manner (each such event, an "Information Security Breach"), the Supplier shall immediately notify the Customer in writing and provide all requested information about the event. For purposes of this obligation, "compromise" should be read liberally to include, without limitation: (i) any unauthorized access to Personally Identifiable Information or any information or other material that can be used to access

Personally Identifiable Information; (ii) any inadvertent and unauthorized disclosure of Personally Identifiable Information to any third party; (iii) any known or suspected misuse of Personally Identifiable Information or any other information or other material that can be used to access Personally Identifiable Information by any person (even if such person was authorized to access the Personally Identifiable Information or such other information and materials); (iv) any suspected use of Personally Identifiable Information by any person outside of the scope of that person's authority (even if such use does not result in harm to the individual data subject); and (v) any known or suspected loss, alteration or destruction of Personally Identifiable Information other than as required (or permitted) by the Agreement in connection with the Services. At the Customer's discretion, the Supplier will: (a) investigate, remediate, and mitigate the effects of the Information Security Breach, which may require the Supplier to engage a forensics investigator; and (b) provide the Customer with assurances reasonably satisfactory to the Customer that such Information Security Breach will not recur.

If any Information Security Breach or other unauthorized access, acquisition, disclosure or use or loss of Personally Identifiable Information and the Customer determines that notification of governmental authorities or of individuals whose data were so affected should be provided (whether in the Customer's or the Supplier's name) or other reasonable remedial measures (including notice, credit monitoring services, identity restoration services, fraud insurance, and the establishment of a call center to respond to customer inquiries) are warranted taking into account the character of the Personally Identifiable Information involved, whether such information was encrypted or unencrypted, applicable legal and regulatory requirements and prevailing industry practices (the foregoing, collectively, the "Remedial Actions"), the Supplier will, at the Customer's request and at Supplier's cost and expense (unless the Supplier can demonstrate such Information Security Breach was caused by a member of the Customer Group or one of their agents or that Supplier has complied with all Data Protection Requirements, Data Safeguards, and other data privacy obligations under the Agreement), develop a plan, process and content for the Remedial Actions for the Customer's written approval, and undertake the Customer-approved Remedial Actions. By way of clarification, and without limiting the foregoing, the Customer shall determine and control, in its sole discretion, (i) whether notifications will be sent to individuals whose Personally Identifiable Information was or may have been compromised or put at risk, and (ii) the content of all such notifications.

11.6.9 The Supplier will provide each Supplier subcontractor handling or otherwise having access to Customer Data in connection with this Agreement with, and will cause each Supplier subcontractor to provide each of its employees handling or otherwise having access to Personally Identifiable Information in connection with this Agreement, with appropriate training regarding the Data Safeguards, the Data Protection Requirements and the ISMS.

11.6.10 The Supplier agrees to execute all documents required for processing and transmission of Personally Identifiable Information specified by Customer, including (i) entering into, with the Customer and any Customer Affiliate requested by the Customer, a data transfer agreement which incorporates the obligations of the Standard Contractual Clauses for Controller-to-Processor Transfers for the transfer of personal data (including Personally Identifiable Information) from the European Union to third countries, or a delegation agreement as provided under the Japanese Personal Information Law and any other equivalent data transfer agreement developed by the Customer for transfers of Personally Identifiable Information from any other country to the Supplier and from the Supplier to the Customer Group, and (ii) any certifications or sub-certifications requested in connection with the Customer's initial or ongoing annual self-certifications to the U.S. Department of Commerce relating to its adherence to the U.S.-EU Privacy Shield (or any successor thereto) principles. In furtherance to the compliance with the applicable regulations on personal data processing in the EU and, in particular, Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 which is applicable from 25 May 2018 (hereinafter "the General Data Protection Regulation", or "GDPR"), should the provisions of the GDPR be applicable in the provision of Services, the Parties agree upon the additional terms and conditions more specifically mentioned under the "GDPR Provisions" Schedule.

11.6.11 If Supplier intends to provide the Services from a Supplier Service Location that is shared with a third party or third parties that is, or are, Customer Group Competitors, then, prior to providing any of the Services from such Supplier Service Location, Supplier shall develop a process, subject to Customer's prior approval, to restrict access in any such shared environment to Customer Data so that Supplier's employees or agents providing services to such third parties do not have access to Customer Data.

11.7 Limitation

The covenants of confidentiality and other restrictive covenants set forth herein (i) will apply after the Effective Date to any Company Information disclosed to the receiving Party after the Effective Date, and (ii) will continue and must be maintained from the Effective Date through the termination of the Services and: (A) with respect to Trade Secrets, until such Trade Secrets no longer qualify as Trade Secrets under applicable law; (B) with respect to Confidential Information, for a period equal to the longer of five (5) years after termination of the Parties' relationship under the Agreement, or as long as required by applicable law; and (C) with respect to Personally Identifiable Information, in perpetuity. Neither Party will be responsible for the security of the other Party's Company Information during transmission via public communications facilities, except to the extent that any breach of security is caused by the failure of such Party to perform its obligations under the Agreement.

12. TERMINATION

12.1 Termination by the Customer

The Customer may terminate the Agreement and/or any Statement(s) of Work and/or any subpart(s) or components(s) of the Services for any of the reasons set forth in Sections

12.1.1 through 12.1.8. In the event of a termination for the reasons described in clause (ii) of the foregoing sentence, the Customer may also terminate any of the Services that are dependent upon or co-dependent with the affected Services or that do not make reasonable commercial sense for the Customer to continue to engage the Supplier to perform if the affected Services are terminated.

Subject to the foregoing, the Customer may terminate as follows:

12.1.1 For breach and cause if there exists: (i) a breach by the Supplier of Article 11 (Confidentiality and Data); (ii) an Operational Default (if any such default has been expressly identified in the relevant Statement of Work); (iii) an Abandonment; (iv) the occurrence of a Service Level Termination Event; or (v) any other material breach of the Agreement by the Supplier that remains uncured for thirty (30) calendar days after receipt of written notice thereof from the Customer. The Customer must exercise its right to terminate the Agreement or affected portion of the Agreement in the event of an Operational Default no later than ninety (90) days after such Operational Default. In addition, the Customer is authorized to terminate the Agreement or any affected portion of the Agreement pursuant to Section 3.3 (Disaster Recovery Services) and/or Section 3.4.11 or 3.4.12 (Records/Audits), each of which shall also constitute a termination for cause under this Section 12.1.1. The Customer shall not be obligated to pay any Termination Charge or Wind Down Expenses for a termination pursuant to this Section 12.1.1, but will remain responsible for payment for the Services (including the Termination/Expiration Assistance) through the effective date of the termination of the Services; or

12.1.2 For breach and cause if: (i) there exists a series of material breaches (including Operational Defaults) that are cured within the permissible periods, and/or a series of non-material or persistent breaches (including Service Level Defaults) by the Supplier and/or its Affiliates that in the aggregate have a material and adverse impact (A) on the provision to or use of all or any portion of the Services by the Customer Group and/or the Authorized Users or (B) the administration, management, planning, financial reporting or operations of the Customer Group or the Authorized Users; and (ii) after written notice by the Customer to the Supplier of its position that the condition described in (i) is developing or exists, the pattern of performance by the Supplier described in (i) above continues thereafter for the ensuing sixty (60) days. The Customer shall not be obligated to pay any Termination Charge or Wind Down Expense for a termination pursuant to this Section 12.1.2, but will remain responsible for payment for the Services (including the Termination/Expiration Assistance) through the effective date of the termination of the Services; or

12.1.3 For convenience, upon not less than one hundred twenty (120) days (or such other period as provided in the applicable Statement of Work) prior written notice of the effective date of such termination by the Customer to the Supplier. The Customer shall pay any applicable Termination Charges and Wind Down Expenses for a termination pursuant to this Section 12.1.3 on the effective date of the termination of the Services, as well as pay for the Services (including the

Termination/Expiration Assistance) through the effective date of the termination of the Services. To the extent some Services are terminated or reduced, Termination Charges, Wind Down Expenses, and other charges may be payable if so specified in any Statement of Work; or

12.1.4 Upon written notice to the Supplier if the Supplier or the Supplier Parent becomes insolvent or is unable to timely pay its debts or enters into or files (or has filed or commenced against it) a petition, arrangement, application, action or other proceeding seeking relief or protection under the bankruptcy laws of the United States or any similar laws of the United States or any state of the United States or any other jurisdiction or transfers all or substantially all of its assets to another person or entity. The Customer shall not be obligated to pay any Termination Charge or Wind Down Expense for a termination pursuant to this Section 12.1.4, but will remain responsible for payment for the Services (including the Termination/Expiration Assistance) through the effective date of the termination of the Services and all of the Wind Down Expense; or

12.1.5 In the event of a Change of Control of the Supplier or the Supplier Parent where Customer's reasonable concerns regarding the successor entity were not able to be mitigated to Customer's reasonable satisfaction after allowing Supplier and the successor entity a reasonable opportunity to do so, upon not less than one hundred twenty (120) days' prior written notice to the Supplier designating the date upon which such termination shall be effective, given not later than twelve (12) months after notice by the Supplier to the Customer of the occurrence of such Change of Control. The Customer shall not be obligated to pay any Termination Charge or Wind Down Expense for a termination pursuant to this Section 12.1.5, but will remain responsible for payment for the Services (including the Termination/Expiration Assistance) through the effective date of the termination of the Services and all of the Wind Down Expenses; or

12.1.6 Upon written notice to the Supplier in accordance with and under the circumstances set forth in Section 17.5 (Force Majeure). The Customer shall not be obligated to pay any Termination Charge or Wind Down Expense for a termination pursuant to this Section 12.1.6 other than payment for the Services (including the Termination/Expiration Assistance) through the effective date of the termination of the Services; or

12.1.7 Upon written notice to the Supplier: (i) if a change in Supplier Laws, laws applicable to members of the Customer Group or Customer Governmental Orders/Judgment makes the receipt and/or use of the Services by any member of the Customer Group unlawful or commercially unreasonable for any member of the Customer Group; or (ii) if the additional Fees for which Customer is responsible as a result of a change in Customer Laws pursuant to Section 4.8.2 exceed one-million dollars ($1,000,000) in the aggregate over the Term. The Customer (i) shall not be obligated to pay any Termination Charge for a termination pursuant to this Section 12.1.7 if resulting from a change in Supplier Laws, and (ii) shall pay all of the Wind Down Expenses for a termination pursuant to this Section 12.1.7 on the effective date of the termination of the Services if resulting from a change in laws applicable to members of the Customer Group or Customer Governmental Orders/Judgments. The Customer shall also be obligated to pay for the Services (including the Termination/Expiration Assistance) through the effective date of the termination of the Services; or

12.1.8 The Customer may terminate this Agreement for convenience by providing one hundred and twenty (120) day prior written notice if the Supplier (i) causes damages to the members of the Customer Group, and/or any third party beneficiary identified in Section 17.12 of more than seventy percent (70%) of any damages cap applicable to the Supplier under the Agreement, and (ii) the Supplier does not agree to a full reset of such damages cap upon the expiration of the Term of this Agreement (before any renewals and upon each renewal). The Customer shall only be obligated to pay seventy-five percent (75%) of the applicable Termination Charge and/or Wind Down Expense for a termination pursuant to this Section 12.1.8 on the effective date of the termination of the Services, as well as pay for the Services (including the Termination/Expiration Assistance) actually provided by Supplier through the effective date of the termination of the Services.

12.2 Termination by Supplier

In the event that the Customer (or the relevant member(s) of the Customer Group):

(a) fails to pay the Supplier properly invoiced, undisputed amounts in excess of one (1) month's Fees when due and payable; or

(b) fails to pay to Supplier any disputed amounts in excess of six (6) month's Fees owed in connection with a dispute or the resolution of the applicable dispute covered by and in accordance with Section 9.5.3, or

(c) intentionally infringes or misappropriates any of Supplier's Intellectual Property Rights; and

(d) fails to cure any such breach described in: (i) item (a) within forty-five (45) days after receiving notice from the Supplier of the failure; or (ii) items (b) or (c) above within thirty (30) days after receiving notice from the Supplier of the failure;

the Supplier may for breach and cause, by giving written notice of termination to the Customer after the foregoing cure period and prior to any cure by the Customer, terminate the relevant Statement(s) of Work as of a subsequent date specified in the notice of termination, subject to Section 12.3 (Termination/Expiration Assistance).

12.3 Termination/Expiration Assistance

12.3.1 The Supplier shall cooperate with the Customer Group, take and perform the activities described in the "Termination/Expiration Assistance" Schedule and in each applicable Statement of Work and assist the Customer Group in the orderly, uninterrupted transfer and migration of the Services without material interruptions (other than outages scheduled as part of an exit or migration plan) to one or more members of the Customer Group and/or one or more services provider(s) in connection with the expiration or earlier termination of the Agreement or any portion of the Agreement, for any reason, however described and at such other times as otherwise provided in the "Termination/Expiration Assistance" Schedule and in each applicable Statement of Work ("Termination/Expiration Assistance"). Unless otherwise agreed in a Termination/Expiration Assistance plan, the Supplier will continue to perform the Services during the Termination/Expiration Assistance period, and the quality of the Services and the Supplier's performance of its obligations under the Agreement, shall not be degraded during the Termination/Expiration Assistance period (provided there is no decrease by Customer in the resources allocated to perform the Services during such period and provided further that those resources are sufficient for performance of both usual Services and Termination/Expiration Assistance). The Term of the Agreement, and if applicable the SOW Term, shall not be deemed to have expired or terminated until the Termination/Expiration Assistance is provided. Upon the Customer's request, the Supplier shall provide, and shall cause its subcontractors to provide, Termination/Expiration Assistance commencing up to twelve (12) full calendar months (or such other period as may be agreed for particular Statements of Work or Services) prior to expiration or upon any notice of termination or of non-renewal of the Agreement or portion of the Agreement, or repatriation of all or portions of the Services to Customer or move to one or more Third Party Supplier(s), and continue to provide, and cause to be provided, the Termination/Expiration Assistance for up to twelve (12) full calendar months after termination or expiration for all and/or each such portion of the Services, as such period shall be noticed to the Supplier by the Customer from time to time upon not less than ninety (90) days' notice (provided that Customer may provide shorter notice in emergency or exigent circumstances).

The Customer may request from time to time, and the Supplier shall provide, the Termination/Expiration Assistance starting on the date requested by the Customer in a written notice to the Supplier given prior to the scheduled expiration of the provision of the Services, or subpart or component thereof, or if applicable, as requested by Customer upon or after notice of termination for any reason by either Party.

However, in the event the Customer is in default as set forth in this Section 12.3 with respect to the payment of Fees or other amounts payable by the Customer under the Agreement at the start of the Termination/Expiration Assistance, the Supplier shall not be required to provide Termination/Expiration Assistance unless the Customer cures such payment default and prepays the projected Monthly Fees for the Termination/Expiration Assistance in three (3) month increments during the period that the Termination/Expiration Assistance is provided by the Supplier.

Customer's withholding and/or set-off of monies in compliance with Section 3.4 (Records/Audits), and/or Section 13.5 (Set-Off) shall not be considered a failure by the Customer to pay amounts due and payable hereunder. Upon request by the

Customer from time to time, the effective date of any such expiration or termination shall be delayed (subject to the temporal limitations on the duration of Termination/Expiration Assistance set out in the first paragraph of this Section 12.3.1) pursuant to the terms and conditions of the Agreement and such period shall be considered a part of the applicable SOW Term(s). All such delays shall be used in determining the payment date and the amount of any applicable Termination Charge and/or Wind Down Expenses.

12.3.2 As part of Termination/Expiration Assistance, the Supplier shall: (i) provide such information as the Customer may reasonably request relating to the number and function of each of the Supplier's personnel who are employed or contracted by the Supplier to perform the Services under the Agreement, and the Supplier shall make such information available to potential successors as designated by the Customer; (ii) provide (upon request, and subject to express Termination/Expiration Assistance obligations in the relevant Statement of Work) additional non-proprietary information reasonably necessary to facilitate orderly reverse transition to Customer or a successor supplier of essentially similar services; (iii) not make any material change in the level of Service or number of employees assigned to perform functions for the Customer under the Agreement without the prior consent of the Customer; and (iii) not reassign the Key Supplier Personnel or Supplier's employees or subcontractors assigned to Key Supplier Positions away from performance of functions under the Agreement.

12.3.3 During the provision of any Termination/Expiration Assistance, Customer shall continue to pay the applicable Fees due to Supplier under the applicable Statement of Work for the actual Services being received by the Customer. To the extent the Termination/Expiration Assistance requested by Customer requires additional personnel or resources as agreed by the Parties, Customer shall pay for such additional personnel or resources or the performance of the Termination/Expiration Assistance on a time and materials basis. In all cases, any additional charges shall be conditioned upon the Supplier using Commercially Reasonable Efforts to mitigate its incurrence of such additional time and material cost and expenses.

12.3.4 If the Customer, pursuant to Section 12.3.1, prepays the Monthly Fees, and it is determined that such prepayment is in excess of the actual Fees associated with the Termination/Expiration Assistance, then the Supplier shall apply such overpayment to monies otherwise due the Supplier or, if no monies are due the Supplier, promptly refund such overpayment to the Customer at the end of such Termination/Expiration Assistance. Conversely, if the amount prepaid by the Customer to the Supplier for Termination/Expiration Assistance does not fully reimburse the Supplier for the actual Fees due under the applicable Statement of Work or as otherwise agreed for the provision of Termination/Expiration Assistance to the Customer, then the Supplier shall invoice the Customer and the Customer shall pay the Supplier for such additional amounts as incurred and invoiced to the Customer in accordance with Section 9.2.1 (Invoicing and Payment).

12.3.5 In the process of evaluating whether to undertake or allow termination, expiration, renewal or renegotiation of the Agreement (or any portion thereof), the Customer may consider obtaining, or determine to obtain, offers for performance of services similar to the Services following termination, expiration or renewal of the Agreement (or portion thereof), or may evaluate performing all or portions of such services itself. As and when requested by the Customer for use in such a process, the Supplier shall provide to the Customer such information including the Customer Solution and other reasonable cooperation regarding performance of the Services as would be reasonably necessary for the Customer to process a request for proposal and a third party to prepare an informed, non-qualified offer for such services. The types of information and level of cooperation to be provided by the Supplier pursuant to this Section 12.3.5 shall be no less than those initially provided by the Customer to the Supplier prior to commencement and during the Term of the Agreement. All such disclosures by Supplier to Customer and Customer to the third party shall be subject to the confidentiality provisions of Article 11, except that the third party preparing the response shall be added as a permissible receiver of such information subject to the other restrictions in Article 11. The Supplier shall not be obligated to disclose its Company Information or its costs (except those charged to the Customer on a pass through basis or otherwise disclosed to the Customer), except to the extent of licenses granted to the members of the Customer Group and rights of the Customer Group set forth in the Agreement. In no event shall the Supplier be obligated to disclose any information relating to its other customers, except in cases where Supplier chooses to do so as part of its response to participate in such process.

12.4 Remedies

Except as expressly set forth herein all remedies provided for in the Agreement shall be cumulative and in addition to and not in lieu of any other remedies available to the Parties (and in the case of the Customer, the other members of the Customer Group as well) under the Agreement, at law, in equity or otherwise. Except as expressly set forth in the Agreement, the election by a Party (and in the case of the Customer, the other members of the Customer Group as well) of any remedy provided for in the Agreement or otherwise available to any of them shall not preclude a Party (and in the case of the Customer, the other members of the Customer Group as well), as the case may be, from pursuing any other remedies available under the Agreement, at law, in equity or otherwise.

12.5 Calculation of Termination Charges and Wind Down Expenses

The Termination Charge and Wind Down Expenses, to the extent applicable, shall be calculated and determined as of the date that the Supplier last performs and provides the Services, or applicable portion of the Services, under the Agreement. All Termination Charges and Wind Down Expenses shall be set forth in the applicable Statement of Work.

12.6 Effect of Partial Termination

12.6.1 If the Customer elects to terminate in part the Agreement or any subpart or component of the Services as permitted under the Agreement, the Fees payable under the Agreement (including any Termination Charges and Wind Down Expenses) shall be equitably adjusted to reflect only those Services that are not terminated, unless other Fee adjustments are specifically provided in the Agreement or applicable Statement(s) of Work.

12.6.2 In the event of a reduction in the resources/volumes by more than ten percent (10%) in one instance, by more than twenty five percent (25%) during a six (6) month period or by more than fifty percent (50%) in a one (1) year period shall treated as a partial termination for convenience and subject the applicable termination for convenience charges. For certainty, this Section 12.6.2 is: (i) intended to cover permanent reductions in resources/volumes; and (ii) not intended to cover any seasonality, or ARC/RRC type events.

12.7 Effect of Termination/Survival of Selected Provisions

12.7.1 In the event of the bankruptcy of the Supplier pursuant to the Bankruptcy Code and an attendant rejection of the Agreement or any Intellectual Property license granted hereunder pursuant to Section 365 thereof, the Parties intend that the provisions of Section 365 of the Bankruptcy Code shall apply and, to the extent provided by Section 365(n), the Customer shall be entitled to retain all Intellectual Property license rights granted in the Agreement and possession of all embodiments of Intellectual Property licensed under the Agreement as such rights existed immediately before the bankruptcy case commenced, and to exercise all rights to obtain possession of all embodiments of Intellectual Property licensed hereunder in accordance with the Agreement and any escrow or other agreement supplementary hereto, in each case for the duration of such license as set forth in the Agreement and in accordance with Section 365(n). The Customer shall have no obligation to pay any fees or payments in connection with the exercise of such license rights granted under the Agreement and use of any such embodiments of such licensed Intellectual Property other than the applicable portion of the Fees representing such license rights.

12.7.2 Notwithstanding the expiration or earlier termination of the Services or the Agreement for any reason however described, the following Articles/Sections of the Agreement, and such other provisions of the Agreement that by their nature would be intended to be applicable following any such expiration or termination (e.g., obligations to pay Fees, Termination Charges and Wind Down Expenses, where applicable) shall survive any such expiration or termination: Section 3.4 (Records/Audits), Section 4.3 (Non-Infringement), Section 17.2.1 (No Solicitation), Section 9.3 (Taxes), Section 9.5 (Disputed Payments and Credits), Article 10 (Intellectual Property Rights), Article 11 (Confidentiality and Data), Section 12.3 (Termination/Expiration Assistance), Section 12.4 (Remedies), Section 12.5 (Wind Down Expenses), Section 12.6 (Effect of Partial Termination) Section 12.7 (Effect of Termination/Survival of Selected Provisions), Article 13 (Liability), Article 14 (Indemnities), Article 15 (Insurance and Risk of Loss), Article 16 (Dispute Resolution) and Article 17 (General).

13. LIABILITY

13.1 Liability Caps

The liability of the Supplier to the Customer Group under the Agreement and any third party beneficiary (identified pursuant to Section 17.122) claiming under and in connection with the Agreement, and the liability of Customer to the Supplier under the Agreement and any third party beneficiary (identified pursuant to Section 17.122) claiming under and in connection with the Agreement, arising out of or resulting from the performance or non-performance of their respective obligations pursuant to the Agreement, shall be limited in the aggregate for all claims, whether in contract, equity or tort:

13.1.1 To an amount of Direct Damages not to exceed the aggregate amount payable by the Customer to the Supplier (that shall not include Pass-Through Expenses) under the Agreement during the twelve (12) calendar months immediately preceding each claim (or if twelve (12) months have not elapsed in the Term at the time of a claim, the actual charges for months paid and the estimated aggregate charges to Customer for the Services set forth in the Agreement during the remainder of the first twelve (12) months of the Term) (the "Direct Damages Cap"). For the avoidance of doubt, the amount available for a particular claim shall be determined as follows: (the Direct Damages Cap) minus (the total of all payments previously made by a Party with respect to claims subject to the Direct Damages Cap) equals (the maximum amount available for such claim).

13.1.2 Neither Party shall have any liability to the other Party or any third party beneficiary (identified pursuant to Section 17.12) claiming under and in connection with the Agreement for special, indirect, consequential, punitive or exemplary damages, including lost profits, regardless of the form of the action or the theory of recovery, and even if such party has been advised of the possibility of such damages, except to the extent any such damages, recoveries or payments are "Direct Damages" as defined in Section 13.3.1 (Direct Damages and Transition Cover Costs).

13.2 Exclusions and Exceptions

13.2.1 Notwithstanding Section 13.1 above, the following damages, recoveries and payments arising out of or resulting from each of the matters set forth in items (a) through (d) below shall be subject to the limitations on damages as may be specified in the applicable subsection, provided that the aggregate amounts recoverable for damages arising under subsections (a) through (d) below shall not exceed the aggregate amount payable by the Customer to Supplier (that shall not include Pass-Through Expenses) under the Agreement during the twenty four (24) calendar months immediately preceding a claim (or if twenty four (24) months have not elapsed in the Term at the time of a claim, the actual charges for months paid and the estimated aggregate charges to Customer for the Services set forth in the Agreement during the remainder of the first twenty four (24) months of the Term) (the "Enhanced Aggregate Cap"). For the avoidance of doubt, the amount available for a particular claim under Section 13.2.1 shall be in addition to Section

13.1 and determined as follows: (the Enhanced Aggregate Cap) minus (the total of all payments previously made by Supplier with respect to claims subject to (a) through (d) below) equals (the maximum amount available for such claim).

(a) All damages (including special, indirect, consequential, punitive or exemplary damages) arising out of or resulting from Supplier's (or its subcontractor's) breach of its obligations under Section 11.6 (Data Privacy), including the cost of Remedial Actions and "credit watch" reporting services for affected individuals;

(b) The Direct Damages arising out of or relating to Supplier's failure to correct or remediate a Significant Deficiency as required by Sections 3.4.10 and 3.4.12; provided, that such Direct Damages recoverable shall not exceed the aggregate amount payable by the Customer to Supplier under the Agreement during the six (6) calendar months immediately preceding each claim (or if six (6) months have not elapsed in the Term at the time of a claim, the actual charges for months paid and the estimated aggregate charges to Customer for the Services set forth in the Agreement during the remainder of the first six (6) months of the Term);

(c) The Direct Damages arising out of or relating to Supplier's failure to correct or remediate a Material Weakness as required by Sections 3.4.10 and 3.4.11; provided, that such Direct Damages recoverable shall not exceed the aggregate amount payable by the Customer to Supplier under the Agreement during the twelve (12) calendar months immediately preceding each claim (or if twelve (12) months have not elapsed in the Term at the time of a claim, the actual charges for months paid and the estimated aggregate charges to Customer for the Services set forth in the Agreement during the remainder of the first twelve (12) months of the Term); and

(d) The Direct Damages arising out of or resulting from a breach by the Supplier of Section 3.3 (Disaster Recovery Services); provided, that such Direct Damages recoverable shall not exceed the aggregate amount payable by the Customer to Supplier under the Agreement during the twenty four (24) calendar months immediately preceding each claim (or if twenty four (24) months have not elapsed in the Term at the time of a claim, the actual charges for months paid and the estimated aggregate charges to Customer for the Services set forth in the Agreement during the remainder of the first twenty four (24) months of the Term).

13.2.2 Notwithstanding Section 13.1.1 above, damages, recoveries and payments arising out of or resulting from the matters set forth in items (a) through (b) below shall not be subject to the limitation on the amount of Direct Damages recoverable by the members of the Customer Group and any third party beneficiaries (identified pursuant to Section 17.12) claiming under and in connection with the Agreement and such entities shall instead be able to recover any and all Direct Damages actually incurred by them as a result of ’the following (the “Direct Unlimited Category”):

(a) Supplier’s Abandonment; and

(b) Service Level Credits, Deliverable Credits, and any other accrued but unpaid credits due and payable to the Customer by the Supplier and similar payment obligations of Supplier under the Agreement.

13.2.3 Notwithstanding Section 13.1, the following damages, recoveries and payments arising out of or resulting from the matters set forth in items (a) through (g) below shall not be subject to the limitations on the amounts or types of damages recoverable by the Supplier, the members of the Customer Group and/or any third party beneficiaries (identified pursuant to Section 17.12) claiming under and in connection with the Agreement or under any other form of the action or theory of recovery referenced in Sections 13.1 (the “Unlimited Category”):

(a) properly invoiced Fees and other amounts that are due and payable to Supplier for Services provided under the Agreement;

(b) Losses and other amounts payable pursuant to either Party’s indemnification obligations under Article 14 (Indemnities) of the Agreement, excluding (1) Losses or amounts payable pursuant to Section 14.1.5(i), Section 14.1.13 and Section 14.1.10, which Losses and amounts shall be expressly subject to the limitations set forth in Sections 13.1, and (2) Losses or amounts payable pursuant to Section 14.1.14(ii) with respect to damages arising out of Section 11.6 (Data Privacy), which Losses and amounts shall be expressly subject to the limitations set forth in Sections 13.2.1(a);

(c) Damages resulting from a Party’s failure to pay any taxes due and properly payable by such Party under the Agreement;

(d) Damages arising out of or resulting from the misappropriation, use and/or unauthorized disclosure of the Confidential Information of the other Party (or in the case of Customer Group, the members of the Customer Group) in breach of Article 11 (Confidentiality and Data), excluding Section 11.6 (Data Privacy);

(e) Damages arising out of or resulting from the tortious intentional misconduct, fraud or criminal acts of the Supplier, the employees of the Supplier, its Subcontractors and/or its subcontractors’ employees or any other acts by any such persons or entities that are not permitted to be released by any persons or entities by prior agreement or waiver under applicable law;

(f) Damages arising out of or resulting from a breach by a member of the Customer Group, or by Supplier and/or its subcontractors, of Article 10

(Intellectual Property Rights), the "Additional IP Terms" Schedule and/or Section 4.3 (Non-Infringement); and

(g) Damages arising out of or resulting from the failure of the Supplier or any of its subcontractors to comply the Customer's written instructions regarding compliance with the Customer Governmental Orders/Judgments.

13.2.4 The Direct Damages Cap, Enhanced Aggregate Cap, Direct Unlimited Category, and Unlimited Category shall each be referred to as a "Damages Bucket". Payments made by either Party to satisfy any damages or Losses that arise under the Agreement shall, in each instance, be limited by and subject to only one of the Damages Buckets. Accordingly, any payments made by a Party to satisfy damages and Losses shall only be used in calculating that Party's remaining liability for subsequent claims under that Damages Bucket and shall not be used in calculating the available damages cap for any other Damages Bucket.

13.3 Direct Damages and Transition Cover Costs

13.3.1 "Direct Damages" mean actual, direct damages incurred by the claiming entity directly and naturally resulting from or arising out of a breach of the Agreement. For the purposes of the Agreement, "Direct Damages" include, (i) accrued but unpaid Fees for the Services through the last date on which the Services are provided by the Supplier; (ii) the Termination Charges and Wind Down Expenses; (iii) Costs of reloading data and the Costs of reconstructing data from identified, available and existing source documentation and/or electronic files; (iv) Costs of implementing and performing work-arounds regarding a service failure; (v) Costs of replacing lost, stolen or damaged goods and tangible materials; (vi) Costs and/or charges by third parties or incurred by the Customer Group preparing to perform, performing and/or transferring back to the Supplier work-arounds, corrected and/or replacement/substitute services and/or unperformed Services as a result of a failure by the Supplier to timely or properly perform such Services; (vii) the Costs incurred by the Customer Group to correct any deficiencies in the Services rendered by the Supplier; (viii) the difference in the amounts to be paid to the Supplier hereunder and the charges to be paid to another service or product provider to provide, and/or the Costs incurred by the Customer Group to perform, all and/or a portion of the Services and/or services similar to the Services after termination by the Customer pursuant to Sections 12.1.1, 12.1.2, 12.1.4 and/or during any period or periods that the Supplier and/or its subcontractors are failing to provide, or are deficient in their performance of, the Services, (ix) fines and penalties and attendant interest assessed against the Customer Group by a governmental entity or agency resulting from a breach of the Agreement by Supplier and/or its subcontractors, and (x) Transition Cover Costs.

13.3.2 "Transition Cover Costs" means all Costs and expenses incurred by the Customer Group to transition to itself or to one or more Third Party Supplier(s), some or all of the functions, responsibilities, tasks and activities comprising the portion of the Services provided by the Supplier under any portion(s) of the Agreement that are terminated pursuant to Sections 12.1.1, 12.1.2 and/or 12.1.4, after Commercially Reasonable Efforts to mitigate such Costs and expenses.

13.4 Savings Clause/Dependencies

In no event will the Supplier be liable for any damages or for failure to satisfy any Service Level or perform any of the Services, to the extent caused by (i) the Customer Group's or its contractors' failure to perform or improper performance of their responsibilities hereunder, (ii) the exercise of the Customer's rights under Section 3.4 (Records/Audits) under the Agreement, (iii) the Supplier's reasonable reliance on any Customer instructions given by an authorized representative of Customer in accordance with the terms of the Agreement, (iv) the Supplier's adherence to any agreed business process set forth and described in the Agreement, or (v) the improper performance of any Customer Systems or Customer Software for which Customer retains technical support or maintenance responsibility, so long as the Supplier has used commercially reasonable efforts in all cases to satisfy its performance obligations under the Agreement and the Supplier is not at fault in causing the damage or breach for which relief is being requested; provided, however, for the purposes of this Section 13.4, neither the Supplier nor its Affiliates nor their subcontractors nor vendors shall be considered a contractor of the Customer Group. Neither the Customer Group nor its contractors shall be liable for any damages to the extent caused by the Supplier's or its Affiliates' or subcontractors' failure to perform or improper performance of their responsibilities hereunder. The Supplier shall give the Customer prompt written notice (and in any event no more than forty-eight (48) hours after Supplier is aware of the event) of the occurrence of each of the events described in (i) and (ii) of this Section 13.4 that causes, or Supplier has reasonably determined may cause, the Supplier to fail to satisfy any Service Level or to perform or properly perform any of the Services.

13.5 Set-Off

The Customer may not set off against amounts owed by the Customer Group under the Agreement, any amount that the Supplier is obligated to pay, credit or reimburse to the Customer Group under the Agreement. For any undisputed amounts owed by Supplier to the Customer or any member of the Customer Group, the Supplier shall issue one or more credit notes and the Customer or relevant member of the Customer Group will be responsible to pay the amount of Supplier's charges as reduced by the amount of such credit notes. Any dispute as to the Customer's or Customer Group member's entitlement to such credit or set-off shall be resolved pursuant to the dispute resolution process and the Customer's or Customer Group member's failure to pay any amount represented by such credit or set-off while such dispute is being resolved pursuant to the dispute resolution process and for a reasonable period thereafter to permit the payment by the Customer or relevant Customer Group member of the finally determined amount in the normal course of its business, shall not be considered a basis for monetary default under the Agreement; provided, that nothing in this Section 13.5 shall relieve or limit Customer's applicable payment obligations set forth in Section 3.4 (Records/Audits), Section 3.8.3 (New Services), Section 9.1.1 (Invoicing and Payment) or Section 9.5 (Disputed Payments and Credits).

13.6 Mitigation

Each Party shall use commercially reasonable efforts to mitigate (i) the damages caused by such Party's breach(es) of the Agreement, and (ii) the damages incurred by such Party caused by breach(es) of the Agreement by the other Party. The Parties shall comply with any cure periods expressly provided under the Agreement.

14. INDEMNITIES

14.1 Supplier Indemnity Obligations

The Supplier will indemnify and hold the Customer and the other members of the Customer Group, its and their Affiliates and their respective current, future and former officers, directors, employees, successors and assigns of each of the foregoing, and each of the foregoing persons or entities (the "Customer Indemnitees"), harmless from and against any and all of the following Claims and be responsible for any and all resulting Losses incurred any of the Customer Indemnitees and shall defend the Customer Indemnitees against:

14.1.1 all Claims of infringement, violation or misappropriation of any Intellectual Property Right of a Third Party arising out of, relating to, or alleged to have occurred because of: (i) the Materials, systems or other resources used and/or provided by the Supplier and/or its subcontractors, (ii) the Supplier's and/or its subcontractors' performance of the Services, and/or (iii) the exercise by the Customer Group of any right or license granted by the Supplier and/or its subcontractor, however described; *provided that* this indemnity shall not apply to the extent that any Claim of infringement, violation or misappropriation results directly or indirectly from any of the following activities that were not at the written request or direction of the Supplier and/or its subcontractor or contemplated or permitted by the Documentation, Specifications, the Services or otherwise by the Agreement: (A) modification of any Materials or other resources after delivery by the Supplier and/or its subcontractors to the Customer, not made by or on behalf of the Supplier and/or its subcontractors or specified, authorized or approved by the Supplier and/or its subcontractors or contemplated or permitted by the Documentation, Specifications, the Services or otherwise by the Agreement; (B) the combination, operation or use of any Materials or any other resources provided by the Supplier and/or its subcontractors with devices, data, programs or other resources that the Supplier and/or its subcontractors did not furnish and were not contemplated or permitted by the Documentation, Specifications, the Services or otherwise by the Agreement; (C) infringement or misappropriation Claims to the extent directly based on Customer Software or any other materials provided by or on behalf of Customer or any member(s) of the Customer Group; (D) any system or resources provided by Customer or any member of the Customer Group for use by the Supplier, its Affiliates, and/or its subcontractors; (E) the Supplier's or its Affiliates' or subcontractors' performance, provision, or delivery of Services, Deliverables, Work Product, Materials, or any other resource in compliance with Customer's directions to use specific processes, methods and tools (excluding the Supplier's or its subcontractors' owned or licensed processes, methods and tools); (F) use of any systems or resources provided by the Supplier or its subcontractors or the Services provided after (i) the Supplier notified the Customer that its use must be discontinued due to such a claim and (ii) the Supplier has provided to the Customer a functionally equivalent non-infringing replacement of such systems and/or resources and a reasonable period of time to implement such replacement in production; (G) the use of any component of the Services by the Customer Group not in accordance with applicable Specifications, relevant Documentation, the Procedures Manual or reasonable written instructions (collectively "Instructions") delivered by the Supplier to the Customer in accordance with this Agreement, which written Instructions are not inconsistent with the Supplier's obligations or the rights of the Customer Group under the Agreement; or (H) an alteration of any Materials provided by the Supplier and/or its subcontractors or the Services by someone other than the Supplier and/or its subcontractors unless such alteration is in accordance with the written specifications for such Material or made pursuant to the instructions or with the authorization or approval of the Supplier or otherwise contemplated or permitted by the Documentation, Specifications, the Services or otherwise by the Agreement. Nothing in this Section 14.1.1 shall excuse, reduce, delay or relieve the obligations of the Supplier to perform and provide the Services, and/or grant or provide any right or license to the Customer Group and/or Authorized Users in accordance with the Agreement;

14.1.2 all Claims by employees of the Supplier or any of its subcontractors arising out of or relating to their employment or engagement by Supplier or its subcontractors in connection with the Services, except to the extent caused by the negligence or intentional acts, omissions or misconduct of any member of the Customer Group or any of their agents or contractors (but excluding the Supplier and its Affiliates, agents and subcontractors from such exception);

14.1.3 all Claims arising from or related to bodily injuries, death or damage to tangible personal or real property to the extent caused by acts or omissions of the Supplier or any of its agents or subcontractors, except to the extent caused by the negligence or intentional acts, omissions or misconduct of a member of the Customer Group or any of their agents or contractors (but excluding the Supplier and its Affiliates, agents and subcontractors from such exception);

14.1.4 all Claims arising from a violation of any Supplier Laws by the Supplier and/or any of its subcontractors;

14.1.5 all Claims arising from the Supplier's or any of its subcontractors' failure to comply with (i) any Customer Policies and/or (ii) the Customer's written instructions regarding compliance with the Customer Governmental Orders/Judgments, excluding any such failure to comply to the extent caused by a member of the Customer Group;

14.1.6 all Claims arising out of the Supplier's or any of its subcontractors' breach of any Third Party Contract for hardware or software assets made available to Supplier or its subcontractors for use performing Services (including any Customer Software licensed by the Customer or any other member of the Customer Group or their Affiliates from a third party) after the applicable Effective Date but only to the extent the terms of such Third Party Contract have been disclosed to the Supplier, excluding, however, any Claim arising from the failure of the Customer to satisfy its obligations to obtain, or cause to be obtained, the appropriate Required Consents or approvals for such use;

14.1.7 (Intentionally omitted);

14.1.8 all Claims arising from fraud, criminal acts including theft of money, securities and other property committed by, or the intentional misconduct or Gross Negligence of, the Supplier or any of its subcontractors or the employees of any of the foregoing relating to or in connection with the Agreement and/or the Services, except to the extent that any member of the Customer Group and/or their employees are a party to such fraud, criminal acts or intentional misconduct;

14.1.9 all Claims for the Supplier's tax liabilities as set forth in Section 9.3 (Taxes);

14.1.10 all Claims made by the Supplier's Affiliates, subcontractors or vendors and by its and their vendors or subcontractors, arising out of or relating to the Agreement or the Services, except to the extent such Claims are covered by the Customer's indemnification obligations pursuant to Sections 14.2.4 or 14.2.5;

14.1.11 (Intentionally omitted);

14.1.12 (Intentionally omitted);

14.1.13 all Claims arising out of or resulting from Supplier's breach of the representations and warranties set forth in (i) Section 4.2 (Authorization and Enforceability) and (ii) Section 4.10 (Absence of Material Litigation); and

14.1.14 all Claims arising out of or resulting from the Supplier's and/or its subcontractors' breach of the Supplier's obligations under (i) Article 10 (Intellectual Property Rights) and/or (ii) Article 11 (Confidentiality and Data).

In the event and to the extent that a Claim subject to indemnification under this Section 14.1 is made against a Customer Indemnitee by an employee of the Supplier and/or its subcontractors providing Services, products and/or software hereunder, the Parties agree that the Supplier shall indemnify and hold harmless the Customer Indemnitee to the same extent as if the Claim was made by a non-employee of the Supplier and/or its subcontractors. The Supplier's indemnification obligations hereunder shall be primary and immediate.

14.2 Indemnity by the Customer

The Customer will indemnify and hold the Supplier and its Affiliates, and the respective current, future and former officers, directors, employees, successors and assigns of each of the foregoing, and each of the foregoing persons or entities (the "Supplier Indemnitees"), harmless from and against any and all Claims and be responsible for any and all resulting Losses incurred by any of the Supplier Indemnitees:

14.2.1 all Claims arising out of or related to the Customer's failure to perform its obligations before the Effective Date arising out of or related under any Third Party Contract and/or other contracts or licenses assigned to the Supplier or for which the Supplier has assumed financial, administrative or operational responsibility, or the Customer's failure to perform any obligations under such Third Party Contracts and/or other license or contract after the Effective Date, but only to the extent that such obligation has remained with the Customer and was not assumed by the Supplier;

14.2.2 all Claims of infringement, violation or misappropriation of any Intellectual Property Right (including any Confidential Information) of a Third Party alleged to have occurred because of: (A) Customer Systems, Customer Software, processes or other Materials as provided by the Customer to the Supplier; (B) modification of any Materials or other resources after delivery by the Supplier and/or its subcontractors to the Customer, not made by or on behalf of the Supplier and/or its subcontractors or not specified, authorized or approved by the Supplier and/or its subcontractors or not contemplated by the Documentation, Specifications, the Services or otherwise by the Agreement; (C) the combination, operation or use of any Materials or other resources provided by the Supplier and/or its subcontractors with devices, data, programs or other resources that the Supplier and/or its subcontractors did not furnish or were not expressly contemplated or permitted by the Documentation, Specifications, or the Agreement; (D) compliance with Customer's written directions to use specific processes, methods and tools in the performance of the Services (excluding the Supplier's and/or its subcontractors' owned or licensed processes, methods and tools); and/or (E) the Customer's failure to perform its obligations before the Effective Date arising out of or related to Third Party Software licenses or contracts assigned to the Supplier or for which the Supplier has assumed financial, administrative or operational responsibility;

14.2.3 all Claims by employees of the Customer and/or Customer Group and/or any of its subcontractors arising out of or relating to their employment or engagement by Customer or its subcontractors in connection with receipt of the Services, except to the extent caused by the negligence or intentional acts, omissions or misconduct of Supplier or any of its agents or contractors (but excluding the Customer and its Affiliates, agents and subcontractors from such exception);

14.2.4 all Claims arising from or related to bodily injuries or death or damage to tangible personal or real property to the extent caused by the tortious acts or omissions of any member of the Customer Group or its agents or contractors, except to the extent caused by the negligence or intentional acts, omissions or misconduct of the Supplier or its Affiliates, agents or subcontractors;

14.2.5 all Claims arising out of or related to the breach by the Customer of its obligation to obtain Required Consents as set forth in <u>Article 8</u> of the Agreement, except to the extent caused by the Supplier or its Affiliates, agents or subcontractors;

14.2.6 all Claims relating to the Services by any individual or entity that uses or receives the benefit of the Services by or through the Customer under the Agreement, excluding from this Section 14.2.6 all claims by the Customer or the other members of the Customer Group and/or the Customer Indemnitees under the Agreement and all Claims to the extent covered by the Supplier's indemnification obligations pursuant to Section 14.1.3;

14.2.7 all Claims arising out of or related to a violation of any Customer Laws, Customer Policies and/or Customer Governmental Orders/Judgments by the Customer and/or members of the Customer Group and/or any of its subcontractors, except to the extent caused by a breach of the Agreement by the Supplier or its Affiliates or subcontractors;

14.2.8 all Claims for the Customer Group's tax liabilities as set forth in Section 9.3 (Taxes);

14.2.9 all Claims arising from fraud, theft of money, securities and other property committed by, or the willful misconduct or Gross Negligence of, the Customer Group or the Customer Group's employees and contractors, relating to or in connection with the Agreement or the Services, except to the extent that the Supplier, and/or any of its Affiliates and/or any of its or their subcontractors and/or the employees of any of the foregoing, are a party to such fraud, criminal acts or willful misconduct;

14.2.10 all Claims arising out of or resulting from Customer's breach of the representations and warranties set forth in Section 4.2 (Authorization and Enforceability); and

14.2.11 all Claims arising out of or resulting from any member of the Customer Group's and/or their subcontractors' (i) violation of the license rights granted under Article 10 (Intellectual Property Rights) by exceeding the scope of such rights and/or (ii) breach of the Customer Group's obligations under Article 11 (Confidentiality and Data).

In the event and to the extent that a Claim subject to indemnification under this Section 14.2 is made against a Supplier Indemnitee by an employee of a member of the Customer Group relating to the Agreement or the Services, the Parties agree that Customer shall indemnify and hold harmless the Supplier Indemnitee to the same extent as if the Claim was made by a non-employee of a member of the Customer Group. The Customer's indemnification obligations hereunder shall be primary and immediate.

14.3 Employment Actions

Personnel supplied by the Supplier, its Affiliates and subcontractors under the Agreement shall be deemed employees of the Supplier or such Affiliate or subcontractor and shall not for any purposes be considered employees, Affiliates or agents of the Customer. The Supplier assumes full responsibility for the actions and supervision of such personnel while performing Services under the Agreement. The Customer assumes no liability for such personnel. The Supplier shall be solely and exclusively responsible for its own internal personnel decisions affecting the Supplier's employees and employees of its subcontractors and agents (including, without limitation, hiring, promotions, training, compensation, evaluation, discipline, and discharge). Any input given by the Customer, or the exercise of Customer's rights under Article 7 (Supplier Personnel) or any other provision of the Agreement shall not be construed to limit or shift to the Customer, any of the Supplier's obligations or responsibilities under this Section 14.3 (Employment Actions) or otherwise. While the Customer has the absolute right to provide input and to have its decisions affected, as provided in the Agreement, concerning the persons with whom it is required to interact and to allow access to its data, facilities and business operations, no such Customer inputs or decisions are intended to, nor shall the Supplier construe such input or decisions to be intended to, dictate or influence in any way the Supplier's own internal personnel decisions affecting the Supplier's employees and employees of its subcontractors and agents (including, without limitation, hiring, promotions, training, compensation, evaluation, discipline, and discharge). The Customer shall be solely and exclusively responsible for personnel decisions affecting employees, contractors and agents of the members of the Customer Group (including, without limitation, hiring, promotion, training, compensation, evaluation, discipline and discharge).

14.4 Indemnification Procedures

An indemnified person under this Article 14 shall promptly notify the indemnifying Party of any Claim with respect to which it seeks indemnity under this Article 14. An indemnifying Party may participate, at its own expense, in the defense of such Claim. The indemnifying Party shall, after receipt of such notice, assume the defense and settlement of such Claim, with counsel reasonably satisfactory to the indemnified person to represent the indemnified person and any others the indemnifying Party may designate in such proceeding and shall pay the fees and disbursements of such counsel related to such proceeding. In any such proceeding, any indemnified person shall have the right to retain its own counsel, but the fees and expense of such counsel shall be at the expense of such indemnified person unless (i) the indemnifying Party and the indemnified person shall have mutually agreed to the retention of such counsel or (ii) the named parties to any such proceeding (including any impleaded parties) include both the indemnifying Party and the indemnified person, and the indemnified person reasonably believes, based on opinion of counsel, that representation of both parties by the same counsel would be inappropriate due to actual or potential differing interests between them. It is agreed that the indemnifying Party shall not, in respect of the legal expense of any indemnified person in connection with any proceeding or related proceedings in the same jurisdiction, be liable for the fees and expenses of more than one separate firm (in addition to any local counsel) for all such indemnified Parties. The indemnifying Party shall not be liable for any settlement of any proceeding effected without its written consent, but if settled with such consent or if there is a final judgment for the plaintiff, the indemnifying Party agrees to indemnify the indemnified person from and against such settlement or judgment. No indemnifying Party shall, without the prior written consent of the indemnified person, effect any settlement of any pending or threatened proceeding in respect of which any indemnified person is or could have been a party and indemnity could have been sought hereunder by such indemnified person (i) if such settlement involves any form of relief other than the payment of money or any finding or admission of any violation of any law, regulation or order or any of the rights of any person, or (ii) if such settlement involves only the payment of money, unless it includes an unconditional release of such indemnified person of all liability on claims that are the subject of such proceeding. An indemnified person may assume control of the defense of any Claim if (i) it irrevocably waives its right to indemnity under this Article 14, or (ii) without prejudice to its full right to indemnity under this Article 14 if the indemnifying Party refuses or fails to timely assume the defense of such Claim or to diligently pursue such defense thereafter.

An indemnifying Party required to provide an indemnity to an indemnified person under this Article 14 (Indemnities) shall have no obligation for any Claim under this Article 14 if:

(a) the indemnified person fails to notify the indemnifying Party of such Claim as provided above, but only to the extent that the defense of such Claim is prejudiced by such failure;

(b) the indemnified person fails to tender control of the defense of such Claim to the indemnifying Party as provided in this Section 14.4; or

(c) the indemnified person fails to provide the indemnifying Party with all reasonable cooperation in the defense of such Claim (the cost thereof to be borne by the indemnifying Party).

15. INSURANCE AND RISK OF LOSS

15.1 Insurance and Coverages

During the Term, Supplier shall obtain and maintain at its own expense, and require its subcontractors to obtain and maintain at their own expense, insurance of the type and in the amounts set forth below, with insurers having not less than a current AM Best rating of A-VII or comparable rating for insurance companies outside the United States not rated by AM Best. If any of the Supplier's subcontractor's insurance coverages are less than the applicable requirements, Supplier shall obtain Customer's approval for any exceptions to these requirements.

15.1.1 Statutory workers' compensation (or its equivalent) in accordance with all federal, state, and local requirements (or their applicable equivalents);

15.1.2 Employer's liability insurance (Coverage B) or its equivalent, with minimum limits of coverage of: One Million Dollars ($1,000,000) per accident, bodily injury (including death) by accident; One Million Dollars ($1,000,000) Policy Limit, bodily injury (including death) by disease; and One Million Dollars ($1,000,000) per employee, bodily injury (including death) by disease;

15.1.3 Professional Errors and Omissions Insurance in an amount not less than Five Million Dollars ($5,000,000) in annual aggregate;

15.1.4 Commercial General Liability with minimum limits of coverage of: Two Million Dollars ($2,000,000) each occurrence, Five Million Dollars ($5,000,000) general aggregate, and Two Million Dollars ($2,000,000) personal and advertising injury. The policy must include coverage for Products and Completed Operations, Broad Form Property Damage and Broad Form Contractual Liability specifically in support of Supplier's indemnity obligations under this Agreement;

15.1.5 Business automobile liability covering all non-owned, owned, hired and leased vehicles in an amount not less than Two Million Dollars ($2,000,000) (combined single limit for bodily injury and property damage);

15.1.6 Umbrella liability policy in excess of all underlying insurance described in Sections 15.1.2, 15.1.3, 15.1.4, and 15.1.5 of this Section 15, and Umbrella liability policy with limits of at least Five Million Dollars ($5,000,000) per occurrence and in annual aggregate, and which shall attach at the exhaustion point of the required underlying policy so that no gap in coverage whatsoever occurs, and which coverage shall be at least as broad as the underlying insurance described in Sections 15.1.2, 15.1.3, 15.1.4, and 15.1.5 of this Section 15;

15.1.7 Commercial Crime forming part of the Professional Errors and Omissions including employee dishonesty, social engineering and computer fraud coverage for loss arising out of or in connection with any fraudulent or dishonest acts committed by the employees of Supplier, acting alone or in collusion with others, in a minimum amount of Ten Million Dollars ($10,000,000) each event and in annual aggregate; and

15.1.8 Cyber liability insurance coverage with limits of not less than Ten Million Dollars ($10,000,000) per claim and in annual aggregate providing coverage for liability arising out of but not limited to breach of security and privacy; media liability; cyber extortion.

15.2 Insurance Documentation

Prior to commencing any Services under this Agreement and at all times thereafter while this Agreement remains in effect, Supplier shall furnish to Customer certificates of insurance (including evidence of renewal of insurance) evidencing all coverages referenced in this Section 15. Supplier shall provide thirty (30) days' notice to Customer prior to coverage cancellation or material adverse alteration of the coverage by either Supplier or Supplier subcontractors or the applicable insurance broker. Such cancellation or material adverse alteration shall not relieve Supplier of its continuing obligation to maintain insurance coverage in accordance with this Schedule. The insurance policies and each certificate evidencing the insurance shall name Customer, the members of the Customer Group, and their respective officers, directors, agents, employees and other representatives as additional insured on the Commercial General Liability, Business Automobile Liability and Umbrella liability policies. All of the insurance policies shall also be primary as to, and non-contributing with respect to, the applicable insurance policies (or self-insurance) of Customer and shall be designated as such on all relevant certificates. All coverage must be written on an occurrence policy form (other than Errors and Omissions coverage, Cyber

Liability Insurance and Commercial Crime coverage, which are based on a claims-made form). Supplier shall for itself and for its insurers waive all rights of recovery and/or subrogation under Commercial General Liability and Business Automobile Liability.

15.3 Minimum Requirements

Supplier will maintain insurance for the coverages listed above for not less than the limits specified above for each coverage or as required by law, whichever is greater. Supplier is responsible for providing any additional insurance it deems necessary to protect itself from claims in excess of the minimum coverage. None of the requirements contained herein as to coverage types or limits of insurance to be maintained by the Supplier are intended to and shall not in any manner limit or expand the liability of the Supplier to Customer hereunder. Supplier shall be responsible for payment of its own insurance deductibles or self-insurance retentions.

16. DISPUTE RESOLUTION

16.1 General

Any dispute between the Parties arising out of or relating to this Agreement, including with respect to the interpretation of any provision of this Agreement and with respect to the performance by the Supplier or the Customer of its obligations hereunder, will be resolved as provided in this Article 16.

16.2 Dispute Resolution Procedures

16.2.1 Upon the written request of either Party to the other Party, a dispute shall be referred to the Account Executives prior to escalation to senior management. If the Account Executives are unable to resolve, or do not anticipate resolving, the dispute within ten (10) days after referral of the dispute to them or such longer period as the Parties may agree, either Party may initiate the senior management negotiation process described in Section 16.2.2 by providing written notice to the other Party not sooner than the conclusion of such the (10) day period.

16.2.2 If the senior management negotiation process is initiated by either Party, the Parties shall utilize a non-binding dispute resolution procedure whereby each presents its case at a hearing before a panel consisting of Supplier's Account Executive and Customer's Account Executive, or their superior(s). The hearing shall occur within fourteen (14) days after a Party serves notice to use the procedure set forth in this Section 16.2.2. The proceedings occurring pursuant to this Section 16.2.2 shall be without prejudice to the legal position of either Party. Each Party shall bear its respective costs incurred in connection with the procedure set forth in this Section 16.2.2, except that the Parties shall share equally in the cost of the facility for the hearing.

The foregoing limitations shall not, however, prevent a Party from instituting, formal proceedings earlier to (A) preserve a superior position with respect to other creditors, or (B) address a claim arising out of the breach of a Party's confidentiality obligations or Intellectual Property Rights under the Agreement.

16.3 Arbitration

16.3.1 All disputes arising out of or relating to the Agreement not resolved pursuant to the process described in Section 16.2 shall be settled finally in an arbitration conducted under the Rules of Arbitration of the International Chamber of Commerce ("ICC") and as provided in this Section 16.3. Each arbitration process shall be commenced by a Party submitting a Request for Arbitration (the "Request") to the Secretariat of the ICC, with copies to the other Party. The Party having given the notice of dispute shall have the sole opportunity to file a Request for ten (10) days after the expiration of the period set forth in Section 16.2.2. After those ten (10) days, either Party may file a Request.

(a) The arbitration proceedings shall be conducted in Erie County, New York.

(b) The arbitration proceedings shall be conducted and governed in accordance with the International Chamber of Commerce Rules (the "Rules").

(c) The applicable law shall be the laws of New York.

(d) The language of the arbitration proceedings shall be English.

(e) The arbitral tribunal shall consist of three (3) arbitrators, one (1) of which shall be nominated by the Party submitting the Request and one (1) of which shall be nominated by the other Party. The third arbitrator who shall be the chair shall be nominated by the two (2) arbitrators nominated by the Parties. If the arbitrators selected by the Parties are unable to select the third arbitrator within forty-five (45) days of the submission of the Request or within such extended period as to which the Parties may agree, the arbitrators shall be designated by the International Court of Arbitration under the Rules.

(f) The International Bar Association's Rules on the Taking of Evidence in International Commercial Arbitration shall apply together with the ICC Rules governing any submission to arbitration incorporated in the Agreement.

(g) Every award shall be binding on all of the Parties. By submitting the dispute to arbitration under the Rules, the Parties undertake to carry out any award without delay and shall be deemed to have waived their right to any form of recourse insofar as such waiver can validly be made.

(h) This agreement to arbitrate shall be binding on the Parties and their successors and assigns.

(i) The prevailing Party in any arbitration proceeding conducted pursuant to the Agreement may recover from the Party who does not prevail in the arbitration their reasonable fees both for legal representation and related costs in any action to enforce the Agreement in any judicial or arbitration proceeding, in case so awarded by the Arbitrators.

(j) The Parties waive any right or claim to punitive or exemplary damages and agree that punitive or exemplary damages are not within the contemplation of the Agreement. No arbitral tribunal may order an award consisting in whole or in part of punitive or exemplary damages.

16.3.2 All applicable statutes of limitation and defenses based on the passage of time shall be tolled to the extent permitted by applicable law at the time of the arbitration while the procedures specified in Section 16.2 and Section 16.3 are pending. The Parties will take such action, if any, required to effectuate such tolling.

16.3.3 With respect to any violations of the Agreement which would cause or might cause irreparable injury to any one of the Parties or a member of the Customer Group, any Party may, in addition to any other rights under the Agreement and notwithstanding the dispute resolution procedures including, particularly, the arbitration agreement contained in Section 16.3.1, seek specific performance of the Agreement and injunctive relief in any court of competent jurisdiction against any ongoing violation of the Agreement. Prior to the appointment of the arbitrators pursuant to the arbitration agreement, any party hereto may seek provisional or interim measures from any court of competent jurisdiction. After the appointment of the arbitrators, the arbitrators shall have exclusive power to consider and grant requests for provisional or interim measures.

16.4 Continued Performance

The Parties shall continue performing their respective obligations under the Agreement while the dispute is being resolved unless and until: (i) authority to discontinue performance is granted by the Customer, conferred by a court of competent jurisdiction or mutually agreed; or (ii) the Term of the Agreement has properly and permissibly terminated or has expired and all Termination/Expiration Assistance required to be performed and/or provided by the Supplier under the Agreement has been performed and completed by the Supplier.

16.5 Expedited Resolution

If a dispute arises (i) prior to the end of the completion of the Services provided pursuant to any Transition/Transformation/Integration Plan, or (ii) at any time if Customer believes that Service Levels are not being met, or (iii) at any time, if Customer believes that such dispute relates to (A) matters that materially and adversely impact its business operations or (B) compliance with Section 4.8 (Compliance with Laws, Regulations and Policies), or (iv) with respect to any disputed payment in accordance with Section 9.5 (Disputed Payments or Credits), each of the time periods set forth in Section 16.2 shall be changed to a reasonable period not to exceed three (3) business days, and either Party may elect to bypass the Account Executives as provided in Section 16.2.1 and refer the dispute directly to Senior Management as provided in Section 16.2.2. Except as expressly modified by this Section 16.5, all other provisions of Articles 16 (Dispute Resolution) and 17 (General) shall apply to a dispute.

17. GENERAL

17.1 Relationship of Parties; Publicity

17.1.1 The Agreement shall not be construed as constituting either Party or its Affiliates as partner of the other Party and its Affiliates or to create any other form of legal association that would impose liability upon one Party or its Affiliates for the act or failure to act of the other Party and its Affiliates or as providing either Party or its Affiliates with the right, power or authority (express or implied) to create any duty or obligation of the other Party and its Affiliates. Supplier's personnel are not eligible to participate in any of the employee benefit or similar programs of Customer. Supplier shall inform all of its personnel providing Services pursuant to this Agreement that they will not be considered employees of Customer for any purpose, and that Customer shall not be liable to any of them as an employer for any claims or causes of action arising out of or relating to their assignment.

17.1.2 No public disclosures by either Party relating to the Agreement, except for internal announcements or disclosures required to meet legal or regulatory requirements beyond the reasonable control of the disclosing Party, shall be made without the prior written approval of authorized representatives of the other Party.

17.2 No Solicitation

17.2.1 During the applicable SOW Term and for one (1) year after the later to occur of the cessation of the Termination/Expiration Assistance or the date of termination or expiration of the Agreement, but subject to Section 17.2.2 below, neither Party will, directly or indirectly, solicit or hire any of the employees and contractors of the other Party or its Affiliates who have become known to the other through the delivery or receipt of the Services, other than as approved in writing in advance by the other Party, unless six (6) months have passed since the individual's employment or contractual relationship with the other Party or its Affiliates has terminated.

17.2.2 Either Party may make general solicitations to the public (including solicitations by way of job-posting web sites) or solicitations by a retained third party so long as the third party is not directed by such Party or one of its Affiliates to make such solicitation to the employees identified in Section 17.2.1, and may hire any such person that responds to such a solicitation, including a person identified in Section 17.2.1.

17.3 Parent Guaranty

The Supplier is a wholly-owned subsidiary of XYZ (Holdings) Limited (the "Parent"). Supplier shall deliver a guaranty by the Parent of the payment and performance by Supplier under this Agreement in the form of the "Supplier Parent Guaranty" Schedule concurrently with the Supplier's execution and delivery of the Agreement.

17.4 Entire Agreement, Updates, Amendments and Modifications

The Agreement constitutes the entire agreement of the Parties and their Affiliates with regard to the Services and matters addressed in the Agreement. All letters, proposals, discussions and other documents prepared and delivered by the Parties prior to the Effective Date regarding the Services and the matters addressed in the Agreement are superseded by and merged into the Agreement. The Agreement may only be updated, modified or amended (each, an "Amendment") by a written document signed by a representative of each Party. Any terms and conditions varying from the Agreement on any order or written notification from either Party or its Affiliates shall not be effective or binding on the other Party or its Affiliates.

17.5 Force Majeure

17.5.1 Neither Party shall be liable for any default or delay in the performance of its obligations hereunder, except for payment defaults, if and to the extent and while such default or delay is caused, directly or indirectly, by a Force Majeure Event.

17.5.2 If a Force Majeure Event occurs, the non-performing Party will be excused from any further performance or observance of the obligation(s) so affected for as long as such circumstances prevail and such Party continues to use Commercially Reasonable Efforts to recommence performance or observance whenever and to whatever extent possible without delay. Any Party so delayed in its performance will promptly notify the other by telephone and describe at a reasonable level of detail the circumstances causing such delay (to be confirmed in writing within twenty-four (24) hours after telephonic notice).

17.5.3 If any Force Majeure Event substantially prevents, hinders, or delays performance of the Services necessary for the performance of any of the Critical Business Services and/or the Critical Applications, and Supplier fails to recover such Critical Business Services and/or Critical Applications within the recovery timeframe set forth in the applicable Statement of Work, then at Customer's option:

(a) The Customer may procure such Services from an alternate source until such time as the Supplier restores the Services meets the applicable service levels and other requirements of the Statement(s) of Work. The Fees charged by the Supplier under the Agreement during a Force Majeure Event shall be equitably reduced to take into account the portion of the Services not provided by the Supplier, and Supplier shall reimburse Customer for any amounts paid to the alternate source for such Services that, together with the reduced Fees payable by Customer for the affected Services, exceed the Fees that would have been payable for the affected Services in the absence of the Force Majeure event; and/or

(b) If after twenty-one (21) calendar days, the Supplier has not fully restored the Services (including satisfying the Service Levels), the Customer may until the Services are fully restored: (A) terminate any portion of the Statement of Work so affected and the Fees payable under the Statement of Work shall be equitably adjusted to reflect the remaining Services; or (B) terminate the applicable Statement of Work as of a date specified by the Customer in a written notice of termination to the Supplier, and the Customer will pay all Fees due and payable through the termination date.

17.5.4 This excuse from performance described in this Section 17.55 will not operate to relieve the Supplier from its obligations to provide Disaster Recovery Services in accordance with Section 3.3 (Disaster Recovery Services) except if any such Force Majeure Event impacts, hinders, prevents, or delays performance of the Disaster Recovery Services themselves. In the event of a Force Majeure Event affecting the Customer Group, Customer Group locations, or Customer Group Systems this Section 17.55 will not limit or otherwise relieve the Customer's obligation to pay any monies due the Supplier under the terms of the Agreement, except as provided in Section 17.5.2 and Section 3.3.

17.6 Waiver

No waiver of any breach of any provision of the Agreement or of any right or remedy under or in connection with the Agreement shall constitute a waiver of any prior, concurrent or subsequent breach of the same or any other provision hereof or of any prior, concurrent or subsequently accruing right or remedy.

17.7 Severability

If any provision of the Agreement shall be held to be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby, and such provision shall be deemed to be restated to reflect the Parties' original intentions as nearly as possible in accordance with applicable law(s).

17.8 Counterparts

The Agreement may be executed in counterparts. Each such counterpart shall be an original, and the counterparts together shall constitute one and the same document.

17.9 Governing Law

The Agreement and any and all claims and disputes arising out of or in connection with or related to the relationships and arrangements between the Customer Group and the Supplier and its Affiliates described in the Agreement will be governed by and construed in accordance with the laws of New York and the United States of America except where local mandatory law applies as set forth in a Country Participation Agreement. The Parties hereby (a) agree that the U.S. District Court for the Western District of New York or if such court does not have subject matter jurisdiction, the appropriate state or superior court sitting in Erie County, New York, shall have exclusive jurisdiction over the actions arising out of or related to or in connection with the Agreement and the subject matter of the Agreement, whether in contract, tort, or any other form of action ("Action"); (b) agree to a waiver of jury trial; (c) agree to initiate any such Action against the other Party only in such courts; (d) agree that they shall not raise any defense to the lawful jurisdiction of such courts; and (e) agree that they shall not attempt the removal of any Action to any other court, whether local, state or federal courts of the United States or the courts of any other country. The application of the United Nations Convention on Contracts for the International Sale of Goods and the United Nations Convention on the Limitation Period in International Sale of Goods to the Agreement are expressly excluded.

17.10 Binding Nature and Assignment

17.10.1 The Agreement will be binding on the Parties and their respective successors and permitted assigns.

17.10.2 Neither Party may, or will have the power to, assign the Agreement, in whole or part, without the prior written consent of the other Party, which consent shall not be unreasonably withheld, *except that* the a Party may assign the Agreement, upon written notice to and without the approval of the other Party: (i) to an Affiliate which expressly assumes the Agreement, *provided* that the assignor shall remain liable; or (ii) as part of a merger, acquisition, divesture or sale of all or substantially all of the assets of the Party, *provided* that, in either case, no adverse tax impact is triggered by the assignment.

17.10.3 Any attempted assignment that does not comply with the terms of this Section 17.10 shall be null and void.

17.10.4 Customer as the assignor under Section 17.10.2 shall be released from all financial and future performance obligations under the Agreement if the Supplier is provided with reasonably adequate assurances of the assignee's financial ability to satisfy the Customer's payment obligations under the Agreement or is provided with a guaranty of such payment obligations by another entity with the reasonably adequate financial ability to satisfy such payment obligations.

17.11 Notices

17.11.1 Whenever one Party is required or permitted to give legal notice to the other Party under the Agreement, such legal notice will be in writing unless otherwise specifically provided herein and will be deemed given when delivered in hand, 1 day after being given to an express courier for overnight delivery with a reliable system for tracking delivery, or five (5) days after the day of mailing, when mailed by United States mail, registered or certified mail, return receipt requested, postage prepaid. Operational notices may be sent via email.

17.11.2 Legal notifications, including Contract Change notices, will be addressed as follows:

In the case of Supplier:	In the case of the Customer:
	ABC North Companies, Incorporated [redacted] Attn: Global Sourcing Manager
with a copy to:	with a copy to:
	ABC North Companies, Incorporated [redacted] Attn: General Counsel

17.11.3 Operational notifications will be addressed to the Services Delivery Manager and the Customer Account Executive.

17.11.4 Either Party hereto may from time to time change its address for notification purposes by giving the other prior written notice of the new address and the date upon which it will become effective.

17.12 Third Party Beneficiaries

17.12.1 The Parties do not intend, and the Agreement shall not be deemed, to create any third party beneficiary rights for any person other than each member of the Customer Group and the divested entities and operations as permitted in the agreement, each of which shall be a third party beneficiary under the Agreement for all purposes including enforcement, subject to Section 17.12.2 of the Agreement, and the Parties' respective indemnitees. The third parties identified in Article 14 (Indemnities) shall have the rights and benefits described in that Article 14.

17.12.2 The members of the Customer Group and the divested entities and operations and their respective Affiliates as permitted in the Agreement shall communicate and cooperate with the Supplier, and bring all actions, claims, demands and other disputes with respect to the Supplier, the Agreement and the Services, through the Customer acting in its individual capacity and/or as agent of the aggrieved members of the Customer Group and/or such divested entities and operations; provided, however, any such third party beneficiary may take any separate action to enforce its rights under the Agreement: (i) in any instance in which the action, claim or demand may only be brought, filed or otherwise made by such third party beneficiary (including any instances related to rights to injunctive relief and/or damages for a breach of Article 10 (Intellectual Property Rights) or Article 11 (Confidentiality and Data)); (ii) in any instance which involves or is related to a regulatory matter applicable to such third party beneficiary; and (iii) any instance where the third party beneficiary is seeking on its own behalf to enforce the Supplier's indemnification obligations pursuant to Article 14 (Indemnities).

17.13 Other Documents

Upon request of the other Party on or after the Effective Date of the Agreement or any amendment or modification thereto, each Party shall furnish to the other such certificates of its Secretary or Assistant Secretary as shall evidence that the Agreement or any Amendment or revision hereto has been duly signed and delivered on behalf of such Party or its Affiliates.

17.14 Liens

The Supplier shall not assert, and shall cause its employees, contractors and subcontractors not to assert, any liens or claims against the real and personal property and other assets of the members of the Customer Group in connection with the Agreement or the Services or otherwise, and the Supplier shall keep the real and personal property and other assets of the Customer Group, free and clear of all such liens or lien claims; provided, however, the Supplier may apply judgment liens against the real and personal property and other assets of the Customer arising out of the Agreement. Should any such lien or lien claim (other than the Supplier judgment liens) be asserted for any reason, the Customer may at its sole discretion (i) pay the amount of such lien or lien claim; and/or (ii) require the Supplier to obtain a properly executed release of lien satisfactory to the Customer.

17.15 Headings

All headings herein and the table of contents are not to be considered in the construction or interpretation of any provision of the Agreement. In the event of any apparent conflicts or inconsistencies between the provisions of the Agreement, the Schedules or other Addendums to the Agreement, the Statements of Work, or the Exhibits and other Supplements to the Statements of Work, such provisions shall be interpreted so as to make them consistent to the extent possible, and if such is not possible, priority and precedence shall follow the terms of Section 1.2.1.

17.16 Rules of Construction

Interpretation of the Agreement shall be governed by the following rules of construction: (a) words in the singular shall be held to include the plural and vice versa and words of one gender shall be held to include the other gender as the context requires, (b) the word "including" and words of similar import shall mean "including, without limitation," (c) provisions shall apply, when appropriate, to successive events and transactions, and (d) the Agreement was drafted with the joint participation of both Parties and shall be construed neither against nor in favor of either, but rather in accordance with the fair meaning hereof.

17.17 Further Assurances

During the Term and at all times thereafter, each Party shall provide to the other Party, at its request, reasonable cooperation and assistance (including, without limitation, the execution and delivery of affidavits, declarations, oaths, assignments, samples, specimens and any other documentation) as necessary to effect the terms of the Agreement.

17.18 Expenses

Each Party shall be responsible for the costs and expenses associated with the preparation or completion of the Agreement and the transactions contemplated hereby except as specifically set forth in the Agreement.

17.19 Language

The Agreement (including all of its component parts) and all notices and other communications, however described, between the Parties and their representatives and other participating persons and entities relating to the Agreement shall be made and conducted in the English language.

17.20 Unenforceable Terms

In the event any term or provision of the Agreement shall for any reason be declared or held invalid, illegal or unenforceable in any respect by a court of competent jurisdiction (i) such invalidity, illegality or unenforceability shall not affect any other term or provision of the Agreement and (ii) such term or provision shall be (a) reformed to the extent necessary to render such term or provision valid and enforceable and to reflect the intent of the parties to the maximum extent possible under applicable law or (b) interpreted and construed as if such term or provision, to the extent unenforceable, had never been contained herein.

17.21 Equitable Remedies.

Nothing in this Agreement shall limit the right of either Party to apply to a court or other tribunal having jurisdiction to: (i) enforce the dispute resolution procedures outlined herein; or (ii) seek provisional, temporary, preliminary or other injunctive relief or other equitable remedy in response to an actual or threatened breach of the Agreement, or otherwise so as to avoid irreparable damage or maintain the status quo, until a dispute is resolved; or (iii) take any other action to resolve a dispute, whether or not permitted by or in conflict with the dispute resolution procedures, if the action is specifically agreed to in writing by the Parties.

***** END OF DOCUMENT *****